

Authorities captured in the summaries

Which precedents the courts used, how often, and for what proposition. Ranked by the number of distinct SCJ cases that invoked each authority. · 23 September 2026

3,366 SUMMARIES IN CORPUS	502 WITH CAPTURED AUTHORITIES	1,106 TOTAL CITATIONS	554 DISTINCT AUTHORITIES	27 USED IN 5+ CASES	12 USED IN 10+ CASES
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Drawn from the **authorities** field of every summary in the Supply Code JSON corpus. Name, reporter and Indian Kanoon variants of the same decision are clustered, so a case such as *Ashok Kumar v. State of U.P.* (2008 (6) ADJ 660 (DB)) is counted once. Rank is by distinct citing cases, not raw mentions. Authorities used in two or more cases are set out in full; those cited once appear in a compact register at the end of each court table. Where a later summary recorded the citation but not the proposition, the proposition is taken from the richer citing records of the same authority. This refreshes the 5 September 2026 report (1,271 summaries; 467 authorities), which is kept. Allahabad High Court — 139 authorities, 496 citations across 351 cases · Supreme Court of India — 336 authorities, 521 citations across 210 cases · Other courts — 79 authorities, 89 citations across 67 cases.

Leading — 10 or more cases Extensive — 5 to 9 cases Recurring — 2 to 4 cases Isolated — a single case

Most extensively used authorities (all forums)

Every authority invoked in five or more summaries. The case count is distinct citing summaries.

#	CASES	AUTHORITY	LEADING PROPOSITION TAKEN FROM IT
1	124	Ashok Kumar v. State of U.P. All HC 2008 (6) ADJ 660 (DB)	Assessment on account of theft, though to some extent covered by Section 135, is made under Section 126, and appeal therefore lies under Section 127.
2	38	M/s Dev Prayag Paper Mill (Pvt.) v. State of U.P. All HC 2017 (3) ALJ 497	Identical additional-security and clause 4.20 challenges dismissed; followed as the lead order.
3	32	M/s Supreme Ceramics Limited v. Paschimanchal Vidyut Vitran Nigam Ltd. All HC Writ Petition No. 51844 of 2009 (order dated 7.10.2009)	Interim order restraining demand of additional security under the Code pending adjudication.
4	25	Seema Mansoor v. U.P. Power Corporation Ltd. All HC 2014 (6) ADJ 672	As quoted from paragraph 16: the licensee is obliged to supply on a proper application; every owner or occupier, including a tenant, has a statutory right to apply and obtain supply subject to the Electricity Act, 2003 and the Supply Code, 2005; an application cannot be refused for want of the landlord's consent; a lessee, tenant or...

#	CASES	AUTHORITY	LEADING PROPOSITION TAKEN FROM IT
5	20	Shishir Jain v. Paschimanchal Vidyut Vitran Nigam Ltd. and another AII HC 2017 (3) AWC 3084	If there is no final assessment, the consumer cannot be compelled to deposit the provisional assessment; without a final assessment after considering the objection and giving an opportunity of hearing, demand notices are not sustainable.
6	17	Smt. Amrawati Devi v. Purvanchal Vidyut Vitran Nigam Ltd. AII HC 2009 (1) ADJ 430	Under Clause 5.6(c)(iii) a sealed defective meter is tested as agreed by the consumer; the consumer has a right to independent testing and the licensee a corresponding duty to apprise him, failing which the sealing proceedings are irregular and illegal; after sealing, a notice (in bold capitals) must be served for the consumer to...
7	14	Chandu Khamaru v. Smt. Nayan Malik SC (2011) 12 SCC 314	A consumer has a statutory right under the Electricity Act, 2003 to apply for and obtain a supply of electricity, and the distribution licensee has a corresponding statutory obligation to supply it, notwithstanding a private dispute over the passage/right of way for the line.
8	14	M/s Mohit Paper Mills Ltd. & Anr. v. PVVNL & Ors. AII HC 2011 (9) ADJ 239	Cited by the petitioner for paragraphs 78, 79 and 80; not separately discussed in the Court's reasoning.
9	11	M/s Paliwal Alloys (Pvt.) Ltd. v. U.P. Power Corporation Ltd. & Others AII HC 2009 (7) ADJ 455 (DB)	Assessment under Section 126 is also to be made in theft cases, and a person has a right of appeal.
10	10	Chairman, West Bengal State Electricity Board & Ors. v. Syed Mukbul Hossain & Ors. SC (2009) 2 SCC 727	In the matter of theft of electrical energy, the assessment is referable to Section 126 and appeal is to be filed under Section 127.
11	10	Executive Engineer, Southern Electricity Supply Co. of Orissa Ltd. (SOUTHCO) v. Sri Seetaram Rice Mill SC (2012) 2 SCC 108	Section 126 requires the assessing officer to inspect, form a conclusion of unauthorised use, provisionally assess, serve the order, hear objections, and pass a final assessment; a Section 127 appeal lies only against that final order. The High Court may entertain a writ against a provisional assessment on a jurisdictional issue, but...
12	10	Isha Marbles v. Bihar State Electricity Board SC (1995) 2 SCC 648	A new purchaser who had no contract with the electricity supplier before purchase cannot be said to be a consumer or occupier under the Electricity Act and, for a new connection, cannot be treated as a defaulter on the previous owner's dues.
13	9	Paschimanchal Vidyut Vitran Nigam Ltd. & Others v. The Appellate Authority/Addl. Commissioner & Anr. AII HC Civil Misc. Writ Petition No. 4222 of 2009, decided 26.03.2010	The 2003 Act does not exclude a Section 126 assessment in theft cases; Section 135(1A)'s third proviso presupposes such an assessment; the Section 127 appellate authority's power is co-extensive with the assessing authority's and extends to deciding whether the case is theft (paragraph 8.1) or unauthorised use (paragraph 6.8).

#	CASES	AUTHORITY	LEADING PROPOSITION TAKEN FROM IT
14	9	Paschimanchal Vidyut Vitran Nigam Ltd. v. DVS Steels & Alloys Pvt. Ltd. SC (2009) 1 SCC 210	Electricity dues do not constitute a charge on the premises and a transferee cannot be foisted with a predecessor's dues merely by virtue of ownership; however, a distributor may validly stipulate, as a condition for a fresh connection/reconnection, that the predecessor's arrears be cleared first — such a stipulation (e.g. Clause...
15	8	M/s Vehlna Steels & Alloys Pvt. Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd. All HC Writ Petition No. 30582 of 2009 (order dated 23 June 2009)	—
16	8	Narinder Chand Hem Raj & Others v. Lieutenant Governor, Administrator, Union Territory, Himachal Pradesh SC 1971 AIR 2399	As applied in the quoted Coordinate Bench: no direction could have been issued against the provisions of the Act and the Code by the Ombudsman.
17	7	Ajmer Vidyut Vitran Nigam Ltd. v. Rahamatullah Khan SC (2020) 4 SCC 650	Section 56(2) of the Electricity Act, 2003 does not preclude a licensee from raising an additional/supplementary demand after the limitation period in case of a mistake or bona fide error, but does not empower it to resort to the coercive measure of disconnection to recover the additional demand; under Section 17(1)(c) of the Limitation...
18	7	Ghanshyam Mishra & Sons (P) Ltd. v. Edelweiss Asset Reconstruction Co. Ltd. SC (2021) 9 SCC 657	Once a resolution plan is duly approved by the Adjudicating Authority under Section 31(1), the claims provided in the plan stand frozen and bind the corporate debtor and all stakeholders; all claims not part of the plan stand extinguished and no person may initiate or continue proceedings in respect of a claim not part of the plan....
19	7	Whirlpool Corporation v. Registrar of Trade Marks, Mumbai SC (1998) 8 SCC 1	Alternative statutory remedy does not bar a writ under Article 226 in at least three contingencies — enforcement of fundamental rights, violation of natural justice, or an order wholly without jurisdiction / where the vires of an Act is challenged; exhaustion is a rule of policy, convenience and discretion, not of law.
20	6	K.C. Ninan v. Kerala State Electricity Board & Ors. SC (2023) 14 SCC 431	Electric utilities can create a charge over premises by subordinate legislation/statutory conditions of supply, enabling recovery of a previous owner's electricity arrears from a subsequent transferee; in general law absent such a condition, arrears do not automatically become a charge.
21	5	Bar Council of India v. Union of India SC (2012) 8 SCC 243	Permanent Lok Adalats under Chapter VI-A of the LSA Act, 1987 have jurisdiction over disputes concerning public utility services (including supply of power) up to a pecuniary limit, in addition to and not in derogation of other fora, before the dispute is brought to a court.
22	5	Paschimanchal Vidyut Vitran Nigam Ltd. v. Raman Ispat (P) Ltd. SC (2023) 10 SCC 60	Section 238 of the I&B Code, being a subsequent parliamentary law with a non-obstante clause, has overriding effect on all laws in force including the Electricity Act, 2003 and the rules/regulations framed thereunder where inconsistent; the Electricity Act cannot override the Code. The licensee is granted liberty to lodge its...

#	CASES	AUTHORITY	LEADING PROPOSITION TAKEN FROM IT
23	5	Satya Narayan v. U.P. Power Corporation Ltd. All HC 2013 (5) ADJ 648	Under Clause 6.15(b) of the U.P. Electricity Supply Code, 2005 no sum can be recovered after two years from the date it becomes due unless it has been shown continuously as recoverable as arrears of charges of electricity; a belated recovery is time-barred.
24	5	Smt. Sushama Chowdhary v. U.P. Power Corporation Ltd. All HC Misc. Bench No. 9588 of 2014 (Allahabad HC, DB)	Clause 4.4 of the Code is in aid of the s.43 duty to supply; an occupier unable to produce the owner's consent (owner-occupier dispute) may obtain a connection on an Indemnity Bond (Annexure 4.2), and a denial merely citing Clause 4.4 without reasons is bad.
25	5	U.P. Power Corporation Ltd. v. Anis Ahmad SC (2013) 8 SCC 491	The Consumer Grievance Redressal Forum and the Electricity Ombudsman are not fora competent to decide the correctness of bills / questions of assessment; a consumer's challenge to the correctness of a bill lies under the mechanism of the Electricity Supply Code (clause 6.5), not before the CGRF or the Ombudsman.
26	5	U.P. Power Corporation Ltd. v. Ombudsmen and 2 others All HC Writ-C No. 1003603 of 2008, decided 21.03.2023	Ombudsman order dated 23.05.2008 set aside: minimum monthly/fixed charges under paragraphs 3.8 and 3.9 and the Tariff Order (s.24, Reforms Act, 1999) cannot be waived; a consumer prevented from using supply must seek permanent disconnection; the Ombudsman cannot direct contrary to the Act and the Code (Narinder Chand Hem Raj).
27	5	West Bengal State Electricity Distribution Co. Ltd. v. Sri Vasavi Industries Ltd. SC (2010) 3 SCC 34	In case of conflict with State legislation the IBC prevails over the State Electricity Regulation; on extinguishment of the right to recover pre-resolution dues, if a duty to supply is cast under the Electricity Act, 2003, the supplier cannot escape performing that duty and must provide the connection.

Table 1 — Allahabad High Court 139 authorities · 496 citations · 13 used in 5+ cases · 39 used in 2+ cases

Allahabad High Court authorities invoked in the Supply Code corpus, ranked by distinct citing cases. Most cited: *Ashok Kumar v. State of U.P.* (124), *M/s Dev Prayag Paper Mill (Pvt.) v. State of U.P.* (38) and *M/s Supreme Ceramics Limited v. Paschimanchal Vidyut Vitran Nigam Ltd.* (32).

1 Ashok Kumar v. State of U.P. 124 cases

2008 (6) ADJ 660 (DB) · Allahabad High Court (DB)

Followed 37 · Relied on 5 · Distinguished 4 · Referred 7 · Not recorded 71

PROPOSITION 1 · USED IN 8 CASES

Assessment on account of theft, though to some extent covered by Section 135, is made under Section 126, and appeal therefore lies under Section 127.

PROPOSITION 2 · USED IN 4 CASES

Paras 56 to 64 consider the provisions of the Electricity Supply Code, 2005 to be followed when assessing theft of electricity; a fresh final assessment is to meet the consumer's objections with reasons in that light.

PROPOSITION 3 · USED IN 2 CASES

Before a conclusion of unauthorised use under s.126, the consumer must be told the manner of the alleged use and given an opportunity of defence; a citizen cannot be indicted of unauthorised use (which may also be an offence under s.135) on the vagaries of the licensee's officers. Stern measures against theft do not justify condemnation without that minimum hearing (paras 56–60).

PROPOSITION 4 · USED IN 2 CASES

Paras 56-64 set out the Code 2005 procedure to be followed for a theft assessment - recording of satisfaction, a proper provisional assessment, opportunity and a reasoned final order.

+37 further formulations in the citing summaries, to the same effect.

SCJ-040	SCJ-048	SCJ-051	SCJ-057	SCJ-059	SCJ-061	SCJ-069	SCJ-070	SCJ-071	SCJ-111	SCJ-112	SCJ-117	SCJ-121	SCJ-154	SCJ-159	SCJ-165	SCJ-176
SCJ-189	SCJ-192	SCJ-193	SCJ-285	SCJ-286	SCJ-630	SCJ-635	SCJ-644	SCJ-674	SCJ-706	SCJ-710	SCJ-753	SCJ-825	SCJ-869	SCJ-1001	SCJ-1060	SCJ-1207
SCJ-1226	SCJ-1227	SCJ-1236	SCJ-1249	SCJ-1250	SCJ-1251	SCJ-1254	SCJ-1329	SCJ-1353	SCJ-1354	SCJ-1411	SCJ-1414	SCJ-1424	SCJ-1426	SCJ-1436	SCJ-1438	
SCJ-1439	SCJ-1442	SCJ-1443	SCJ-1446	SCJ-1447	SCJ-1449	SCJ-1454	SCJ-1457	SCJ-1462	SCJ-1469	SCJ-1562	SCJ-1584	SCJ-1590	SCJ-1595	SCJ-1603	SCJ-1606	
SCJ-1613	SCJ-1618	SCJ-1620	SCJ-1709	SCJ-1715	SCJ-1732	SCJ-1733	SCJ-1734	SCJ-1735	SCJ-1736	SCJ-1744	SCJ-1749	SCJ-1765	SCJ-1779	SCJ-1815	SCJ-1849	
SCJ-1869	SCJ-1878	SCJ-1879	SCJ-1888	SCJ-1889	SCJ-1907	SCJ-1915	SCJ-1918	SCJ-1922	SCJ-1923	SCJ-1924	SCJ-1925	SCJ-1938	SCJ-1982	SCJ-1987	SCJ-2014	
SCJ-2015	SCJ-2195	SCJ-2197	SCJ-2213	SCJ-2306	SCJ-2314	SCJ-2315	SCJ-2317	SCJ-3096	SCJ-3107	SCJ-3108	SCJ-3109	SCJ-3110	SCJ-3111	SCJ-3112	SCJ-3113	
SCJ-3114	SCJ-3147	SCJ-3149	SCJ-3165	SCJ-3166	SCJ-3179	SCJ-3183	SCJ-3209	SCJ-3221	SCJ-3309							

2 M/s Dev Prayag Paper Mill (Pvt.) v. State of U.P. 38 cases

2017 (3) ALJ 497 · Allahabad High Court

Followed 3 · Not recorded 35

PROPOSITION USED

Identical additional-security and clause 4.20 challenges dismissed; followed as the lead order.

SCJ-660	SCJ-675	SCJ-679	SCJ-685	SCJ-688	SCJ-690	SCJ-691	SCJ-692	SCJ-693	SCJ-694	SCJ-695	SCJ-696	SCJ-741	SCJ-751	SCJ-752	SCJ-829	SCJ-999
SCJ-1144	SCJ-1157	SCJ-1158	SCJ-1164	SCJ-1176	SCJ-1179	SCJ-1188	SCJ-1192	SCJ-1193	SCJ-1194	SCJ-1195	SCJ-1196	SCJ-1203	SCJ-1210	SCJ-1215	SCJ-1223	
SCJ-1228	SCJ-1292	SCJ-1321	SCJ-1459	SCJ-3153												

3 M/s Supreme Ceramics Limited v. Paschimanchal Vidyut Vitran Nigam Ltd. 32 cases

Writ Petition No. 51844 of 2009 (order dated 7.10.2009) · Allahabad High Court

Followed 1 · Referred 4 · Not recorded 27

PROPOSITION USED

Interim order restraining demand of additional security under the Code pending adjudication.

SCJ-175	SCJ-932	SCJ-1144	SCJ-1157	SCJ-1158	SCJ-1162	SCJ-1164	SCJ-1176	SCJ-1178	SCJ-1179	SCJ-1182	SCJ-1183	SCJ-1185	SCJ-1188	SCJ-1192	SCJ-1193	
SCJ-1195	SCJ-1201	SCJ-1202	SCJ-1203	SCJ-1210	SCJ-1215	SCJ-1223	SCJ-1228	SCJ-1255	SCJ-1272	SCJ-1292	SCJ-1459	SCJ-1480	SCJ-3119	SCJ-3123	SCJ-3153	

4 Seema Mansoor v. U.P. Power Corporation Ltd. 25 cases

2014 (6) ADJ 672 · Allahabad High Court

Followed 12 · Relied on 1 · Distinguished 2 · Referred 1 · Not recorded 9

PROPOSITION 1 · USED IN 1 CASE

As quoted from paragraph 16: the licensee is obliged to supply on a proper application; every owner or occupier, including a tenant, has a statutory right to apply and obtain supply subject to the Electricity Act, 2003 and the Supply Code, 2005; an application cannot be refused for want of the landlord's consent; a lessee, tenant or occupier who submits an indemnity bond cannot be refused merely on that ground.

PROPOSITION 2 · USED IN 1 CASE

Every owner or occupier, including a tenant, has a statutory right to apply and obtain electricity supply subject to the Electricity Act, 2003 and the Supply Code, 2005; the licensee cannot refuse a connection solely for want of the landlord's consent where an indemnity bond is submitted; a contrary interpretation would nullify Rent Control Act protection and is opposed to public policy.

PROPOSITION 3 · USED IN 1 CASE

Section 43 of the Electricity Act, 2003 casts a statutory duty on the distribution licensee to supply electricity to the occupier as well as the owner; an occupier/tenant has a statutory right to supply and cannot be refused a connection for want of the landlord's consent, a contrary interpretation being opposed to public policy and destructive of Rent Control Act protection.

PROPOSITION 4 · USED IN 1 CASE

Clause 4.4 of the Supply Code provides either the owner's consent or an occupier's indemnity bond (Annexure 4.2); every owner or occupier, including a tenant, has a statutory right to apply and obtain supply subject to the Electricity Act, 2003 and the Code, and the licensee cannot refuse a connection solely for want of the landlord's consent.

+13 further formulations in the citing summaries, to the same effect.

SCJ-006 SCJ-027 SCJ-212 SCJ-293 SCJ-342 SCJ-505 SCJ-506 SCJ-511 SCJ-517 SCJ-521 SCJ-621 SCJ-623 SCJ-1597 SCJ-2202 SCJ-2771 SCJ-2852 SCJ-3156
SCJ-3178 SCJ-3188 SCJ-3212 SCJ-3229 SCJ-3245 SCJ-3284 SCJ-3291 SCJ-3308

5 Shishir Jain v. Paschimanchal Vidyut Vitran Nigam Ltd. and another 20 cases

2017 (3) AWC 3084 · Allahabad High Court

Followed 13 · Not recorded 7

PROPOSITION 1 · USED IN 6 CASES

If there is no final assessment, the consumer cannot be compelled to deposit the provisional assessment; without a final assessment after considering the objection and giving an opportunity of hearing, demand notices are not sustainable.

PROPOSITION 2 · USED IN 4 CASES

If there is no final assessment, the consumer cannot be compelled to deposit the amount of the provisional assessment; without a final assessment after considering the objection and giving an opportunity of hearing, notices demanding that amount are unsustainable (para 16).

PROPOSITION 3 · USED IN 1 CASE

If there is no final assessment, the consumer cannot be compelled to deposit the amount of a provisional assessment; without a final assessment after considering the objection and giving opportunity of hearing, the consumer cannot be compelled to deposit any amount.

PROPOSITION 4 · USED IN 1 CASE

If there is no final assessment after considering the objection and giving the consumer an opportunity of hearing, the consumer cannot be compelled to deposit the provisional assessment, and demand notices founded on that course are unsustainable.

+2 further formulations in the citing summaries, to the same effect.

SCJ-2462 SCJ-2567 SCJ-2583 SCJ-2628 SCJ-2649 SCJ-2652 SCJ-2718 SCJ-3219 SCJ-3220 SCJ-3224 SCJ-3225 SCJ-3226 SCJ-3227 SCJ-3228 SCJ-3230 SCJ-3234
SCJ-3236 SCJ-3246 SCJ-3250 SCJ-3252

6 Smt. Amrawati Devi v. Purvanchal Vidyut Vitran Nigam Ltd. 17 cases

2009 (1) ADJ 430 · Allahabad High Court (DB)

Followed 6 · Relied on 2 · Distinguished 2 · Referred 4 · Petitioner's reliance held misconceived on these facts 1 · Not recorded 2

PROPOSITION 1 · USED IN 1 CASE

Under Clause 5.6(c)(iii) a sealed defective meter is tested as agreed by the consumer; the consumer has a right to independent testing and the licensee a corresponding duty to apprise him, failing which the sealing proceedings are irregular and illegal; after sealing, a notice (in bold capitals) must be served for the consumer to exercise the testing option, and the resulting test report is final and binding.

PROPOSITION 2 · USED IN 1 CASE

Clause 5.6(c)(iii) requires the licensee to apprise the consumer of, and obtain his agreement to, the testing venue (licensee's lab / independent lab / Electrical Inspector) before a sealed meter is tested; the clause operates harshly and is construed strictly, and failure to give a bold, printed notice of the option renders the proceedings illegal.

PROPOSITION 3 · USED IN 1 CASE

Clause 5.6(c)(iii) requires the consumer's agreement for the choice of testing laboratory (licensee's/independent/Electrical Inspector); this being a harsh provision against the consumer must be construed strictly, and failure to apprise the consumer of this right renders the meter-sealing/testing proceedings irregular and illegal.

PROPOSITION 4 · USED IN 1 CASE

On meter testing: after sealing the meter the Nigam must serve a notice intimating the consumer to exercise his option to get the meter tested by the Electrical Inspector or by an approved outside agency, and once the option is exercised a date must be fixed for testing in the consumer's presence.

+10 further formulations in the citing summaries, to the same effect.

SCJ-064

SCJ-071

SCJ-114

SCJ-126

SCJ-153

SCJ-161

SCJ-167

SCJ-202

SCJ-552

SCJ-637

SCJ-805

SCJ-825

SCJ-1060

SCJ-2213

SCJ-2727

SCJ-2853

SCJ-2858

7 M/s Mohit Paper Mills Ltd. & Anr. v. PVVNL & Ors. 14 cases

2011 (9) ADJ 239 · Allahabad High Court

Followed 5 · Relied on 1 · Referred 8

PROPOSITION 1 · USED IN 7 CASES

Cited by the petitioner for paragraphs 78, 79 and 80; not separately discussed in the Court's reasoning.

PROPOSITION 2 · USED IN 1 CASE

Use of electricity through a tampered meter constitutes 'unauthorised use of electricity' under s.126 Explanation (b), for which assessment can be made, while simultaneously constituting theft under s.135(1)(d), permitting parallel criminal proceedings.

PROPOSITION 3 · USED IN 1 CASE

Cited by the petitioner for the contention that the 4 July 2019 show-cause notice was not in accordance with section 126; the Court did not apply or extract its ratio and left any such objection to a reply before the Assessing Officer.

PROPOSITION 4 · USED IN 1 CASE

Clauses 8.1 and 8.2 of the Supply Code, 2005 (not Clause 6.8) govern assessment where theft of electricity under s.135 is alleged; the specific provision prevails over the general where two provisions cover overlapping fields.

+4 further formulations in the citing summaries, to the same effect.

SCJ-051

SCJ-059

SCJ-069

SCJ-111

SCJ-121

SCJ-3107

SCJ-3108

SCJ-3109

SCJ-3110

SCJ-3111

SCJ-3112

SCJ-3113

SCJ-3114

SCJ-3209

8 M/s Paliwal Alloys (Pvt.) Ltd. v. U.P. Power Corporation Ltd. & Others 11 cases

2009 (7) ADJ 455 (DB) · Allahabad High Court (DB)

Followed 10 · Distinguished 1

PROPOSITION 1 · USED IN 7 CASES

Assessment under Section 126 is also to be made in theft cases, and a person has a right of appeal.

PROPOSITION 2 · USED IN 1 CASE

Theft of electricity under s.135 is also 'unauthorised use of electricity' for which assessment under s.126 is contemplated and mandatory; the s.135(1A) third proviso (restoration on payment of the 'assessed amount') presupposes a s.126 assessment; a Supply Code procedural provision cannot take away the substantive s.127 right of appeal.

PROPOSITION 3 · USED IN 1 CASE

Applied Clause 6.15/s.56(2)'s two-year limitation to bar recovery of a peak-hour penalty imposed in 2006 for a 2002-2003 violation period.

PROPOSITION 4 · USED IN 1 CASE

Assessment under Section 126 is also to be made in theft cases and a person has a right of appeal (para 28, quoted).

+1 further formulation in the citing summaries, to the same effect.

SCJ-069

SCJ-111

SCJ-122

SCJ-3107

SCJ-3108

SCJ-3109

SCJ-3110

SCJ-3111

SCJ-3112

SCJ-3113

SCJ-3114

9 Paschimanchal Vidyut Vitran Nigam Ltd. & Others v. The Appellate Authority/Addl. Commissioner & Anr. **9 cases**

Civil Misc. Writ Petition No. 4222 of 2009, decided 26.03.2010 · Allahabad High Court

Followed 9

PROPOSITION 1 · USED IN 7 CASES

The 2003 Act does not exclude a Section 126 assessment in theft cases; Section 135(1A)'s third proviso presupposes such an assessment; the Section 127 appellate authority's power is co-extensive with the assessing authority's and extends to deciding whether the case is theft (paragraph 8.1) or unauthorised use (paragraph 6.8).

PROPOSITION 2 · USED IN 1 CASE

The 2003 Act's scheme does not exclude a Section 126 assessment in theft cases; Section 135(1A)'s third proviso (restoration of supply on deposit of the 'assessed amount') presupposes an assessment under Section 126, covering all categories of unauthorised use including theft; the Section 127 appellate authority's power is co-extensive with the assessing authority's and extends to deciding whether the theft assessment was correctly made.

PROPOSITION 3 · USED IN 1 CASE

The 2003 Act does not exclude a Section 126 assessment in theft cases; Section 135(1A) third proviso (restoration on deposit of the assessed amount) presupposes such an assessment; the Section 127 appellate power is co-extensive with the assessing authority's and extends to whether a theft assessment under paragraph 8.1 (or unauthorised use under paragraph 6.8) was correctly made.

SCJ-069

SCJ-3107

SCJ-3108

SCJ-3109

SCJ-3110

SCJ-3111

SCJ-3112

SCJ-3113

SCJ-3114

10 M/s Vehlina Steels & Alloys Pvt. Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd. **8 cases**

Writ Petition No. 30582 of 2009 (order dated 23 June 2009)

Not recorded 8

PROPOSITION NOT RECORDED.

SCJ-728

SCJ-729

SCJ-732

SCJ-733

SCJ-740

SCJ-742

SCJ-746

SCJ-856

11 Satya Narayan v. U.P. Power Corporation Ltd. **5 cases**

2013 (5) ADJ 648 · Allahabad High Court

Relied on 2 · Distinguished 1 · Not recorded 2

PROPOSITION 1 · USED IN 1 CASE

Under Clause 6.15(b) of the U.P. Electricity Supply Code, 2005 no sum can be recovered after two years from the date it becomes due unless it has been shown continuously as recoverable as arrears of charges of electricity; a belated recovery is time-barred.

PROPOSITION 2 · USED IN 1 CASE

Applied Clause 6.15's two-year bar to a stale (12-15 year) electricity-dues recovery.

SCJ-122 SCJ-1213 SCJ-1332 SCJ-2192 SCJ-3174

12 Smt. Sushama Chowdhary v. U.P. Power Corporation Ltd. 5 cases

Misc. Bench No. 9588 of 2014 (Allahabad HC, DB) · Allahabad High Court

Followed 1 · Relied on 3 · Not recorded 1

PROPOSITION 1 · USED IN 1 CASE

Clause 4.4 of the Code is in aid of the s.43 duty to supply; an occupier unable to produce the owner's consent (owner-occupier dispute) may obtain a connection on an Indemnity Bond (Annexure 4.2), and a denial merely citing Clause 4.4 without reasons is bad.

PROPOSITION 2 · USED IN 1 CASE

Section 43(1) casts an affirmative obligation on the licensee to supply an owner or occupier; Clause 4.4 is in aid of that duty, and an occupier who cannot get the owner's consent may furnish an indemnity bond (Annexure 4.2).

PROPOSITION 3 · USED IN 1 CASE

Section 43(1) casts an affirmative duty to supply an owner or occupier; the indemnity bond (Annexure 4.2) covers the case where the occupier cannot produce the owner's consent.

PROPOSITION 4 · USED IN 1 CASE

The petitioner placed reliance on the order in support of the prayer for a connection. The Court did not set out or discuss the decision.

+1 further formulation in the citing summaries, to the same effect.

SCJ-027 SCJ-033 SCJ-190 SCJ-1260 SCJ-3296

13 U.P. Power Corporation Ltd. v. Ombudsmen and 2 others 5 cases

Writ-C No. 1003603 of 2008, decided 21.03.2023 · Allahabad High Court

Followed 5

PROPOSITION 1 · USED IN 5 CASES

Ombudsman order dated 23.05.2008 set aside: minimum monthly/fixed charges under paragraphs 3.8 and 3.9 and the Tariff Order (s.24, Reforms Act, 1999) cannot be waived; a consumer prevented from using supply must seek permanent disconnection; the Ombudsman cannot direct contrary to the Act and the Code (Narinder Chand Hem Raj).

PROPOSITION 2 · USED IN 5 CASES

Sister writ allowed on 21.03.2023 on the same Ombudsman-order question.

SCJ-490 SCJ-491 SCJ-492 SCJ-493 SCJ-494

14 Gaurav Sharma v. State of U.P. 4 cases

2019 (2) ADJ 213 · Allahabad High Court (DB)

Followed 1 · Relied on 1 · Distinguished 1 · Not recorded 1

PROPOSITION 1 · USED IN 1 CASE

Under the U.P. Electricity Supply Code, 2005, an applicant who is not the owner of the premises but is a genuine occupier may obtain an electricity connection by furnishing an Annexure 4.2 indemnity bond (with proof of occupation such as a power of attorney, rent receipt or lease deed), the object being only to deny connections to trespassers/house-grabbers; a connection cannot be refused merely because the owner declines a no-objection certificate, particularly in a family/landlord dispute.

PROPOSITION 2 · USED IN 1 CASE

Cited by the petitioner, with Abhimanyu Mazumdar, in support of a Clause 4.4 occupier's claim. The judgment names neither the parties nor the holding, and pairs this docket with the decision dated 18 September 2018 by the word respectively.

PROPOSITION 3 · USED IN 1 CASE

A genuine occupier has a statutory right under s.43(1) to a connection and may furnish an indemnity bond (Annexure 4.2) where the owner's NOC is unavailable; a family dispute is no ground to refuse. [SCJ-027 in this corpus.]

SCJ-033

SCJ-272

SCJ-623

SCJ-3291

15 Iftikhar Ahsan v. State of U.P. 4 cases

Writ Petition No. 71425 of 2013 · Allahabad High Court

Overruled 1 · Referred 3

PROPOSITION 1 · USED IN 1 CASE

Same as Ravi Shankar Giri in the adopted Seema Mansoor extract: held not to lay down correct law for failure to notice the Act and Code provisions.

PROPOSITION 2 · USED IN 1 CASE

Same as Ravi Shanker Giri: owner's consent is required under the Code before an electricity connection can be granted.

PROPOSITION 3 · USED IN 1 CASE

Considered in Seema Mansoor on the same tenant-connection issue (this Court does not restate the holding).

PROPOSITION 4 · USED IN 1 CASE

Same as Ravi Shankar Giri — owner's consent required under the Code for grant of electricity connection.

SCJ-115

SCJ-342

SCJ-3156

SCJ-3178

16 M/s Modern Rice Mill v. MVVNL & Anr. 4 cases

2012 (1) ADJ 296 · Allahabad High Court

Followed 4

PROPOSITION 1 · USED IN 1 CASE

Clause 5.6(d) mandates a specific procedure before meter testing — information to the consumer of the proposed testing date, an opportunity to be present (personally or through a representative), obtaining signature if present, and a right to dispute the testing under Clause 5.6(c).

PROPOSITION 2 · USED IN 1 CASE

A meter manufacturer's own lab cannot be an 'independent laboratory'; testing by the manufacturer amounts to making a person judge in his own cause, given its commercial interest in defending its product's tamper-proof reputation.

PROPOSITION 3 · USED IN 1 CASE

A report of a laboratory that is not independent — in particular the meter manufacturer's own lab — cannot be relied upon; the manufacturer cannot be a judge in its own cause and its lab is not an 'independent laboratory'.

PROPOSITION 4 · USED IN 1 CASE

Same Clause 5.6 meter-testing requirement before finalising an assessment premised on a defective/missing meter.

SCJ-071 SCJ-114 SCJ-126 SCJ-161

17 Ravi Shanker Giri 4 cases

2007 (4) AWC 3934 · Allahabad High Court

Overruled 1 · Referred 3

PROPOSITION 1 · USED IN 1 CASE

Considered in Seema Mansoor on whether a tenant is entitled to a connection in tenanted premises (this Court does not restate the holding).

PROPOSITION 2 · USED IN 1 CASE

Unless there is consent of the owner of the premises as required by the Supply Code, 2005, an electricity connection cannot be granted.

PROPOSITION 3 · USED IN 1 CASE

Unless there is consent of the owner of the premises (as required under the Supply Code), electricity connection cannot be granted.

PROPOSITION 4 · USED IN 1 CASE

Named inside the petitioner's reliance on Seema Mansoor. The order does not state its holding, and this Bench did not apply it.

SCJ-115 SCJ-342 SCJ-3156 SCJ-3284

18 Sandeep Kesarwani v. State of U.P. and others 4 cases

2014(2) ADJ 442 · Allahabad High Court

Followed 2 · Relied on 1 · Referred 1

PROPOSITION 1 · USED IN 1 CASE

In a theft-of-electricity case an assessment under Section 126 of the Electricity Act, 2003 must be made even where an FIR under Section 135 is lodged and the trial is pending; unauthorised use of electricity is the genus and Section 135 theft a species, and the Special Court determines the civil liability, with further action under Section 154(6).

PROPOSITION 2 · USED IN 1 CASE

Theft under Section 135 is a species of the 'unauthorised use of electricity' under Section 126; assessment under Section 126 is to be made even where an FIR under Section 135 is lodged and trial is pending, the Special Court determining civil liability with further action under Section 154(6).

PROPOSITION 3 · USED IN 1 CASE

Even where an FIR under Section 135 (theft) is lodged, an assessment under Section 126 can be made; Sections 126 and 135 must be interpreted harmoniously to give effect to the object of the Act, and no Apex Court ratio precludes a Section 126 assessment in theft cases.

PROPOSITION 4 · USED IN 1 CASE

Cited by the licensee. The order sets out no holding from that decision, and this Court did not apply it.

SCJ-2198 SCJ-2224 SCJ-2636 SCJ-3293

19 Tehri Girders Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd. 4 cases

2009 (77) ALR 669 · Allahabad High Court (Division Bench)

Followed 4

PROPOSITION 1 · USED IN 1 CASE

Clause 4.49 speaks of 'recovery of any dues'; additional security is not a recoverable due, its only consequence on non-payment being non-release of load / discontinuance of supply, so Clause 4.49 is not attracted and no bank guarantee for additional security can be demanded.

PROPOSITION 2 · USED IN 1 CASE

Failure to give additional security does not amount to arrears; additional security cannot be treated as dues recoverable from the consumer (referred to with approval of Mirzapur Electric Supply).

PROPOSITION 3 · USED IN 1 CASE

Failure to furnish additional security does not amount to arrears; additional security is an advance payment of charges, not money due, and its non-furnishing entails only possible disconnection.

PROPOSITION 4 · USED IN 1 CASE

Clause 4.49 of the U.P. Electricity Supply Code, 2005 does not apply to a demand of additional security; that clause is attracted only where recovery of dues has been stayed.

SCJ-250 SCJ-697 SCJ-1979 SCJ-3078

20 Executive Engineer v. Electricity Ombudsman 3 cases

2015 (2) ADJ 196 · Allahabad High Court

Referred 3

PROPOSITION 1 · USED IN 1 CASE

Where no scheduled rostering has been carried out under a valid order of the competent authority, additional charge cannot be demanded merely on the ground that electricity was being supplied twenty-four hours (paras 46 to 61).

PROPOSITION 2 · USED IN 1 CASE

(The other Single-Judge decision consistent with confining the Ombudsman remedy to the consumer.)

PROPOSITION 3 · USED IN 1 CASE

Cited for the objection that the writ petition did not make a correct array of parties.

SCJ-043 SCJ-1988 SCJ-2642

21 Kamil v. State of U.P. & Others 3 cases

2016 (6) ADJ 11 (DB) · Allahabad High Court

Followed 1 · Relied on 2

PROPOSITION 1 · USED IN 1 CASE

Where there is nothing on record to suggest the consumer was provided any provisional assessment bill and opportunity to file objections, or any date fixed for hearing his view point as prescribed under Para 6.8(b)(2) of the Code, 2005, the recovery cannot stand.

PROPOSITION 2 · USED IN 1 CASE

Cited by the petitioner in support of the contention that a demand notice issued without a final assessment after opportunity of hearing is contrary to the Electricity Supply Code, 2005.

PROPOSITION 3 · USED IN 1 CASE

Same procedural-fairness principle for s.126/Clause 8.1 assessment.

SCJ-117 SCJ-1987 SCJ-3065

22 Mirzapur Electric Supply Company Limited v. State of U.P. 3 cases

AIR 1975 All 29 · Allahabad High Court (Division Bench)

Followed 1 · Relied on 2

PROPOSITION 1 · USED IN 1 CASE

Security demanded as a condition of supply is not 'dues' owed as a debt and cannot be recovered as arrears of land revenue under the U.P. Government Electrical Undertakings (Dues Recovery) Act, 1958; the consumer may decline to pay and take the consequence of discontinuance of supply.

PROPOSITION 2 · USED IN 1 CASE

The amount of security demanded is not 'dues' owed as a debt but only an amount demanded as a condition of supply; it cannot be recovered as arrears of land revenue under the U.P. Government Electrical Undertakings (Dues Recovery) Act, 1958.

PROPOSITION 3 · USED IN 1 CASE

Nature and consequences of security-deposit requirements under electricity supply law.

SCJ-252 SCJ-697 SCJ-1979

23 Ramavtar Singh v. State of U.P. And 2 Others 3 cases

Writ-C No. 34797 of 2022 (order dated 9 December 2022) · High Court of Judicature at Allahabad

Not recorded 3

PROPOSITION 1 · USED IN 1 CASE

On similar facts, a writ challenging electricity-bill computation and recovery was disposed of by relegating any remaining dispute to the Executive Engineer under Clause 6.5, with a direction that no coercive measures be taken until a speaking order on the objection.

PROPOSITION 2 · USED IN 1 CASE

After a Consumer Forum revision of bills, remaining computation disputes go to Clause 6.5; no coercive measures until a speaking order on any objection.

SCJ-3011 SCJ-3012 SCJ-3013

24 Smt. Karuna Jaiswal v. State of U.P. 3 cases

2018 (9) ADJ 107 (DB) (LB) · Allahabad High Court (DB) (Lucknow Bench)

Referred 3

PROPOSITION 1 · USED IN 2 CASES

Bench decision cited in the same catena on natural justice in disciplinary inquiries; no separate holding extracted.

PROPOSITION 2 · USED IN 1 CASE

Same principle on natural justice in disciplinary inquiries.

SCJ-017 SCJ-548 SCJ-549

25 Sri Bhagwan Gupta v. Kanpur Electricity Supply Company Ltd. 3 cases

2005 (2) AWC 1269 · Allahabad High Court

Followed 1 · Distinguished 2

PROPOSITION 1 · USED IN 1 CASE

Held (in the petitioner's submission) that the pre-2007 rate of one-and-half times the tariff under Section 126(5)/(6) applies where the cause of action (theft) arose before the amendment.

PROPOSITION 2 · USED IN 1 CASE

In a theft billing, assessment is at one-and-a-half times the tariff under Section 126(6), not under paragraph 6.16.2 of the 2002 Code; Section 126(6) prevails over paragraph 6.17.2.

PROPOSITION 3 · USED IN 1 CASE

On use of the maximum period where the actual period of unauthorised use cannot be established.

SCJ-047

SCJ-211

SCJ-640

26 State of U.P. v. Aditya Prasad Srivastava 3 cases

2017 (2) ADJ 554 (DB) (LB) · Allahabad High Court (DB) (Lucknow Bench)

Referred 3

PROPOSITION 1 · USED IN 2 CASES

Bench decision cited in the same catena on proof of charges in a departmental inquiry; no separate holding extracted.

PROPOSITION 2 · USED IN 1 CASE

Same principle on proof of charges in a departmental inquiry.

SCJ-017

SCJ-548

SCJ-549

27 State of U.P. v. Kishori Lal 3 cases

2018 (9) ADJ 397 (DB) (LB) · Allahabad High Court (DB) (Lucknow Bench)

Referred 3

PROPOSITION 1 · USED IN 2 CASES

Bench decision cited in the same catena on the establishment's burden in a departmental inquiry; no separate holding extracted.

PROPOSITION 2 · USED IN 1 CASE

Same principle on the Establishment's burden to prove charges in a departmental inquiry.

SCJ-017

SCJ-548

SCJ-549

28 Vinod Kumar Agarwal v. State of U.P. & Others 3 cases

Writ-C No. 24772 of 2012, decided 10 July 2012 · Allahabad High Court

Followed 1 · Relied on 2

PROPOSITION 1 · USED IN 1 CASE

No recovery certificate is to be issued until a final assessment is made in a theft case after a reasonable opportunity of hearing under sub-section (3) of Section 126 of the Electricity Act, 2003 (the Section 126(3) order to be passed within thirty days of service of the provisional assessment); recoveries already issued without a final assessment are to be withdrawn - the Court reproducing the Chairman-cum-Managing Director, UPPCL's compliance order dated 30 June 2012.

PROPOSITION 2 · USED IN 1 CASE

No recovery certificate is to be issued until a final assessment is made under Section 126; even absent objection, Section 126(3) requires the Executive Engineer to record service of the provisional assessment order and make a reasoned final assessment, and the Managing Director, UPPCL was directed (order dated 30.6.2012) to withdraw recoveries issued without final assessment.

PROPOSITION 3 · USED IN 1 CASE

No recovery certificate is to be issued until a final assessment is made under section 126; even absent objection, section 126(3) requires the Executive Engineer to record service of the provisional assessment and make a reasoned final assessment. The Managing Director, UPPCL's compliance order of 30.6.2012 directed withdrawal of recoveries issued without a final assessment.

SCJ-1982

SCJ-1985

SCJ-3166

29 Ajit Singh @ Muraha v. State of U.P. & Others 2 cases

2006 (56) ACC 433 · Allahabad High Court (Full Bench)

Followed 2

PROPOSITION 1 · USED IN 1 CASE

There can be no interference with investigation or order staying arrest unless a cognizable offence is not ex-facie discernible from the FIR or a statutory restriction operates on the power of the police to investigate.

PROPOSITION 2 · USED IN 1 CASE

Reiterates the Bhajan Lal/Satya Pal standard that FIR quashing/stay of arrest is warranted only where no cognizable offence is ex-facie discernible or a statutory restriction on investigation exists.

SCJ-102

SCJ-3081

30 Allahabad Inter Prises v. State of U.P. 2 cases

Writ - C No. 2788 of 2013 · Allahabad High Court (DB)

Followed 1 · Relied on 1

PROPOSITION USED

A 'Protective Load' charge cannot be raised in the absence of any option exercised by the consumer for that facility.

SCJ-026

SCJ-3190

31 Dakshinanchal Vidyut Vitran Nigam Ltd. v. Vidyut Lokpal, Lucknow 2 cases

Writ Petition No. 4237 (MS) of 2008 · Allahabad High Court (Single Judge)

Followed 1 · Referred 1

PROPOSITION 1 · USED IN 1 CASE

Clause 8 of the UPERC (CGRF & Electricity Ombudsman) Regulations, 2007, in so far as it permits a licensee to represent to the Ombudsman against a CGRF order, is bad in law.

PROPOSITION 2 · USED IN 1 CASE

(One of the two conflicting Single-Judge decisions that prompted the reference; view consistent with confining the Ombudsman remedy to the consumer.)

SCJ-043

SCJ-049

32 Izharul Hauque v. State of U.P. and 6 Others 2 cases

Writ C No. 8370 of 2016, order dated 24.02.2016 · Allahabad High Court

Followed 2

PROPOSITION USED

Where a recovery citation is issued against both a private limited company-consumer and its Director, the challenge that Clause 4.3(f)(v) is ultra vires Section 2(15) of the Electricity Act, 2003 requires consideration; the citation shall not be enforced against the Director, without restraining recovery against the company.

SCJ-3211

SCJ-3217

33 Kunwar Sarvesh Kumar Singh v. Paschimanchal Vidyut Vitran Nigam Ltd. & Ors. 2 cases

2012 (2) ADJ 509 · Allahabad High Court (Single Judge)

Followed 1 · Distinguished 1

PROPOSITION 1 · USED IN 1 CASE

On a consumer's acquittal in a theft case, the demand/assessment made by the licensee comes to an end and the connection is to be restored.

PROPOSITION 2 · USED IN 1 CASE

In theft cases, the Clause 8.1 assessment procedure of the Supply Code, 2005 applies.

SCJ-111

SCJ-2227

34 M/S Maxblis Construction Pvt. Ltd. v. State of U.P. 2 cases

Writ-C No. 4545 of 2019 · Allahabad High Court

Referred 1 · Not recorded 1

PROPOSITION USED

Described as similar in nature (challenge to the Clause 4.9 single-point to multiple-point conversion); this petition was directed to be listed with it. No holding of that writ was recited.

SCJ-2661

SCJ-3203

35 Mohd. Sagir v. Dakshinanchal Vidyut Vitran Nigam Ltd. & Ors. 2 cases

Writ Petition No. 55384 of 2009, decided 30.05.2014 · High Court of Judicature at Allahabad

Followed 2

PROPOSITION 1 · USED IN 1 CASE

Clauses 5.6 and 5.9 of the U.P. Electricity Supply Code, 2005 read together treat a meter tampered by the consumer as a defective meter; Clause 5.6 is therefore attracted and the licensee's contention that it is not is incorrect.

PROPOSITION 2 · USED IN 1 CASE

A Division Bench decision (dated 30.05.2014, against the same DVVNL) settling the consumer's Clause 5.6(c)(iii) rights on meter-testing choice and procedure.

SCJ-2853

SCJ-3158

36 Pankaj Kumar v. Kanpur Electric Supply Company and others 2 cases

C.M.W.P. No. 58317 of 2005, 23.9.2005 · Allahabad High Court (Single Judge)

Followed 1 · Relied on 1

PROPOSITION 1 · USED IN 1 CASE

Interpreting Section 126(6), assessment ought to have been made at one-and-a-half times the tariff and not three times as per the U.P. Electricity Supply Code, 2002.

PROPOSITION 2 · USED IN 1 CASE

On an identical issue, assessment of unauthorised use/theft is at one-and-a-half times under Section 126(6), not at thrice the tariff under the 2002 Code.

SCJ-678

SCJ-698

37 Satya Pal v. State of U.P. & Others 2 cases

2000 Cr.L.J. 569 · Allahabad High Court (Full Bench)

Followed 2

PROPOSITION 1 · USED IN 1 CASE

Same FIR-interference standard as Ajit Singh @ Muraha (earlier Full Bench).

PROPOSITION 2 · USED IN 1 CASE

Same standard as above (earlier Full Bench).

SCJ-102

SCJ-3081

38 Somai v. U.P. Power Corporation Ltd. 2 cases

Writ-C No. 47278 of 2010, judgment dated 3.3.2023 · Allahabad High Court

Relied on 2

PROPOSITION USED

Relied on by the petitioner, who prayed that this writ be disposed of in the same terms; the Court did not recite Somai's holding or say it was following that order.

SCJ-3073

SCJ-3079

39 Wig Brothers (Builders & Engineers) (P) Ltd. & Anr. v. Union of India & Ors. 2 cases

(2003) 3 Company Law Journal 328 (All) · Allahabad High Court (DB)

Relied on 2

PROPOSITION 1 · USED IN 1 CASE

Payment of interest is a necessary corollary to the retention of the amount; it is neither penal nor confiscatory.

PROPOSITION 2 · USED IN 1 CASE

Payment of interest is a necessary corollary to the retention of an amount; it is neither penal nor confiscatory.

SCJ-055

SCJ-1266

Cited in a single case (100 authorities — included for completeness)

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
40	2010 (6) ADJ 315 (DB) 2010 (6) ADJ 315 (DB)	Proposition not recorded.	SCJ-825

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
41	Abdul Gani & Anr. v. State of U.P. & Ors. Civil Misc. Writ Petition No. 15498 of 2008 Allahabad High Court (DB)	An assessment made only on the allegation of a tampered meter seal, without any evidence of how the seal was tampered or theft was effected, cannot stand.	SCJ-051
42	Abdus Salam @ A. Salam v. Election Commission of India 2004 (55) ALR 12 Allahabad High Court (DB)	There is nothing rigid about natural justice; the duty to hear does not always mean affording a personal hearing.	SCJ-032
43	Adesh Kumar Jain v. U.P. State Electricity Board 1998 LBESR-1-677 Allahabad High Court	Directors of a company cannot be made personally liable for the company's electricity dues unless the director gives an undertaking or personal guarantee for recovery from his personal assets.	SCJ-129
44	Allahabad High Court DB, Misc. Bench No. 971 of 2018 (decided 16 January 2018) Misc. Bench No. 971 of 2018 (Allahabad HC, DB) Allahabad High Court (DB)	Where a bank/financial institution auctioned property without enquiring from the electricity department about outstanding dues, it was liable to pay those dues out of the surplus sale proceeds, with directions to decide after notice to the borrower and the department.	SCJ-271
45	Alok Kumar Mittal and another v. State of U.P. And others Writ-C No. 39617 of 2017, dated 08.11.2017 Allahabad High Court	The petitioner placed reliance on this Division Bench judgment; the present order does not recite its holding.	SCJ-3217
46	Anand Kumar v. State of U.P. 2023 (3) ADJ 668 (DB) Allahabad High Court (DB)	A tenant, being an 'occupier' under Clause 2(oo), has a statutory right to apply for and obtain a connection on fulfilling the Code's conditions (mainly an indemnity bond). [SCJ-006 in this corpus.]	SCJ-021
47	Ankit Bharti v. State of U.P. Allahabad High Court (Constitution Bench)	Affirms Vinod Kumar's special-circumstances framework for direct High Court applications under s.438 Cr.P.C.	SCJ-131
48	Apex Dream Homes Pvt. Ltd. v. Managing Director, Paschimanchal Vidyut Vitran Nigam Ltd. and 2 Others Writ-C No. 17587 of 2023 Allahabad High Court	A coordinate Bench has entertained a writ involving identical issues and, after inviting counter and rejoinder affidavits, fixed it for 17.7.2023.	SCJ-3290
49	Ashim @ Hassim v. State of U.P. & Another Criminal Misc. Writ Petition No. 18729 of 2023, decided 2 December 2023 Allahabad High Court (DB)	(Relied on by the applicant for the need to specify which of several statutory offences is charged.)	SCJ-278

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
50	Benarsi Silk Palace v. Commr. of Income Tax [1964] 52 ITR 220 (All) Allahabad High Court	Jurisdiction can be conferred only by statute, not by consent or acquiescence — an assessee cannot confer jurisdiction on the Income Tax Officer by waiving a statutory notice requirement.	SCJ-049
51	Bhupendra Singh @ Bhupendra Singh Chauhan v. State of U.P. and 2 Others order dated 22.8.2019 (Division Bench) Allahabad High Court	Relied on by the licensee for maintainability. As recited, the consumer was found using electricity unauthorisedly, agreed to a compounding fee of Rs. 20,000 to avoid prosecution under Section 135, was provisionally assessed at Rs. 1,27,295, and challenged a demand notice dated 23.05.2019 for both sums on the plea that compounding ended further liability. The Bench observed: 'The argument is completely misconceived inasmuch as payment of compounding fee is in respect of offence of theft is altogether distinct...	SCJ-3293
52	Brijesh Kumar Agarwal and another v. State of U.P. and 6 others Writ-C No. 11426 of 2016, order dated 10.3.2016 Allahabad High Court	Prima facie, where the supply agreement shows the company as consumer, Clause 4.3(f)(v) recovery against directors is under challenge as ultra vires s.2(15); the recovery citation is not to be enforced against the director-petitioners, without restraining recovery against the company.	SCJ-473
53	Chandra Kumar Shah & Anr. v. The District Judge & Ors. AIR 1976 All 328 Allahabad High Court (FB)	The power to frame regulations/rules cannot be read as a source of authority to enact independent legislation or impose obligations not otherwise envisaged by the parent Act.	SCJ-053
54	Chandra Pal v. Dakshinachal Vidyut Vitran Nigam Ltd. Writ-C No. 22823 of 2019	Proposition not recorded.	SCJ-2709
55	Chunvad Pandey v. State of U.P. & Others 2008 (4) ESC 2423 Allahabad High Court	Follows the Supreme Court authorities on delay and laches.	SCJ-068
56	Civil Misc. Writ Petitions No. 13514 of 2014, 17090 of 2014 and 15122 of 2014 Allahabad High Court, decided 1 April 2014 Allahabad High Court	The LMV-6 tariff under the order dated 19.10.2012 was to be made effective from 1 November 2012 (per the UPPCL circular dated 19.5.2014 issued with reference to this judgment), with consumption on the first post-enforcement meter reading to be proportionately distributed as per the old and new tariff.	SCJ-1983
57	Committee of Management & Anr. v. Regional Deputy Director of Education, Agra & Ors. 2005 (23) LCD 441 Allahabad High Court (Full Bench, five Judges)	An authority lacking power to compel witness attendance/examine on oath, not sitting in public, and whose decisions carry no finality, does not act as a Tribunal notwithstanding its adjudicatory function.	SCJ-138

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
58	Deva Raj v. U.P. State Electricity Board, Lucknow & Ors. AIR 1977 Allahabad 452 Allahabad High Court	Under Section 51 of the Indian Electricity Act, 1910 (similar to Section 164 of the Electricity Act, 2003), read with the State notification under Section 51 and Section 10 of the Telegraph Act, the respondents have the power to install towers on land owned by a person.	SCJ-2193
59	Devendra Sharma v. State of U.P. Thru Secy. And Others Writ Petition No. 38285 of 2011 (14.07.2011) Allahabad High Court	Cited by the petitioner for the submission that the electricity department should have no objection to a connection if the tenant complies with clause 4.4(a)(i) of the 2005 Code. The Court recorded the citation but did not apply or distinguish it.	SCJ-3159
60	Dhani Ram v. Chief Engineer, Raj Ghat Project Betwa River Board (2013) 5 ADJ 691 Allahabad High Court (Division Bench)	On declining to relegate a long-pending, fully-pleaded writ to the alternative remedy.	SCJ-164
61	Dhirendra Kumar Rai v. State of U.P. 2010 (28) LCD 1248 Allahabad High Court (DB)	Surveys precedent on suspension power under Rule 4, U.P. Government Servant (Discipline & Appeal) Rules, 1999, holding suspension warranted only for allegations serious enough to attract major penalty if established.	SCJ-116
62	Division Bench, Writ Petition No. 33094 of 2016 (Allahabad High Court) Writ Petition No. 33094 of 2016 Allahabad High Court	A suit for injunction to restrain the laying of a transmission line/towers is not maintainable; the beneficiary has the power to install towers over private land and the remedy of the landowner is compensation.	SCJ-2193
63	Diwakar Dutt Bhatt v. Life Insurance Corporation of India (1998) 2 UPLBEC 1154 Allahabad High Court (Division Bench)	The bar of alternative remedy is a matter of self-imposed discipline; where the petition was entertained and pleadings exchanged, it is inexpedient to dismiss it on that ground.	SCJ-164
64	Dr. Devendra Pratap Singh & Others v. Union of India 2011 (7) ADJ 169 (DB) (LB) Allahabad High Court (Lucknow Bench, DB)	Even while deciding a private dispute, the Court may have regard to the larger public interest.	SCJ-113
65	Dr. Munni Lal v. State of U.P. and others 2011 (6) ADJ 650 (DB) Allahabad High Court (DB)	Cited by the petitioner on the plea that a demand and recovery issued before a final assessment, and without a hearing, were contrary to the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005; the Court recorded the citation, admitted the writ, and did not apply the decision.	SCJ-3120

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
66	Ghanshyam Gupta v. United India Insurance Co. Ltd. & Ors. Civil Misc. Writ Petition No. 53188 of 2011, decided 14.9.2011 Allahabad High Court	Follows the same marginal-heading-not-aid-to-construction principle.	SCJ-059
67	Harihar Cold Storage v. PVVNL & Anr. Writ - C No. 24309 of 2007, decided on 22.12.2011 Allahabad High Court	Relied on by the petitioner for the challenge to the fixed-charge demand; the Court did not discuss the decision.	SCJ-3298
68	Hazi Mohd. Yaseen v. Paschimanchal Vidyut Vitran Nigam Ltd. 2011 (10) ADJ 261 (DB) Allahabad High Court (DB)	Same procedural-fairness principle for s.126/Clause 8.1 assessment.	SCJ-117
69	Heinz India Pvt. Ltd. v. State of U.P. 2012 (4) AWC 3662 Allahabad High Court	Judicial review of administrative action is confined to legality, procedural propriety, and Wednesbury unreasonableness — illegality, irrationality, procedural impropriety, or abuse of power.	SCJ-061
70	Indresh Patel @ Indreshwar Singh v. State of U.P. & 4 Others Criminal Misc. Writ Petition No. 265 of 2023, decided 6.2.2013 (as cited) Allahabad High Court (DB)	The 24-hour requirement in the second proviso to s.135(1-A) is directory; no consequences are specified for its breach.	SCJ-278
71	Inter College Kusmaul, Gorakhpur & Anr. v. State of U.P. & Ors. 2006 (5) AWC 4436 Allahabad High Court (DB)	Expounds the maxims lex non cogit ad impossibilia, impotentia excusat legem and nemo tenetur ad impossibilia (the law does not compel the impossible).	SCJ-060
72	Interim order dated 13 June 2002 in Writ Petition No. 23728 of 2002 Writ Petition No. 23728 of 2002, order dated 13.6.2002 Allahabad High Court (DB)	Division Bench observations considered on the permanent-disconnection point; held not to be a final decision so as to be a precedent, and to have been passed on the facts of that case.	SCJ-3172
73	Jindal Poly Films Limited v. U.P. Electricity Regulatory Commission, Lucknow Writ Petition No. 2456 (MB) of 2011, decided 15.4.2011 Allahabad High Court (DB)	Regulation 8.1(i) of the 2007 Regulations, giving the Distribution Licensee a remedy of representation to the Electricity Ombudsman, is intra vires the Act, 2003, on a 'read as a whole' construction.	SCJ-043

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
74	Kali Das Wadhwani & Anr. v. Jagjiwan Das & Anr. 1985 (2) ARC 533 Allahabad High Court	Jurisdiction cannot be conferred by consent, acquiescence or waiver where there is none; these factors are relevant only to pecuniary/territorial jurisdiction, not inherent jurisdiction, the absence of which renders a decree a nullity.	SCJ-049
75	Kapil Gupta v. U.P. Power Corporation Ltd. and another Writ Petition No. 31023 of 2014 Allahabad High Court	Cited by the licensee as holding that against a final assessment the consumer has a remedy by appeal under Section 127 of the Electricity Act, 2003; the Court recorded the citation and did not relegate the writ to that appeal.	SCJ-3191
76	Khyali Singh Alias Harswaroop v. C.B.I. Criminal Misc. Bail Application No. 3979 of 2024 (order dated 19.03.2024) Allahabad High Court	Placed for the applicant: a person who does not hold the power to fulfil the request (and, on those facts, was not a public servant) may be enlarged on bail in a Prevention of Corruption Act demand case.	SCJ-543
77	Kisaan Cold Storage & Ice Factory v. Pachimanchal Vidyut Vitran Nigam Ltd. & Others Special Appeal No. 20/2016 Allahabad High Court	Recited as the law on which the licensee's representation (Case No. 180 of 2018) against the Forum order was held not maintainable before the Electricity Ombudsman. This bench did not re-decide that question.	SCJ-3240
78	L.M.L. Ltd. (U.P. Power Corporation v. L.M.L. Ltd.) 2001 All LJ 2520 Allahabad High Court (Division Bench)	Earlier Division Bench decision adjudicating the tariff/guaranteed-supply-surcharge issues between the licensee and consumers.	SCJ-155
79	Lalit Kumar Kapoor v. Kanpur Electricity Supply Company, Kanpur 2011 (10) ADJ 484 : 2012 (2) ALJ 63 Allahabad High Court	Where the period of unauthorised use could not be ascertained, the maximum period was used for the assessment.	SCJ-211
80	Lalla Ji Siyaram Smarak Madhyamik Vidyalaya v. State of U.P. Writ-C No. 4430 of 2024, order dated 17 May 2024 Allahabad High Court (coordinate Division Bench)	Quoted in full. The coordinate Bench declined to quash the Land Management Committee notice dated 3 May 2024 and directed the school to approach that Committee, which was to consider its reply of 4 May 2024 strictly in accordance with law. The quotation records that the land is Gata No. 1260 Min (0.318 hectare) in Village Baddupur, Gaon Sabha Navin Parti said to have been given only for a playground.	SCJ-3327
81	Letter dated 19.04.2018 of the Official Liquidator, High Court of Judicature at Allahabad Office of the Official Liquidator, High Court of Judicature at Allahabad	Certified that after winding up (01.12.2003) all liabilities and assets of M/s Arihant Steels had been settled with the High Court's approval, and that the Executive Engineer cannot claim any dues from the auction-purchaser, Canara Bank having been paid its dividend of Rs.1,90,29,698 in full per the High Court order dated 06.02.2014.	SCJ-2860

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
82	LML Ltd., Kanpur v. State of U.P. AIR 2001 Allahabad 321 Allahabad High Court (DB)	A tariff approved by the Regulatory Commission alone can be implemented by a licensee, which has no power to alter or vary it; a licensee circular inconsistent with the approved tariff is void and inoperative.	SCJ-094
83	M/S Apex Dream Homes Private Limited v. State of U.P. (Writ-C No. 13354 of 2023) High Court of Judicature at Allahabad	The petitioner's earlier writ, disposed of on 21.04.2023, directing the Electricity Consumers Grievance Redressal Forum, Meerut, to decide its interim-relief application in Complaint Case No. 13 of 2023 within three weeks.	SCJ-2854
84	M/s Hasan Steel Pvt. Ltd. v. Pashchimanchal Vidyut Vitran Nigam Ltd. 2008 (7) ADJ 104 Allahabad High Court	Relied on by the petitioner with Clause 8.2(x)(g) and (h); the Court did not discuss the decision.	SCJ-3201
85	M/s K.L. Concast Pvt. Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd. and others Writ-C No. 7764 of 2011, decided 24.2.2011 Allahabad High Court (Division Bench)	Additional security, being a condition for supply / load-factor rebate, cannot be held as money due or categorised as arrears; the licensee cannot on that footing deny load-factor rebate.	SCJ-697
86	M/s Kesarwani Sheetalaya & Others v. Purvanchal Vidyut Vitran Nigam Ltd. & Others Civil Misc. Writ Petition No. 2309 of 2009, decided 9.10.2009 Allahabad High Court (DB)	Where a tapping consumer had itself obtained the original consumer's consent and shared the feeder's construction cost, it stands at par with the original consumer, and a further connection through tapping to another consumer without ITS consent violates Clause 3.4(d)(ii).	SCJ-067
87	M/s KSS Electrodes Private Limited v. State of U.P. and 2 others Writ - C No. 13786 of 2023, order dated 9.5.2023 Allahabad High Court	Where an efficacious alternative remedy lies to the Consumer Grievance Redressal Forum under Clause 7.10 of the Electricity Supply Code, 2005, the writ petition is disposed of with a direction that an application under the Code filed within a short window be decided in accordance with law on merits within six weeks, ignoring delay and laches, after opportunity to all stakeholders.	SCJ-3251
88	M/S Modern Rice Mill v. MVVNL & Anr. Writ - C No. 52054 of 2010, decided on 19.10.2011 Allahabad High Court	Relied on by the petitioner for the challenge to the fixed-charge demand; the Court did not discuss the decision.	SCJ-3298
89	M/s Shiv Flour and Rice Mills v. State of U.P. & Others Civil Misc. Writ Petition No. 32927 of 2003 Allahabad High Court	Distinguishes 'service line' (Para 2.2(bb)) from 'independent feeder' (Para 2.2(ff)); without fulfilling Clause 3.4(d)'s conditions, the licensee cannot allow tapping of an independent feeder to supply another consumer running an arc/induction furnace, rolling mill or steel plant.	SCJ-067

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
90	M/s Shokumbhari Pulp & Paper Mills Ltd. v. U.P. Power Corporation Ltd. & 3 others 2014 (4) ADJ 225 Allahabad High Court (DB)	Writ Petition No. 13514 of 2014, decided 1.4.2014, finally determined the controversy as to applicability of the revised tariff rates determined by the U.P. Electricity Regulatory Commission on 19.10.2012, published on 23.10.2012 and notified on 25.10.2012; an identical challenge is allowed on the same terms.	SCJ-3144
91	M/s Shri Gautam Motors Pvt. Ltd. v. U.P. Power Corporation Ltd. Writ-C No. 12076 of 2004 (order dated 14.12.2016) Allahabad High Court (DB)	Recited in a 11.5.2023 listing order: Division Bench allowed the writ, relying on Amrawati Devi, Balwant Spinning Mills and Tata Hydro, and set aside a demand dated 19.02.2004 and a recovery bill of Rs. 5,93,227. Not applied in the reserved reasons.	SCJ-552
92	Maa Vind Vasini Industries v. Purvanchal Vidyut Vitran Nigam Ltd. 2008 (1) ADJ 75 : 2008 (2) ALJ 456 (DB) Allahabad High Court (Division Bench)	The Clause 6.8 / s.126 procedure for assessing unauthorised use — recording and disclosing the evidence and affording a hearing — must be followed before a valid assessment/demand can be made.	SCJ-158
93	Malhotra Ice Factory v. State of U.P. (Writ-C No. 8029 of 2007) High Court of Judicature at Allahabad	The petitioner's earlier writ, disposed of on 09.11.2009, quashing the assessment order dated 05.02.2007 and remitting the matter to the Assessing Authority to pass a fresh order, with liberty to test the meter.	SCJ-2858
94	Mohammad Iqbal Ansari v. State of U.P. and others (Writ Petition (Writ-C) No. 17588 of 2015) High Court of Judicature at Allahabad	The same Division Bench, following Seema Mansoor in similar circumstances, set aside an order declining an electricity connection and directed issuance of the connection.	SCJ-2852
95	Mohd. Nooruz Zaman v. Madhyanchal Vidyut Vitaran Nigam Ltd. Writ-C No. 525 of 2025 (order dated 21.01.2025) Allahabad High Court	Cited by the petitioner as a similar flat-owner case.	SCJ-506
96	Mohd. Sagir v. Dakshinanchal Vidyut Vitran Nigam Ltd. (DB) Allahabad High Court (DB)	A tampered meter is also a 'defective meter' within Clause 5.6 (read with Clause 5.9(a)(ii)); where tampering (a foreign remote-sensing device) was not visible on inspection and was established only by a subsequent committee's opening of the meter, the consumer had a right under Clause 5.6(c)(iii) to independent testing.	SCJ-064
97	Mohd. Sagir v. Dakshinanchal Vidyut Vitran Nigam Ltd. (2014) 105 ALR 603 Allahabad High Court (Division Bench)	Clause 5.6 applies to tampered meters too and the Clause 5.6(c)(iii) testing-venue option must be offered before testing.	SCJ-161

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
98	Mohit Paper Mills Ltd. & Anr. v. Pashchimanchal Vidyut Vitran Nigam Ltd. & Ors. 2012 (2) ALJ 469 Allahabad High Court	Cited by the petitioner with the other decisions in paragraph 9 for the submissions that dishonest intention to abstract electricity must be proved conclusively, that a quasi-judicial authority must record reasons, and that the inspection and seizure procedure in Clauses 8.1 and 8.2 was not followed. The Court held those decisions distinguishable on facts, while accepting that such intention must be proved conclusively.	SCJ-3309
99	Narendra Singh Panwar v. Paschimanchal Vidyut Vitran Nigam Limited WRIT-C No. 26355 of 2022, Allahabad High Court, decided 12 January 2023 Allahabad High Court (DB)	Approval of a resolution plan does not ipso facto absolve a surety/guarantor of his liability arising out of an independent contract of guarantee; a demand notice for electricity dues issued jointly against the directors of the corporate debtor (as guarantors) cannot be set aside merely because of acceptance of the resolution plan under Section 31.	SCJ-266
100	Om Narain Sahu v. U.P. Power Corporation & Others Writ Petition No. 4545 (M/B) of 2005, order dated 3.1.2013 Allahabad High Court (Lucknow Bench, DB)	Directed U.P. Power Corporation to refund dues with interest, constitute a committee for time-bound connection processes, hold disciplinary inquiry against responsible officers, with costs for departmental default/delay.	SCJ-113
101	Paschimanchal VVNL v. (owner) — judgment dated 18.11.2011 in Writ-C No. 20679 of 2010 Writ-C No. 20679 of 2010 (Allahabad HC, 18-11-2011) Allahabad High Court	The owner of premises is a 'consumer' and can be assessed under s.135 for theft on the premises even if let out; the assessment there was valid; the appeal was remanded only to examine the acquittal under Clause 8.2(X)(G)&(H).	SCJ-179
102	Pawan Kumar Agrawal v. State of U.P. & Others Writ Petition No. 31019 of 2007, judgment dated 12.10.2007 Allahabad High Court	M/s Laxmi Cotsyn Ltd. (a textile-dyeing industry) is not covered by Clause 3.4(a) and cannot be compelled to construct an independent feeder at its own cost; it is entitled to a new connection from the existing mixed feeder.	SCJ-123
103	Petitioner's further catena on alternative remedy & disputed facts Harbanslal Sahnia (2003) 2 SCC 107; Popcorn Entertainment (2007) 9 SCC 593; ABL International (2004) 3 SCC 553; Zonal Manager, Central Bank v. Devi Ispat (2010) 11 SCC 186; Gunwant Kaur (1969) 3 SCC 769; Century Spinning (1970) 1 SCC 582; Babubhai Muljibhai Patel (1974) 2 SCC 706; Arezzo Developers 2010 (6) ADJ 315; Oriental Bank of Commerce 2008 (3) ADJ 1; Ashok Kumar 2008 (6) ADJ 660; Himmatlal Harilal Mehta AIR 1954 SC 403; and, on levy requiring statutory authority, Ahmedabad Urban Development Authority (1992) 3 SCC 285, A.P. Pollution Board v. A.P. Rayons (1989) 1 SCC 44, Sri Niwas Budhaulia 2006 (1) AWC 930 Supreme Court / Allahabad HC	Cited by the petitioner for (a) alternative remedy being no bar and writ jurisdiction over disputed facts, and (b) a levy requiring specific statutory authority.	SCJ-032

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
104	Poonam Devi (Smt.) v. Chief Engineer, Electricity Board and others (2004) 3 U.P.L.B.E.C. 2292 Allahabad High Court	Similar view as Shakuntala Devi on the legally wedded wife's entitlement over a nominee second wife.	SCJ-080
105	Pooran Singh & Ors. v. State of U.P. & Ors. Writ-C No. 29995 of 2016 Allahabad High Court	The construction of transmission power service lines cannot be stopped for want of payment of compensation; an appropriate direction can be issued to the competent authority for determining the compensation and paying it to the tenure holders over whose land the towers are erected.	SCJ-2193
106	Prachi Leathers v. U.P. Power Corporation Ltd. 2003 (6) AWC 5665 Allahabad High Court	Where power is taken surreptitiously/by theft (rather than under a licensee-sanctioned surcharge arrangement), a penalty rather than a mere surcharge is attracted.	SCJ-094
107	Pradeep Kumar Singh v. U.P. State Sugar Corporation & Anr. (2002) 1 UPLBEC 705 High Court of Judicature at Allahabad	A Division Bench held that alternative remedy is not a bar where a writ petition is filed for enforcement of a fundamental right, or where there is violation of the principles of natural justice, or where the order or proceedings are wholly without jurisdiction or the vires of an Act is challenged.	SCJ-1562
108	Purvanchal Vidyut Vitran Nigam Ltd. v. Vidyut Lokpal (Electricity Ombudsman) 2008 (5) ALJ 683 : AIR 2008 All 127 Allahabad High Court (Division Bench)	An Electricity Ombudsman's award (where conciliation/mediation fails) is akin to an arbitral award and challengeable only on limited grounds similar to s.34 of the Arbitration and Conciliation Act, 1996; a settlement by conciliation is challengeable only for want of jurisdiction or fraud.	SCJ-258
109	Radha Krishna Cold Storage v. State of U.P. & Others Writ Petition No. 19574 of 2008 Allahabad High Court (DB)	An appeal under s.127 lies against an order that is in substance an assessment order under s.126, regardless of whether it is mislabelled as passed under s.135.	SCJ-111
110	Raghvendra Garg v. State of U.P. & 5 Ors. Writ C No. 14547 of 2016, order dated 14.9.2016 (DB) Allahabad High Court (DB)	In the absence of a statutory provision, no recovery can be made from the personal assets of a company's director for the company's outstanding dues.	SCJ-090
111	Rajesh Kumar Gupta v. State of U.P. 2005 (1) AWC 474 Allahabad High Court (Division Bench)	Under the provisions then in force, and in view of a temporary injunction in favour of the tenant, the electricity department could not refuse a connection to the tenant-applicant.	SCJ-236
112	Ram Bahadur v. State of U.P. and others 2016 (11) ADJ 463 Allahabad High Court	Cited by the petitioner as holding that without compliance with the procedure of 'Section 6.3' and without an opportunity of hearing, no provisional or final assessment could be made; the Court recorded the citation, found no date of hearing on the licensee's papers, and did not apply the decision to quash the assessment.	SCJ-3191

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
113	Ravi Shankar Giri Allahabad High Court	Recited in the adopted Seema Mansoor extract as having been relied on for the view that owner's consent is required; Seema Mansoor held that those judgments, having failed to notice sections 42 and 43 of the Act, the Code definition of owner/occupier, Clause 4.4(a)(i) and Annexure 4.2, do not lay down correct law.	SCJ-3178
114	Rituraj v. State of U.P. and 3 Others Writ C No. 35477 of 2016, decided 14.12.2017 Allahabad High Court	The petitioner relied on this decision, with the Electricity Supply Code, 2005, for the submission that the order of 3.2.2023 and the disconnection from 30.1.2023, without a final assessment after the provisional assessment notice of 4.6.2021, were unsustainable. The judgment does not recite what Rituraj held. The Court did not apply it; the writ was dismissed as infructuous.	SCJ-3292
115	Roshan Lal v. State of U.P. 2009 (9) ADJ 670 Allahabad High Court (Division Bench)	Existence of an alternative remedy is a self-imposed discipline, not a jurisdictional bar; dismissing a writ on that ground long after filing and exchange of pleadings may shut out the alternative remedy itself and is to be avoided.	SCJ-164
116	Sahajram Verma v. State of U.P. and others Public Interest Litigation No. 370 of 2024 Allahabad High Court	Named only inside the quoted order of 17 May 2024. Counsel for the respondents in that writ pointed out this PIL, filed for removal of alleged encroachment on Gata No. 1260 Min. The Court there observed that the complainant had a remedy under Section 67 of the U.P. Revenue Code, to be decided within 90 days after hearing all concerned, including the alleged encroacher. This Bench did not separately apply that order.	SCJ-3327
117	Sanjay Singh v. State of U.P. and others Writ-C No. 5519 of 2017 (Allahabad HC, DB), decided 09.02.2017 High Court of Judicature at Allahabad	Even where an FIR is under Section 135, assessment is carried out under Section 126 and the Special Court finally determines civil liability (Section 154(6)); the remedy is a Section 127 appeal, and the High Court declines Article 226 interference when that appeal is available.	SCJ-2224
118	Sardar Hasan Siddique v. State Transport Appellate Tribunal AIR 1986 All 132 Allahabad High Court (DB)	A tribunal of limited jurisdiction cannot derive jurisdiction apart from the statute; no consent can confer it, and any decision by such a tribunal without jurisdiction is a nullity.	SCJ-049
119	Shakuntala Devi (Smt.) v. Executive Engineer, Electricity Transmission Ist, U.P. Electricity Board, Allahabad (2001) 1 U.P.L.B.E.C. 8691 Allahabad High Court	A nomination in favour of a second wife cannot defeat the legally wedded first wife's claim to retiral benefits, provident fund, and Dying-in-Harness appointment.	SCJ-080

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
120	Sharda Oil Industries Pvt. Ltd., Nunaihi v. Appellate Authority/Superintending Engineer, U.P. State Electricity Board and Another 1994 SCC OnLine All 359 Allahabad High Court	Cited by the petitioner with the other decisions in paragraph 9 for the submissions that dishonest intention to abstract electricity must be proved conclusively, that a quasi-judicial authority must record reasons, and that the inspection and seizure procedure in Clauses 8.1 and 8.2 was not followed. The Court held those decisions distinguishable on facts, while accepting that such intention must be proved conclusively.	SCJ-3309
121	Sharvan Kumar Jain v. State of U.P. & 2 Others Writ-C No. 25372 of 2015, decided on 4.5.2015 Allahabad High Court	Cited by the licensee as another Division Bench order taking a view similar to Bhupendra Singh. No separate holding is stated, and this Court did not apply it.	SCJ-3293
122	Shwetanshu Kumar Ojha v. State of U.P. and 6 others Writ-C No.35257 of 2022 (High Court of Allahabad) High Court of Judicature at Allahabad	Earlier proceedings in which the Managing Director of Purvanchal Vidyut Vitran Nigam Ltd. appeared in person and gave an undertaking (Circular Letter dated 09.01.2023) that officials would strictly follow the U.P. Electricity Supply Code, 2005 in theft/unauthorized-use assessments, and that action would be taken against erring officials.	SCJ-2215
123	Smt. Chandrawati v. U.P. State Electricity Board 1986 All LJ 1451 Allahabad High Court (Division Bench)	Where no notice of demand was admittedly served, the consumer is entitled to a mandamus restraining recovery under the demand and recovery certificates.	SCJ-170
124	Smt. Pawan Jha @ Priya Jha v. State of U.P. (2011) 5 All WC 5176 Allahabad High Court (Division Bench)	There is no basic difference between a private sale and a development-authority allotment for arrears purposes; applying DVS Steels and Hanuman Rice Mills, the licensee may insist on clearance of the premises' arrears before a fresh connection.	SCJ-248
125	Smt. R.S. Khan v. State of U.P. & Ors. 2005 All. C.J. 985 Allahabad High Court (DB)	Cited by the petitioner regarding the 2004 assessment proceedings and subsequent orders in the connected writ litigation.	SCJ-047
126	Srichand Jain v. State of U.P. and others 2007 (2) AWC 1560 Allahabad High Court	Relied on by the petitioner with Clause 8.2(x)(g) and (h); the Court did not discuss the decision.	SCJ-3201
127	State of U.P. v. Brij Bhushan Sharma Writ Petition No. 474 (SB) of 2011 (Allahabad HC, DB) Allahabad High Court (DB)	The practice of the State filing frivolous writ petitions challenging tribunal orders is deprecated.	SCJ-039
128	State of U.P. v. Suresh Kumar Writ Petition No. 506 (S/B) of 2011 (Allahabad HC, DB) Allahabad High Court (DB)	The State and its instrumentalities should refrain from filing frivolous petitions that waste the Court's time.	SCJ-039

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
129	Torrent Power Ltd. v. State of U.P. Civil Misc. Writ Petition No. 41139 of 2012, decided 4-12-2013 (Allahabad HC) Allahabad High Court (Single Judge)	A Permanent Lok Adalat can entertain a compoundable-offence electricity dispute for conciliation, but on failure of conciliation cannot decide it on merits under s.22-C(8), because that provision ousts adjudicatory jurisdiction over any dispute relating to an offence irrespective of compoundability.	SCJ-159
130	U.P. State Electricity Board v. Smt. Lakshmi Devi Sehgal & Anr. AIR 1977 All 499 Allahabad High Court	Under the Electricity (Supply) Act, 1948, a distinction is drawn between a 'main transmission line' and a 'service line'; a prospective consumer bears only the cost of the service line, a transformer is not part of the service line, and once supply has commenced the Board must maintain the service line.	SCJ-708
131	Varun Kumar Yadav v. State of U.P. & Others 2025 (7) ADJ 710 Allahabad High Court	The 24-hour lodging requirement for a theft complaint is mandatory; a thing required to be done in a particular manner is void if done otherwise.	SCJ-278
132	Vijay Pal Singh & Another v. Dakshinanchal Vidyut Vitran Nigam Ltd & others Writ - C No. 60987 of 2005, 29.3.2010 Allahabad High Court (DB)	Unamended Code Clause 8.2(iv) assessing theft at three times the tariff was contrary to Section 126(6) (1.5 times) and ultra vires by Section 174; the petitioner was directed to pay 1.5 times the tariff applicable on the checking date. The effect of the 15.6.2007 amendment of s.126(6) to twice, without a matching Code amendment, was left open.	SCJ-678
133	Vikas Yadav v. State of U.P. and Another Writ No. 34804 of 2019 High Court of Judicature at Allahabad	If objections are filed, the Executive Engineer shall consider and decide them by a speaking order, most expeditiously, preferably within a month; any recovery shall abide that decision.	SCJ-3282
134	Vinod Kumar v. State of Uttar Pradesh Allahabad High Court (Full Bench)	Sets out the special-circumstances test for entertaining a s.438 Cr.P.C. application directly before the High Court without first approaching the Court of Sessions.	SCJ-131
135	Vishanji Tokarsi v. Collector, Kanpur Nagar 2001 (43) ALR 96 Allahabad High Court (DB)	Once a demand notice is sent by registered post under the 1958 Dues Recovery Act, a claim of non-service/non-receipt cannot be accepted; Explanation 1 to s.3 deems registered-post dispatch sufficient service.	SCJ-122
136	Vivekanand Yadav v. State of U.P. & Anr. 2010 (10) ADJ 1 (FB) Allahabad High Court (Full Bench)	Sets out the complete procedural framework for preliminary/fact-finding enquiry and final removal enquiry under s.95(1)(g) of the U.P. Panchayat Raj Act, 1947 and the 1997 Enquiry Rules, including who qualifies as 'Enquiry Officer'.	SCJ-140
137	Writ Petition No. 12748 of 2017 (decided 12 April 2017) Allahabad High Court	Proposition not recorded.	SCJ-1647

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
138	Writ Petition No. 7624 of 2021 (M/s Bismillah Rice Mill), decided on 25.03.2021 Allahabad High Court	An external device in the PT output circuit is theft under Clause 8.1 of the U.P. Electricity Supply Code, 2005, not a defective-meter case under Clause 5.6; the 28.01.2021 provisional notice was served on 02.02.2021 and no reply was filed, yet one more opportunity under Clause 8.1(a) and (b) was given.	SCJ-3235
139	Zeeshan (Jeeshan) v. State of U.P. (Civil Misc. Writ Petition No. 7074 of 2009) High Court of Judicature at Allahabad	Jeeshan's earlier writ, disposed of on 09.02.2009, permitting his objection/representation against the assessment to be decided only on his depositing 50% of the amount under citation within one month (the order-sheet records the number once as 'of 2001' and elsewhere as 'of 2009').	SCJ-2851

Table 2 — Supreme Court of India 336 authorities · 521 citations · 14 used in 5+ cases · 71 used in 2+ cases

Supreme Court authorities, ranked by distinct citing cases. Most cited: *Chandu Khamaru v. Smt. Nayan Malik* (14), *Chairman, West Bengal State Electricity Board & Ors. v. Syed Mukbul Hossain & Ors.* (10) and *Executive Engineer, Southern Electricity Supply Co. of Orissa Ltd. (SOUTHCO) v. Sri Seetaram Rice Mill* (10).

1 Chandu Khamaru v. Smt. Nayan Malik 14 cases

(2011) 12 SCC 314 · Supreme Court

Followed 2 · Relied on 6 · Applied 1 · Not recorded 5

PROPOSITION 1 · USED IN 1 CASE

A consumer has a statutory right under the Electricity Act, 2003 to apply for and obtain a supply of electricity, and the distribution licensee has a corresponding statutory obligation to supply it, notwithstanding a private dispute over the passage/right of way for the line.

PROPOSITION 2 · USED IN 1 CASE

Under Section 43(1) of the Electricity Act, 2003 a distribution licensee has a statutory duty to supply electricity to an owner or occupier of premises in its area on application, and every owner or occupier has a correlative statutory right to apply for and obtain supply.

PROPOSITION 3 · USED IN 1 CASE

Section 43(1) makes it the distribution licensee's statutory duty to supply electricity to an owner or occupier of premises in its area who applies, and every such owner or occupier has a corresponding statutory right to apply for and obtain that supply.

PROPOSITION 4 · USED IN 1 CASE

Under Section 43(1), a distribution licensee has a statutory duty to supply an owner or occupier who applies, and the occupier a corresponding statutory right; a family dispute does not deprive a person of a connection.

+6 further formulations in the citing summaries, to the same effect.

SCJ-027 SCJ-033 SCJ-067 SCJ-190 SCJ-210 SCJ-265 SCJ-505 SCJ-506 SCJ-511 SCJ-517 SCJ-1576 SCJ-2860 SCJ-3242 SCJ-3296

2 Chairman, West Bengal State Electricity Board & Ors. v. Syed Mukbul Hossain & Ors. 10 cases

(2009) 2 SCC 727 · Supreme Court

Followed 10

PROPOSITION 1 · USED IN 8 CASES

In the matter of theft of electrical energy, the assessment is referable to Section 126 and appeal is to be filed under Section 127.

PROPOSITION 2 · USED IN 1 CASE

In the matter of theft of electrical energy the assessment is referable to Section 126 and appeal is to be filed under Section 127 (paras 4 and 6).

PROPOSITION 3 · USED IN 1 CASE

In a theft-of-electricity case, the Supreme Court noted the right of appeal under s.127 of the Electricity Act, 2003.

SCJ-069

SCJ-111

SCJ-3107

SCJ-3108

SCJ-3109

SCJ-3110

SCJ-3111

SCJ-3112

SCJ-3113

SCJ-3114

3 Executive Engineer, Southern Electricity Supply Co. of Orissa Ltd. (SOUTHCO) v. Sri Seetaram Rice Mill 10 cases

(2012) 2 SCC 108 · Supreme Court

Followed 4 · Relied on 4 · Distinguished 1 · Referred 1

PROPOSITION 1 · USED IN 1 CASE

Section 126 requires the assessing officer to inspect, form a conclusion of unauthorised use, provisionally assess, serve the order, hear objections, and pass a final assessment; a Section 127 appeal lies only against that final order. The High Court may entertain a writ against a provisional assessment on a jurisdictional issue, but must then remand merits to the assessing officer and not determine the demand.

PROPOSITION 2 · USED IN 1 CASE

Sections 126-127 of the Electricity Act, 2003 constitute a complete code; 'unauthorised use of electricity' under Explanation (b) is not exhaustively defined by its five sub-clauses and must be purposively construed to cover excess-load consumption regardless of tariff-category change; overdrawal is prejudicial to the public at large as it threatens the entire supply system.

PROPOSITION 3 · USED IN 1 CASE

Sections 126 and 135 of the 2003 Act operate in different, distinct fields with no common premise in law — s.126 covers unauthorised use even absent dishonest intent (a civil-law remedy without mens rea), while s.135 requires dishonest intent and falls within criminal jurisprudence; s.126 is intended to cover cases 'over and above' those specifically covered by s.135.

PROPOSITION 4 · USED IN 1 CASE

Cited by the petitioner as a judgment of the Supreme Court. Reliance was placed on paragraphs 15, 16, 17 and 22 for a distinction between Sections 126 and 135, and for the submission that the licensee's authorities were not attracted because the case was one of theft. Those paragraphs are not quoted, and this Court did not apply them.

+6 further formulations in the citing summaries, to the same effect.

SCJ-042

SCJ-061

SCJ-111

SCJ-147

SCJ-163

SCJ-380

SCJ-2198

SCJ-2224

SCJ-2636

SCJ-3293

4 Isha Marbles v. Bihar State Electricity Board 10 cases

(1995) 2 SCC 648 · Supreme Court

Followed 4 · Distinguished 4 · Referred 2

PROPOSITION 1 · USED IN 2 CASES

A new purchaser who had no contract with the electricity supplier before purchase cannot be said to be a consumer or occupier under the Electricity Act and, for a new connection, cannot be treated as a defaulter on the previous owner's dues.

PROPOSITION 2 · USED IN 1 CASE

An auction purchaser who is a third party unconnected with the previous consumer is not a "consumer" and cannot be saddled with the previous consumer's electricity dues as a condition of supply, since electricity dues are no charge on the property; what matters is the contract of the erstwhile consumer, which cannot be enforced against a third party.

PROPOSITION 3 · USED IN 1 CASE

Absent a charge over the property or a statutory rule authorising a demand for the previous occupant's dues, an auction-purchaser seeking a fresh connection cannot be required to clear the pre-sale arrears; such a purchaser is not a 'consumer' liable for the predecessor's contractual dues.

PROPOSITION 4 · USED IN 1 CASE

It is impossible to impose on the (auction-)purchaser a liability which was not incurred by them; an auction-purchaser is not a consumer/occupier under the Electricity Act, 1910 and the previous contracting party's liability cannot be enforced against such a third party.

+5 further formulations in the citing summaries, to the same effect.

SCJ-031 SCJ-037 SCJ-122 SCJ-127 SCJ-225 SCJ-229 SCJ-268 SCJ-271 SCJ-655 SCJ-681

5 Paschimanchal Vidyut Vitran Nigam Ltd. v. DVS Steels & Alloys Pvt. Ltd. 9 cases

(2009) 1 SCC 210 · Supreme Court

Followed 2 · Relied on 3 · Applied 1 · Distinguished 2 · Referred 1

PROPOSITION 1 · USED IN 1 CASE

Electricity dues do not constitute a charge on the premises and a transferee cannot be foisted with a predecessor's dues merely by virtue of ownership; however, a distributor may validly stipulate, as a condition for a fresh connection/reconnection, that the predecessor's arrears be cleared first — such a stipulation (e.g. Clause 4.3(g)/(h) of a Supply Code) is not unreasonable or arbitrary and safeguards the distributor against unscrupulous defaulters absconding to new premises.

PROPOSITION 2 · USED IN 1 CASE

The supply of electricity is a sale of goods between the distributor and the owner/occupier who contracts for supply; a transferee or subsequent occupant with whom the supplier has no privity cannot be asked to pay the dues of a predecessor, as electricity dues are not a charge on the premises, so the supplier can neither sue nor initiate recovery against a purchaser for the vendor's outstanding dues absent a contract to the contrary.

PROPOSITION 3 · USED IN 1 CASE

Though electricity dues are not a charge on the premises and a transferee has no privity with the supplier, when a purchaser seeks a fresh connection the distributor may stipulate clearance of the arrears due on the premises as a condition of supply; if statutory rules govern such conditions the distributor may insist on their fulfilment, and so long as the conditions are not arbitrary or unreasonable courts will not interfere.

PROPOSITION 4 · USED IN 1 CASE

A transferee/subsequent occupant with no privity of contract cannot be asked to pay a predecessor's electricity dues (which are not a charge on the premises), but a distributor may stipulate clearance of the premises' arrears as a condition of a fresh connection; provisions like Clause 4.3(g)/(h), applying pro-rata on a legally sub-divided (composite) premises, are valid safeguards.

+5 further formulations in the citing summaries, to the same effect.

SCJ-031 SCJ-098 SCJ-125 SCJ-127 SCJ-248 SCJ-268 SCJ-271 SCJ-1062 SCJ-2201

6 Narinder Chand Hem Raj & Others v. Lieutenant Governor, Administrator, Union Territory, Himachal Pradesh 8 cases

1971 AIR 2399 · Supreme Court

Applied 8

PROPOSITION 1 · USED IN 5 CASES

As applied in the quoted Coordinate Bench: no direction could have been issued against the provisions of the Act and the Code by the Ombudsman.

PROPOSITION 2 · USED IN 3 CASES

No direction could have been issued against the provisions of the Act and the Code by the Ombudsman.

SCJ-490 SCJ-491 SCJ-492 SCJ-493 SCJ-494 SCJ-700 SCJ-701 SCJ-702

7 Ajmer Vidyut Vitran Nigam Ltd. v. Rahamatullah Khan 7 cases

(2020) 4 SCC 650 · Supreme Court of India

Relied on 1 · Applied 2 · Distinguished 1 · Referred 3

PROPOSITION 1 · USED IN 1 CASE

Section 56(2) of the Electricity Act, 2003 does not preclude a licensee from raising an additional/supplementary demand after the limitation period in case of a mistake or bona fide error, but does not empower it to resort to the coercive measure of disconnection to recover the additional demand; under Section 17(1)(c) of the Limitation Act, 1963 the limitation for a mistake runs from its first discovery.

PROPOSITION 2 · USED IN 1 CASE

The aspect that dues continuously shown as recoverable arrears of charges for electricity supplied are not barred by time under Section 56(2) was considered in this judgment. The High Court relied on that consideration in rejecting the time-bar plea and did not set out the ratio.

PROPOSITION 3 · USED IN 1 CASE

As recited from paragraph 9.2: where a mistake could not have been discovered with the exercise of reasonable diligence, the starting point of limitation is the date on which the mistake was discovered.

PROPOSITION 4 · USED IN 1 CASE

Under Section 56(2) a licensee is not precluded from raising a supplementary demand after two years, the limitation running from the date the mistake/escaped billing was discovered.

+3 further formulations in the citing summaries, to the same effect.

SCJ-263 SCJ-283 SCJ-384 SCJ-2862 SCJ-3276 SCJ-3320 SCJ-3326

8 Ghanshyam Mishra & Sons (P) Ltd. v. Edelweiss Asset Reconstruction Co. Ltd. 7 cases

(2021) 9 SCC 657 · Supreme Court

Followed 3 · Relied on 2 · Applied 1 · Referred 1

PROPOSITION 1 · USED IN 1 CASE

Once a resolution plan is duly approved by the Adjudicating Authority under Section 31(1), the claims provided in the plan stand frozen and bind the corporate debtor and all stakeholders; all claims not part of the plan stand extinguished and no person may initiate or continue proceedings in respect of a claim not part of the plan. Statutory dues owed to the Central/State Government or local authority, if not part of the plan, also stand extinguished.

PROPOSITION 2 · USED IN 1 CASE

Once a resolution plan is approved under Section 31(1), claims not part of the plan stand frozen and, on the date of approval, all such claims — including statutory dues owed to the Central Government, any State Government or a local authority — stand extinguished, and no proceedings in respect of pre-approval dues may be initiated or continued; the 2019 amendment to Section 31 is clarificatory and declaratory.

PROPOSITION 3 · USED IN 1 CASE

Once a resolution plan is approved under s.31(1), all claims not part of it stand extinguished and are frozen and binding on all stakeholders including governments and local authorities; the 2019 amendment to s.31 is clarificatory/declaratory and effective from the Code's inception.

PROPOSITION 4 · USED IN 1 CASE

On approval of a resolution plan under Section 31 of the Insolvency and Bankruptcy Code, 2016, all claims not forming part of the plan stand extinguished, and no person may thereafter pursue a claim not included in the resolution plan.

+3 further formulations in the citing summaries, to the same effect.

SCJ-054 SCJ-157 SCJ-160 SCJ-266 SCJ-2207 SCJ-2217 SCJ-2225

9 Whirlpool Corporation v. Registrar of Trade Marks, Mumbai 7 cases

(1998) 8 SCC 1 · Supreme Court

Followed 1 · Relied on 3 · Applied 1 · Referred 2

PROPOSITION 1 · USED IN 1 CASE

Alternative statutory remedy does not bar a writ under Article 226 in at least three contingencies — enforcement of fundamental rights, violation of natural justice, or an order wholly without jurisdiction / where the vires of an Act is challenged; exhaustion is a rule of policy, convenience and discretion, not of law.

PROPOSITION 2 · USED IN 1 CASE

Alternative statutory remedy does not bar a writ under Article 226 where there has been a violation of natural justice (or enforcement of fundamental rights, or want of jurisdiction / vires). Exhaustion is a rule of policy, convenience and discretion, not of law.

PROPOSITION 3 · USED IN 1 CASE

Alternative remedy does not operate as a bar where the petition seeks enforcement of a fundamental right, or there is violation of the principles of natural justice, or the order / proceedings are wholly without jurisdiction or the vires of an Act is challenged.

PROPOSITION 4 · USED IN 1 CASE

The alternative-remedy rule does not operate as an absolute bar where the writ petition seeks enforcement of a fundamental right, alleges violation of natural justice, or challenges an order/proceeding as wholly without jurisdiction or the vires of an Act.

+3 further formulations in the citing summaries, to the same effect.

SCJ-032 SCJ-112 SCJ-153 SCJ-163 SCJ-165 SCJ-706 SCJ-1562

10 K.C. Ninan v. Kerala State Electricity Board & Ors. 6 cases

(2023) 14 SCC 431 · Supreme Court

Followed 1 · Relied on 1 · Distinguished 1 · Referred 3

PROPOSITION 1 · USED IN 1 CASE

Electric utilities can create a charge over premises by subordinate legislation/statutory conditions of supply, enabling recovery of a previous owner's electricity arrears from a subsequent transferee; in general law absent such a condition, arrears do not automatically become a charge.

PROPOSITION 2 · USED IN 1 CASE

Electricity utilities can, by subordinate legislation or statutory conditions of supply, create a charge enabling recovery of electricity arrears from a subsequent transferee; recoupment of arrears protects the public good of electricity supply.

PROPOSITION 3 · USED IN 1 CASE

Cited by the licensee as a later three-judge decision of the Supreme Court said to have distinguished Rahamatullah Khan. The licensee also said the Section 56 plea could be raised before the Consumer Grievance Redressal Forum.

PROPOSITION 4 · USED IN 1 CASE

Described as the judgment which followed Rahamatullah Khan on the same continuous-showing aspect of Section 56(2). The High Court relied on it without extracting any holding. Cited only by those civil-appeal numbers.

+2 further formulations in the citing summaries, to the same effect.

SCJ-005

SCJ-054

SCJ-064

SCJ-384

SCJ-3320

SCJ-3326

11 Bar Council of India v. Union of India 5 cases

(2012) 8 SCC 243 · Supreme Court

Relied on 4 · Referred 1

PROPOSITION 1 · USED IN 1 CASE

Permanent Lok Adalats under Chapter VI-A of the LSA Act, 1987 have jurisdiction over disputes concerning public utility services (including supply of power) up to a pecuniary limit, in addition to and not in derogation of other fora, before the dispute is brought to a court.

PROPOSITION 2 · USED IN 1 CASE

The Permanent Lok Adalat mechanism (Chapter VI-A, Legal Services Authorities Act, 1987) for public-utility disputes provides a speedy remedy and, failing settlement, may decide on merits; it is in addition to, not in derogation of, fora created under special statutes.

PROPOSITION 3 · USED IN 1 CASE

Chapter VI-A of the LSA Act, 1987 validly confers on Permanent Lok Adalats jurisdiction to conciliate and, failing settlement, adjudicate disputes concerning public utility services (including supply of power); not violative of Article 14 or the rule of law.

PROPOSITION 4 · USED IN 1 CASE

The vires of the Chapter VI-A provisions of the Legal Services Authorities Act, 1987 (constituting Permanent Lok Adalats) were upheld.

+1 further formulation in the citing summaries, to the same effect.

SCJ-019

SCJ-025

SCJ-159

SCJ-249

SCJ-2214

12 Paschimanchal Vidyut Vitran Nigam Ltd. v. Raman Ispat (P) Ltd. 5 cases

(2023) 10 SCC 60 · Supreme Court

Followed 4 · Relied on 1

PROPOSITION 1 · USED IN 1 CASE

Section 238 of the I&B Code, being a subsequent parliamentary law with a non-obstante clause, has overriding effect on all laws in force including the Electricity Act, 2003 and the rules/regulations framed thereunder where inconsistent; the Electricity Act cannot override the Code. The licensee is granted liberty to lodge its electricity dues with the Liquidator.

PROPOSITION 2 · USED IN 1 CASE

In an IBC liquidation, the electricity utility is a secured creditor whose claim for arrears (secured by the Supply Code's charge) must be classified and paid per the s.53 waterfall mechanism; IBC s.238 overrides the Electricity Act/Supply Code despite their own non-obstante provisions (ss.173-174).

PROPOSITION 3 · USED IN 1 CASE

Section 238 of the I&B Code, being a subsequent parliamentary law with a non-obstante clause, has overriding effect on all laws in force including the Electricity Act, 2003 and the rules/regulations framed thereunder where inconsistent; the Electricity Act cannot override the Code.

PROPOSITION 4 · USED IN 1 CASE

Section 238 IBC (non-obstante) overrides the Electricity Act, 2003; the s.53 waterfall places government dues below secured/operational creditors, and Rainbow Papers (which did not notice s.53 and arose in resolution, not liquidation) is distinguishable.

+1 further formulation in the citing summaries, to the same effect.

SCJ-054

SCJ-157

SCJ-160

SCJ-267

SCJ-270

13 U.P. Power Corporation Ltd. v. Anis Ahmad 5 cases

(2013) 8 SCC 491 · Supreme Court

Followed 1 · Relied on 1 · Not recorded 3

PROPOSITION 1 · USED IN 1 CASE

The Consumer Grievance Redressal Forum and the Electricity Ombudsman are not fora competent to decide the correctness of bills / questions of assessment; a consumer's challenge to the correctness of a bill lies under the mechanism of the Electricity Supply Code (clause 6.5), not before the CGRF or the Ombudsman.

PROPOSITION 2 · USED IN 1 CASE

The Electricity Supply Code under s.50 need not provide, and does not relate to, assessment of charges for 'unauthorised use of electricity' under Section 126 or offences under Sections 135-140; these fall within Section 126/127's own separate statutory scheme.

SCJ-147

SCJ-877

SCJ-966

SCJ-1561

SCJ-1565

14 West Bengal State Electricity Distribution Co. Ltd. v. Sri Vasavi Industries Ltd. 5 cases

(2010) 3 SCC 34 · Supreme Court

Followed 3 · Distinguished 1 · Referred 1

PROPOSITION 1 · USED IN 2 CASES

In case of conflict with State legislation the IBC prevails over the State Electricity Regulation; on extinguishment of the right to recover pre-resolution dues, if a duty to supply is cast under the Electricity Act, 2003, the supplier cannot escape performing that duty and must provide the connection.

PROPOSITION 2 · USED IN 1 CASE

Almost all definitions of 'appeal' involve removal of a cause from an inferior to a superior court; an arbitrator deriving authority from private agreement does not fit the ordinary court hierarchy.

PROPOSITION 3 · USED IN 1 CASE

Cited on the distinction between security/additional security and dues/arrears.

PROPOSITION 4 · USED IN 1 CASE

On minimum-guarantee charge (under the Electricity Act, 1910).

SCJ-035

SCJ-138

SCJ-252

SCJ-267

SCJ-270

15 Dilip (Dead) through LRs v. Satish & Others 4 cases

2022 LiveLaw (SC) 570 · Supreme Court

Applied 1 · Distinguished 2 · Referred 1

PROPOSITION 1 · USED IN 1 CASE

Electricity is a basic amenity of which a person cannot be deprived; it cannot be declined to a tenant on the ground of the landlord's failure/refusal to issue a no-objection certificate, all that the supply authority is required to examine being whether the applicant is in occupation of the premises.

PROPOSITION 2 · USED IN 1 CASE

Electricity is a basic amenity of which a person cannot be deprived; a tenant's electricity connection cannot be declined on the ground of a no-objection certificate, and the supply authority is only to examine whether the applicant is in occupation of the premises in question.

PROPOSITION 3 · USED IN 1 CASE

Electricity is a basic amenity of which a person cannot be deprived; it cannot be declined to a tenant for the landlord's failure/refusal to issue an NOC — all the supply authority examines is whether the applicant is in occupation.

PROPOSITION 4 · USED IN 1 CASE

The order names the decision; it does not extract a proposition.

SCJ-021

SCJ-299

SCJ-2216

SCJ-2222

16 Duncans Industries Ltd. v. AJ Agrochem 4 cases

(2019) 9 SCC 725 · Supreme Court

Followed 1 · Referred 3

PROPOSITION 1 · USED IN 1 CASE

A special enactment's requirement (there, s.16-G of the Tea Act, 1953, requiring prior Central Government consent for winding-up) is overridden by the IBC.

PROPOSITION 2 · USED IN 1 CASE

A requirement of prior Central Government consent under s.16G of the Tea Act, 1953 for winding-up proceedings is overridden by the IBC.

PROPOSITION 3 · USED IN 1 CASE

Section 16G of the Tea Act, 1953 (requiring prior Central Government consent for winding-up proceedings) is overridden by the IBC.

PROPOSITION 4 · USED IN 1 CASE

A special enactment's requirement is overridden by the IBC.

SCJ-054

SCJ-100

SCJ-157

SCJ-160

17 Haryana State Electricity Board v. Hanuman Rice Mills 4 cases

(2010) 9 SCC 145 · Supreme Court

Followed 2 · Applied 1 · Distinguished 1

PROPOSITION 1 · USED IN 1 CASE

Summarises the position: (i) electricity arrears create no charge on the property and in general law a transferee cannot be made liable for the previous owner/occupier's dues; (ii) where statutory rules or terms of supply expressly authorise it, the supplier can demand arrears from a purchaser seeking reconnection or a fresh connection.

PROPOSITION 2 · USED IN 1 CASE

Electricity arrears do not constitute a charge over the property (following Isha Marbles); a transferee cannot be made liable for a predecessor's electricity dues absent a specific enabling clause (such as Clause 21A considered in Paramount Polymers) in the terms and conditions of supply authorising such recovery from a purchaser.

PROPOSITION 3 · USED IN 1 CASE

Electricity arrears are not a charge on the property, but where statutory rules or statutory terms and conditions of supply authorise it, the supplier may demand the previous owner's arrears from a purchaser claiming a fresh/re-connection.

PROPOSITION 4 · USED IN 1 CASE

Same arrears-follow-premises doctrine applied in the rice-mills line of cases.

SCJ-098

SCJ-125

SCJ-127

SCJ-248

18 M/s Meekin Transmission Ltd., Kanpur and another 4 cases

(2006) 3 SCC 74 · Supreme Court

Followed 1 · Relied on 2 · Distinguished 1

PROPOSITION 1 · USED IN 1 CASE

In an electricity assessment dispute, merely taking note of the objections filed is not compliance with the relevant rules; natural justice is not a straitjacket formula and varies with the circumstances.

PROPOSITION 2 · USED IN 1 CASE

Material relied upon against a consumer must be disclosed to him; mere noting of his objections is not sufficient compliance with natural justice, though no strait-jacket procedure applies.

PROPOSITION 3 · USED IN 1 CASE

Same principle: absent personal guarantee/undertaking, directors are not personally liable for a defaulting consumer-company's dues.

PROPOSITION 4 · USED IN 1 CASE

Explains the standard of reasonable opportunity of hearing in the context of an electricity assessment.

SCJ-032

SCJ-047

SCJ-051

SCJ-129

19 PTC India Ltd. v. Central Electricity Regulatory Commission 4 cases

(2010) 4 SCC 603 · Supreme Court (Constitution Bench)

Relied on 1 · Referred 3

PROPOSITION 1 · USED IN 1 CASE

Tariff/price fixation is legislative in character unless the statute makes it quasi-judicial for specified purposes (as tariff fixation under Section 62 is made appealable under Section 111).

PROPOSITION 2 · USED IN 1 CASE

Tariff fixation under Section 62 is quasi-judicial (and appealable under s.111), while Section 61 is the enabling provision for framing generic regulations.

PROPOSITION 3 · USED IN 1 CASE

The term 'tariff', though undefined in the Electricity Act, 2003, includes not only rate-fixation but also the rules and regulations relating to it.

PROPOSITION 4 · USED IN 1 CASE

Regulations, as part of the regulatory framework, intervene in and even override existing contracts between regulated entities.

SCJ-001

SCJ-010

SCJ-073

SCJ-147

20 State of A.P. & others v. Pioneer Builders, A.P. 4 cases

(2010) 4 SCC 539 · Supreme Court

Followed 3 · Referred 1

PROPOSITION 1 · USED IN 1 CASE

An Ombudsman commits jurisdictional error, absent statutory authorisation, by directing regularisation of unauthorised electricity use and refund of amounts properly charged for consumption in excess of sanctioned load, even where the licensee's own infrastructural delay contributed to the situation.

PROPOSITION 2 · USED IN 1 CASE

In the absence of a provision in the Act or Regulations, an Electricity Ombudsman commits jurisdictional error by directing regularisation of unauthorised use of electricity or refund of alleged excess charges.

PROPOSITION 3 · USED IN 1 CASE

Cited for the contention that a section 80 CPC notice is a condition precedent to a suit against the Government or its public officer and cannot be dispensed with unless urgency is shown.

PROPOSITION 4 · USED IN 1 CASE

K.C. Ninan is not applicable where the electricity authority has filed a claim in liquidation proceedings.

SCJ-054 SCJ-123 SCJ-147 SCJ-3170

21 Zandu Pharmaceutical Works Ltd. v. Mohd. Saraful Haq 4 cases

2005 SCC (Cr.) 283 · Supreme Court

Followed 2 · Not recorded 2

PROPOSITION 1 · USED IN 1 CASE

At the quashing stage only a prima facie case is examined (para 10 as cited); disputed facts go to trial.

PROPOSITION 2 · USED IN 1 CASE

At the quashing stage only a prima facie case is examined (para 10 as cited).

SCJ-343 SCJ-539 SCJ-2555 SCJ-2747

22 Ahmedabad Electricity Co. Ltd. v. Gujarat Inns Pvt. Ltd. & Ors. 3 cases

(2004) 3 SCC 587 · Supreme Court (Three-Judge Bench)

Followed 1 · Relied on 1 · Distinguished 1

PROPOSITION 1 · USED IN 1 CASE

In the absence of any statutory provision, an auction-purchaser applying for a fresh connection cannot be fastened with the previous owner's electricity dues, and a fresh connection cannot be denied on that ground.

PROPOSITION 2 · USED IN 1 CASE

In case of a fresh connection, though the premises are the same, auction-purchasers cannot be held liable to clear arrears incurred by previous owners absent a specific statutory provision.

PROPOSITION 3 · USED IN 1 CASE

An auction purchaser cannot be denied power supply for non-payment of arrears by the erstwhile company.

SCJ-012 SCJ-054 SCJ-127

23 Belwal Spinning Mills Ltd. v. U.P. State Electricity Board 3 cases

(1997) 6 SCC 740 · Supreme Court

Followed 1 · Referred 2

PROPOSITION 1 · USED IN 1 CASE

A meter-correctness dispute is decided by the Electrical Inspector, who may assess consumption for the preceding six months where the meter has ceased to be correct.

PROPOSITION 2 · USED IN 1 CASE

On the basis on which electricity charges/dues may be levied and the limits of the Board's power to raise demands.

PROPOSITION 3 · USED IN 1 CASE

Named only as a case relied on in Gautam Motors; no ratio extracted.

[SCJ-202](#)[SCJ-262](#)[SCJ-552](#)

24 Dakshin Haryana Bijli Vitran Nigam Ltd. v. Paramount Polymers (P) Ltd. 3 cases

(2006) 13 SCC 101 · Supreme Court

Distinguished 2 · Referred 1

PROPOSITION 1 · USED IN 1 CASE

Where the Terms and Conditions of Supply validly condition a fresh/reconnection on clearing a previous consumer's arrears on the premises, a purchaser cannot invoke Isha Marbles to obtain a fresh connection without clearing those arrears; but the arrears remain tied to the premises/reconnection process, with any transferee payment adjusted against (and refundable if later recovered from) the original defaulter.

PROPOSITION 2 · USED IN 1 CASE

Where the statutory terms and conditions of supply contain a clause (e.g. Clause 21A) requiring arrears to be cleared before reconnection/new connection, the arrears are recoverable from the transferee; Isha Marbles is distinguishable in such a case.

PROPOSITION 3 · USED IN 1 CASE

Where a specific clause deals with electricity dues, a transferee who desires the service connection must pay the outstanding dues, and a reconnection or new connection shall not be given to premises with arrears unless so declared in advance.

[SCJ-031](#)[SCJ-063](#)[SCJ-271](#)

25 Ferro Alloys Corporation Limited v. A.P. State Electricity Board 3 cases

1993 Supp (4) SCC 136 · Supreme Court

Relied on 2 · Referred 1

PROPOSITION 1 · USED IN 1 CASE

The true nature of the security transaction is an advance payment of charges for consumption estimated for about three months, to be made good and kept at the stipulated level; the consumer may permit adjustment of the advance.

PROPOSITION 2 · USED IN 1 CASE

The true nature of a security deposit is an advance payment of charges (a running current account); the relationship between consumer and licensee is that of depositor and depositee, not debtor and creditor.

PROPOSITION 3 · USED IN 1 CASE

The true nature of the transaction is one of advance payment of charges for consumption of electricity estimated for a period of approximately three months, to be kept made good from month to month.

[SCJ-252](#)[SCJ-697](#)[SCJ-1979](#)

26 Innovative Industries Ltd. v. ICICI Bank 3 cases

(2018) 1 SCC 407 · Supreme Court

Followed 1 · Referred 2

PROPOSITION 1 · USED IN 1 CASE

Section 238 of the IBC, containing the widest possible non-obstante clause, ensures that no right of the corporate debtor under any other law can come in the way of the Code.

PROPOSITION 2 · USED IN 1 CASE

The IBC, by its non-obstante clause (Section 238), has overriding effect over any other law for the time being in force in case of inconsistency.

PROPOSITION 3 · USED IN 1 CASE

The IBC is a complete, self-contained code with overriding effect over inconsistent State/other laws.

SCJ-054 SCJ-160 SCJ-267

27 J.M.D. Alloys Ltd. v. Bihar State Electricity Board

3 cases

(2003) 5 SCC 226 : AIR 2003 SC 1354 · Supreme Court

Distinguished 3

PROPOSITION 1 · USED IN 1 CASE

Mere acceptance of a police final report by the Magistrate does not amount to a finding by the criminal court that theft of electricity was not committed, where the accused was not summoned, no charge was framed and no evidence recorded.

PROPOSITION 2 · USED IN 1 CASE

Where the period of unauthorised use cannot be established, the maximum (fallback) period may be taken for computing the assessment.

PROPOSITION 3 · USED IN 1 CASE

Cited by the petitioner for restoration of supply following an acquittal on the theft charge.

SCJ-211 SCJ-247 SCJ-2227

28 Khem Chand v. Union of India

3 cases

AIR 1958 SC 300 · Supreme Court

Relied on 1 · Referred 2

PROPOSITION 1 · USED IN 1 CASE

A 'reasonable opportunity of hearing' includes the opportunity to defend oneself by cross-examining the witnesses produced against him, to examine himself or other witnesses in support of his defence, and to make representation as to why the proposed action should not be taken.

PROPOSITION 2 · USED IN 1 CASE

A 'reasonable opportunity' of showing cause includes an opportunity of a personal hearing (in the service-inquiry context).

PROPOSITION 3 · USED IN 1 CASE

Lays down the content and standard of 'reasonable opportunity' of hearing to be afforded before an adverse order.

SCJ-032 SCJ-047 SCJ-1268

29 Madhya Pradesh Electricity Board v. Smt. Basantibai

3 cases

(1988) 1 SCC 23 · Supreme Court

Followed 3

PROPOSITION 1 · USED IN 1 CASE

Where there is no allegation of tampering, a dispute whether a meter is correct or faulty falls under s.26(6) of the IEA 1910 and must be decided by the Electrical Inspector, who alone may estimate the energy consumed (not exceeding six months) and fix the amount; the Board cannot itself raise or enforce a supplementary bill pending that determination.

PROPOSITION 2 · USED IN 1 CASE

A dispute over fraud in tampering with a meter, manipulating the supply line, or breaking the meter's body seal falls outside s.26(6) of the Indian Electricity Act, 1910; an Electrical Inspector has no jurisdiction over such fraud disputes, which are distinct from genuine meter-correctness/defectiveness disputes.

PROPOSITION 3 · USED IN 1 CASE

Section 26(6) has no application where the dispute concerns fraud or tampering with the meter / breaking of the body seal.

SCJ-151 SCJ-167 SCJ-262

30 Moti Lal Padampat Sugar Mills Ltd. v. State of U.P. 3 cases

AIR 1979 SC 621 · Supreme Court

Relied on 3

PROPOSITION 1 · USED IN 2 CASES

Waiver means the intentional abandonment of a right and must be made with full knowledge of the right; there is no presumption that every person knows the law, so a right cannot be treated as waived without knowledge of it.

PROPOSITION 2 · USED IN 1 CASE

Waiver means the abandonment of a right; it must be an intentional act with full knowledge of the right, and there is no presumption that everyone knows the law.

SCJ-153 SCJ-162 SCJ-2853

31 Oryx Fisheries Pvt. Ltd. v. Union of India 3 cases

(2010) 13 SCC 427 · Supreme Court

Distinguished 3

PROPOSITION 1 · USED IN 1 CASE

Cited by the petitioner, under the spelling Orxy Fisheries, with the other decisions in paragraph 9 for the submissions that dishonest intention to abstract electricity must be proved conclusively, that a quasi-judicial authority must record reasons, and that the inspection and seizure procedure in Clauses 8.1 and 8.2 was not followed. The Court held those decisions distinguishable on facts, while accepting that such intention must be proved conclusively. It did not extract this decision.

PROPOSITION 2 · USED IN 1 CASE

A quasi-judicial authority must act with an open mind at the show-cause stage and must not confront the noticee with definite conclusions of guilt (paras 23, 24, 27 and 29 quoted).

Distinguished: in that case necessary facts were not specifically recorded in the show-cause notice.

PROPOSITION 3 · USED IN 1 CASE

A show-cause notice that pronounces the charge already 'proved beyond doubt' prejudices the issue and is bad; the noticee must not be met with a concluded mind.

SCJ-163 SCJ-3209 SCJ-3309

32 Popcorn Entertainment v. City Industrial Development Corporation 3 cases

(2007) 9 SCC 593 · Supreme Court

Referred 3

PROPOSITION 1 · USED IN 1 CASE

A writ may be entertained despite an alternative remedy where the action is without jurisdiction, or in breach of natural justice, or violates fundamental rights.

PROPOSITION 2 · USED IN 1 CASE

Reiterates the principles laid down in Whirlpool Corporation on the exceptions to the alternative-remedy rule.

PROPOSITION 3 · USED IN 1 CASE

On when a writ petition will be entertained despite the availability of an alternative statutory remedy.

SCJ-040 SCJ-158 SCJ-1562

33 R.P. Kapur v. State of Punjab 3 cases

AIR 1960 SC 866 · Supreme Court

Followed 3

PROPOSITION 1 · USED IN 1 CASE

Sets out the settled categories of cases in which the High Court's inherent power under s.482 Cr.P.C. may be exercised to quash criminal proceedings.

PROPOSITION 2 · USED IN 1 CASE

Categories in which the High Court's inherent power may be used to quash criminal proceedings; power at the pre-trial stage is used sparingly.

PROPOSITION 3 · USED IN 1 CASE

Only those cases in which no prima facie case is made out can be considered on an application under section 482 Cr.P.C.

SCJ-142 SCJ-343 SCJ-539

34 Roop Singh Negi v. Punjab National Bank 3 cases

(2009) 2 SCC 570 · Supreme Court

Relied on 3

PROPOSITION 1 · USED IN 2 CASES

Cited with Saroj Kumar Sinha and Kharak Singh for the establishment's obligation to prove charges by legal evidence in a departmental inquiry.

PROPOSITION 2 · USED IN 1 CASE

A finding of misconduct cannot rest on mere allegations/complaints unsupported by legal evidence; the charge must be proved.

SCJ-017 SCJ-548 SCJ-549

35 Southern Power Distribution Co. of Telangana Ltd. v. Gopal Agarwal 3 cases

2018 (12) SCC 644 · Supreme Court

Followed 1 · Referred 1 · Not recorded 1

PROPOSITION 1 · USED IN 1 CASE

Considered in Telangana SPDCL v. Srigdhaa Beverages on the liability of a subsequent/auction purchaser for the previous owner's electricity dues.

PROPOSITION 2 · USED IN 1 CASE

An auction purchaser (per Isha Marbles) cannot be called upon to clear a past owner's arrears as a precondition for a power connection.

SCJ-054 SCJ-271 SCJ-1955

36 State of Uttar Pradesh v. Saroj Kumar Sinha 3 cases

(2010) 2 SCC 772 · Supreme Court

Relied on 3

PROPOSITION 1 · USED IN 2 CASES

Cited for the settled principle that in a departmental inquiry the establishment must prove the charges by leading evidence; the inquiry officer is not to treat the charge-sheet as self-proving.

PROPOSITION 2 · USED IN 1 CASE

In a departmental inquiry the Establishment must prove the charges by leading evidence; an inquiry officer is not to act as a prosecutor, and charges are not self-proving.

SCJ-017

SCJ-548

SCJ-549

37 State of Uttaranchal v. Kharak Singh 3 cases

(2008) 8 SCC 236 · Supreme Court

Relied on 3

PROPOSITION 1 · USED IN 2 CASES

Cited for natural justice in disciplinary inquiries: evidence must be led and the delinquent given opportunity to meet it.

PROPOSITION 2 · USED IN 1 CASE

Natural justice in disciplinary inquiries requires evidence to be led and the delinquent given opportunity to meet it.

SCJ-017

SCJ-548

SCJ-549

38 State Tax Officer (1) v. Rainbow Papers Ltd. 3 cases

(2023) 9 SCC 545 · Supreme Court

Distinguished 3

PROPOSITION 1 · USED IN 1 CASE

A statutory first-charge provision (s.48, Gujarat VAT Act) makes the State a 'secured creditor' under the IBC, since the definition of 'secured creditor' does not exclude government/statutory charges; a resolution plan excluding such dues is not IBC-compliant and not binding on the State.

PROPOSITION 2 · USED IN 1 CASE

Certain statutory dues may partake of the character of secured debts under the relevant statute's first-charge provision.

PROPOSITION 3 · USED IN 1 CASE

Certain statutory dues may be treated as secured debts under the relevant first-charge provision.

SCJ-100

SCJ-157

SCJ-160

39 ABL International Ltd. 2 cases

(2004) 3 SCC 553 · Supreme Court

Followed 1 · Referred 1

PROPOSITION 1 · USED IN 1 CASE

A writ petition against the State or its instrumentality arising out of a contractual obligation is maintainable, and a consequential monetary claim does not bar it; but the High Court imposes self-restraint and will normally not exercise the power unless the action is arbitrary or unreasonable in violation of Article 14.

PROPOSITION 2 · USED IN 1 CASE

A writ petition against the State/instrumentality arising from a contractual obligation is maintainable notwithstanding disputed questions of fact, including for consequential monetary relief, unless action is arbitrary/unreasonable violating Article 14.

SCJ-112

SCJ-1562

40 Bombay Electric Supply and Transport Undertaking v. Laffans (India) Pvt. Ltd. & Anr. 2 cases

2005 (3) AWC 2133 (SC) · Supreme Court

Followed 2

PROPOSITION USED

Under the Indian Electricity Act, 1910, the Electrical Inspector is the appropriate person to adjudicate a dispute regarding meter accuracy underlying a bill, functioning as a form of independent statutory arbitration.

SCJ-083

SCJ-086

41 Canara Bank v. G.S. Jayarama 2 cases

2022 LiveLaw (SC) 499 · Supreme Court

Followed 1 · Relied on 1

PROPOSITION 1 · USED IN 1 CASE

Conciliation proceedings under Section 22-C of the Legal Services Authorities Act, 1987 are mandatory. Section 22-C(8) comes into effect only once an agreement under Section 22-C(7) has failed; a Permanent Lok Adalat cannot skip conciliation and adjudicate on merits, including where a party is absent (paras 26–27 as quoted).

PROPOSITION 2 · USED IN 1 CASE

A Permanent Lok Adalat's powers are wider than a Lok Adalat's; conciliation proceedings under Section 22-C are mandatory; and it may decide a dispute on merits (so long as the dispute does not relate to an offence) only after the proposed terms of settlement are not agreed to or are rejected.

SCJ-319

SCJ-2214

42 Dr. Meena Chaudhary @ Dr. Meena P.N. Singh v. BSES Rajdhani Power Ltd. 2 cases

Writ Petition (Crl.) No. 103 of 2013 (SC, 25-06-2013) · Supreme Court

Followed 1 · Relied on 1

PROPOSITION 1 · USED IN 1 CASE

A consumer's right to a new electricity connection on deposit of the estimate is independent of a disputed/undetermined theft-assessment liability, which cannot be a ground to refuse the connection.

PROPOSITION 2 · USED IN 1 CASE

Reaffirms that an occupier is entitled to a connection and the owner's consent is not an indispensable precondition.

SCJ-210

SCJ-223

43 Durga Hotel Complex v. Reserve Bank of India 2 cases

(2007) 5 SCC 120 : AIR 2007 SC 1467 · Supreme Court

Referred 2

PROPOSITION 1 · USED IN 1 CASE

On the nature and role of an Ombudsman and the scope of interference with its decisions.

PROPOSITION 2 · USED IN 1 CASE

On the nature and role of an Ombudsman.

SCJ-258

SCJ-260

44 Government of Maharashtra v. Deokar's Distillery 2 cases

(2003) 5 SCC 669 · Supreme Court of India

Followed 1 · Applied 1

PROPOSITION 1 · USED IN 1 CASE

Cited with two other Supreme Court decisions for the proposition that if the basic order is not under challenge, a consequential order cannot be subjected to challenge — applied here so that the recovery certificate could not be challenged without a challenge to the bill. The order cites 'Government of Maharastra vs. Deokar's Distillery; (2003) SCC 669'; volume completed from the standard report of the same cause title.

PROPOSITION 2 · USED IN 1 CASE

Cited for the proposition that a writ to quash a consequential order is not maintainable. Applied so that the 05.08.2022 recovery order, which only specified the method of recovering the loss already directed in the 06.07.2021 punishment, could not be independently challenged while the statutory appeal against that punishment was pending.

SCJ-3177

SCJ-3258

45 Gujarat Urja Vikas Nigam Ltd. v. Essar Power Ltd. 2 cases

(2008) 4 SCC 755 · Supreme Court

Relied on 1 · Referred 1

PROPOSITION 1 · USED IN 1 CASE

Section 86(1)(f) of the Electricity Act, 2003 is a special provision for adjudication of disputes between a licensee and a generating company and overrides the general Section 11 of the Arbitration and Conciliation Act, 1996; after the 2003 Act, such disputes can be resolved only by the State Commission or an arbitrator appointed by it.

PROPOSITION 2 · USED IN 1 CASE

Flagged that the law on Tribunal composition under the Electricity Act may call for review in light of Madras Bar Association (MJ-II).

PROPOSITION 3 · USED IN 1 CASE

Interpreted s.86(1)(f)'s 'and' as 'or' regarding SERC's licensee-generator dispute-adjudication and arbitration-referral functions.

SCJ-026

SCJ-130

46 Harbanslal Sahnia & Another 2 cases

(2003) 2 SCC 107 · Supreme Court

Followed 1 · Referred 1

PROPOSITION 1 · USED IN 1 CASE

Reiterates the Whirlpool Corporation exceptions to the alternative-remedy bar.

PROPOSITION 2 · USED IN 1 CASE

Reiterates the Whirlpool exceptions to the alternative-remedy rule.

SCJ-112

SCJ-1562

47 M/s Prem Cottex v. Uttar Haryana Bijli Vitran Nigam Ltd. 2 cases

(2021) 20 SCC 200 · Supreme Court

Referred 2

PROPOSITION 1 · USED IN 1 CASE

The petitioner relied on it for the contention that electricity dues for a period beyond two years are not recoverable under Section 56(2). The Court rejected that contention where the dues were continuously shown as recoverable arrears, and did not discuss the judgment. The report is printed as M/S Prem Cottex vs. Uttar Harayana Bijli Vitran Nigam Limited.

PROPOSITION 2 · USED IN 1 CASE

Rahamatullah Khan was distinguished on facts; the licensee was still prevented from disconnecting and left to other remedies.

SCJ-283

SCJ-3326

48 Neeharika Infrastructure Pvt. Ltd. v. State of Maharashtra 2 cases

AIR 2021 SC 1918 · Supreme Court

Followed 1 · Not recorded 1

PROPOSITION USED

Only those cases in which no prima facie case is made out can be considered on an application under section 482 Cr.P.C.

SCJ-539

SCJ-2556

49 Neeraj Datta v. State (NCT of Delhi) 2 cases

2022 Online SC 1724 · Supreme Court

Applied 2

PROPOSITION 1 · USED IN 1 CASE

As used here: mere recovery of money does not automatically attract the Prevention of Corruption Act; the ratio was held squarely attracted so that, absent a legal basis for the alleged demand, prima facie no offence under sections 7, 13(1)(B) and 13(2) was made out.

PROPOSITION 2 · USED IN 1 CASE

Counsel relied on the Constitution Bench for the proposition that mere recovery of money does not automatically attract the Prevention of Corruption Act; the Court held that ratio squarely attracted in the applicant's favour at the bail stage.

SCJ-542

SCJ-543

50 NESCO v. Raghunath Paper Mills (P) Ltd. 2 cases

(2012) 13 SCC 479 · Supreme Court

Relied on 2

PROPOSITION 1 · USED IN 1 CASE

An auction purchaser buying an official liquidator's sale 'as is where is, whatever there is' is not liable for the past owner's electricity arrears, and a request for a fresh connection cannot be rejected on that ground.

PROPOSITION 2 · USED IN 1 CASE

A connection cannot be denied to a purchaser in auction proceedings by the Official Liquidator pursuant to the direction given by the Liquidator Court for the erstwhile company's electricity dues.

SCJ-054

SCJ-2860

51 Orissa State Electricity Board v. Indian Aluminium Co. Ltd. 2 cases

2012 (9) SCC 552 · Supreme Court

Followed 1 · Referred 1

PROPOSITION 1 · USED IN 1 CASE

Quoted, as applying Madan Gopal Rungta, for the observation that a right to obtain an interlocutory injunction is not a cause of action and cannot stand on its own.

PROPOSITION 2 · USED IN 1 CASE

On the power to fix and revise electricity tariff/charges and the scope of a supplier's entitlement in such arrangements.

SCJ-156

SCJ-3258

52 R.N. Gosain v. Yashpal Dhir 2 cases

(1992) 4 SCC 683 · Supreme Court

Followed 1 · Relied on 1

PROPOSITION 1 · USED IN 1 CASE

Law does not permit a person to both approbate and reprobate — a party cannot accept an instrument as valid to obtain an advantage and then treat it as void to avoid a burden.

PROPOSITION 2 · USED IN 1 CASE

A party cannot approbate and reprobate — it cannot accept the part of a determination favourable to it and reject the unfavourable part.

SCJ-098

SCJ-156

53 Rajeev Hitendra Pathak & others v. Achyut Kashinath Karekar & another 2 cases

2011 Law Suit (SC) 871 · Supreme Court of India

Distinguished 2

PROPOSITION USED

Relied on by the licensee for the proposition that there is no power of review or recall under the Electricity Act, 2003 and that the Civil Procedure Code applies to a tribunal only to a limited extent, so the appellate authority could not have recalled or reviewed its order.

SCJ-3154

SCJ-3155

54 Ram Chandra Prasad Sharma & Others v. State of Bihar & Anr. 2 cases

AIR 1967 SC 349 · Supreme Court

Distinguished 2

PROPOSITION 1 · USED IN 1 CASE

Invoked by the revisionist for the proposition that the summoning court had to examine whether the accused's act was dishonest under Section 39 of the Indian Electricity Act, 1910.

PROPOSITION 2 · USED IN 1 CASE

In a criminal trial for theft of electrical energy under Section 39 of the Indian Electricity Act, 1910, mens rea is a relevant consideration.

SCJ-051

SCJ-637

55 Ruchi Soya Industries Ltd. v. Union of India 2 cases

(2022) 6 SCC 343 · Supreme Court

Relied on 2

PROPOSITION 1 · USED IN 1 CASE

A claim not lodged after the public announcements under ss.13 and 15 IBC does not survive; on approval of the plan all claims stand frozen and any claim not part of the plan cannot survive.

PROPOSITION 2 · USED IN 1 CASE

A claim not lodged after the public announcement does not survive; on approval of the plan all claims stand frozen.

SCJ-157

SCJ-160

56 Shiv Shakti Cooperative Housing Society v. Swaraj Developers 2 cases

(2003) 6 SCC 659 · Supreme Court

Followed 1 · Relied on 1

PROPOSITION 1 · USED IN 1 CASE

An 'appeal' is the removal of a cause from an inferior to a superior court/tribunal for review, requiring the relation of superior and inferior court and the power to review the lower forum's decision.

PROPOSITION 2 · USED IN 1 CASE

An appeal is a continuation of the original proceedings; the right of appeal is statutory and, once conferred, a vested substantive right, distinct from the inherent right to sue.

SCJ-008

SCJ-138

57 SMS Pharmaceuticals Ltd. v. Neeta Bhalla 2 cases

(2005) 8 SCC 89 · Supreme Court

Followed 1 · Distinguished 1

PROPOSITION 1 · USED IN 1 CASE

A Managing Director/Joint Managing Director is presumed responsible for a company's conduct of business under s.141(1) unless shown otherwise; the proviso defence must be established at trial.

PROPOSITION 2 · USED IN 1 CASE

A complaint under section 141 of the Negotiable Instruments Act must specifically aver that the accused was in charge of and responsible for the conduct of the company's business.

SCJ-132

SCJ-665

58 State of Bihar v. P.P. Sharma 2 cases

1992 SCC (Cri) 192 · Supreme Court

Followed 1 · Relied on 1

PROPOSITION 1 · USED IN 1 CASE

A person against whom mala fides or bias is imputed must be impleaded eo nomine and given an opportunity to meet the allegation; absent this, no enquiry into mala fides can be made.

PROPOSITION 2 · USED IN 1 CASE

Reaffirms the limited scope of s.482 Cr.P.C. quashing, confined to cases where no offence is disclosed on the face of the record.

[SCJ-051](#)[SCJ-142](#)

59 State of Haryana v. Bhajan Lal 2 cases

AIR 1992 SC 604 · Supreme Court

Followed 2

PROPOSITION 1 · USED IN 1 CASE

Courts should not interfere with investigation or quash an FIR unless no cognizable offence is ex-facie discernible from the allegations, or a statutory restriction bars the police from investigating.

PROPOSITION 2 · USED IN 1 CASE

Courts will not interfere with investigation or quash an FIR unless no cognizable offence is ex-facie discernible from the allegations, or a statutory restriction bars investigation.

[SCJ-102](#)[SCJ-3081](#)

60 State of U.P. v. Mohd. Nooh 2 cases

AIR 1958 SC 86 · Supreme Court

Referred 2

PROPOSITION 1 · USED IN 1 CASE

The rule requiring exhaustion of statutory remedies before a writ is one of policy, convenience and discretion, not of law; certiorari has issued despite the availability of other adequate legal remedies.

PROPOSITION 2 · USED IN 1 CASE

The rule requiring exhaustion of statutory remedies before a writ is one of policy, convenience and discretion, not of law; certiorari has issued despite adequate alternative remedies.

[SCJ-153](#)[SCJ-165](#)

61 Sudha v. President, Advocates Association, Chennai and Ors. 2 cases

(2010) 14 SCC 114 · Supreme Court

Followed 1 · Referred 1

PROPOSITION 1 · USED IN 1 CASE

Enumerates the distinguishing features of Courts versus Tribunals: Tribunals are statutorily created to adjudicate disputes of a specified nature and may combine judicial and technical members, unlike Courts which are exclusively manned by Judges and governed by CPC/Evidence Act procedure.

PROPOSITION 2 · USED IN 1 CASE

The legal profession is a solemn, noble calling distinct from other occupations, given its role in the administration of justice.

[SCJ-133](#)[SCJ-138](#)

62 Sumit Subhashchandra Gangwal v. State of Maharashtra 2 cases

2023 LiveLaw (SC) 373 · Supreme Court

Referred 2

PROPOSITION 1 · USED IN 1 CASE

Cited at paragraph 5 in the same sentence as Chapter 6 of the Supply Code; this Court did not extract a separate holding.

PROPOSITION 2 · USED IN 1 CASE

Cited (paragraph 5) in the run of reasons for granting bail; the order does not extract the holding.

SCJ-542

SCJ-543

63 Sundaresh Bhatt, Liquidator of ABG Shipyard v. Central Board of Indirect Taxes and Customs 2 cases

2022 SCC OnLine SC 1101 · Supreme Court

Followed 1 · Referred 1

PROPOSITION 1 · USED IN 1 CASE

IBC prevails over the Customs Act once a moratorium is imposed; the customs authority retains only a limited jurisdiction to assess duty, not to independently recover via sale/confiscation outside the IBC process.

PROPOSITION 2 · USED IN 1 CASE

IBC prevails over the Customs Act, 1962 once moratorium is imposed; the customs authority retains only a limited jurisdiction to assess duty, not to recover by sale/confiscation.

SCJ-054

SCJ-100

64 Sunil Bharati Mittal v. CBI 2 cases

(2015) 4 SCC 609 · Supreme Court

Distinguished 1 · Referred 1

PROPOSITION 1 · USED IN 1 CASE

Corporate criminal liability generally cannot be imputed to individual directors absent active personal role or an express statutory vicarious-liability provision such as s.141 NI Act.

PROPOSITION 2 · USED IN 1 CASE

There is no vicarious criminal liability unless the statute specifically provides so (para 42 as extracted).

SCJ-132

SCJ-665

65 Swastik Industries v. Maharashtra State Electricity Board 2 cases

(1997) 9 SCC 465 · Supreme Court

Followed 1 · Relied on 1

PROPOSITION 1 · USED IN 1 CASE

There is no limitation for making a demand by way of supplementary bill under s.24 of the 1910 Act; the right to file suit is a separate option, not a precondition; the word 'due' should be given a wide, commercially-honest meaning.

PROPOSITION 2 · USED IN 1 CASE

Under s.24 of the 1910 Act, the right to recover charges and the right to discontinue supply are two distinct parts.

SCJ-009

SCJ-122

66 Tata Hydro-Electric Power Supply Co. Ltd. v. Union of India 2 cases

(2003) 4 SCC 172 · Supreme Court

Referred 2

PROPOSITION 1 · USED IN 1 CASE

On the interpretation of the statutory/tariff basis for levying electricity charges.

PROPOSITION 2 · USED IN 1 CASE

Named only as a case relied on in Gautam Motors; no ratio extracted.

SCJ-202

SCJ-552

67 Tata Power Co. Ltd. v. Reliance Energy Ltd. 2 cases

(2008) 10 SCC 321 · Supreme Court

Applied 1 · Referred 1

PROPOSITION 1 · USED IN 1 CASE

On the CGRF/Ombudsman redressal scheme, directing wide advertisement of the provisions for redressal through the forum and the Electricity Ombudsman.

PROPOSITION 2 · USED IN 1 CASE

The Electricity Act, 2003 is a consumer-friendly statute enacted as a self-contained comprehensive legislation.

SCJ-009

SCJ-260

68 Tata Power Western Odisha Distribution Ltd. v. Jagannath Sponge Pvt. Ltd. 2 cases

Civil Appeal No. 5556 of 2023 · Supreme Court

Relied on 1 · Not recorded 1

PROPOSITION USED

Following Raman Ispat, a power distribution company cannot insist on payment of the corporate debtor's arrears (to be paid per the IBC waterfall mechanism) as a precondition for granting an electricity connection to the successful resolution applicant.

SCJ-054

SCJ-535

69 Telangana State Southern Power Distribution Co. Ltd. v. Srigdhaa Beverages 2 cases

(2020) 6 SCC 404 · Supreme Court

Followed 1 · Distinguished 1

PROPOSITION 1 · USED IN 1 CASE

Electricity dues, being statutory in character under the Electricity Act, 2003 and the terms and conditions of supply, cannot be waived and do not partake of the character of purely contractual dues; where the auction notice sells the property "as is where is, whatever there is and without recourse" and puts the purchaser to notice, the liability to pay the last owner's electricity dues rests on the auction purchaser, and the question of new connection or re-connection is not relevant.

PROPOSITION 2 · USED IN 1 CASE

In the context of a property auctioned by a bank under the SARFAESI Act, prior electricity dues on the premises may be recovered from / conditioned on the auction-purchaser.

SCJ-271

SCJ-2217

70 UCO Bank v. Official Liquidator 2 cases

(2004) 9 SCC 741 · Supreme Court

Relied on 1 · Distinguished 1

PROPOSITION 1 · USED IN 1 CASE

By operation of ss.529 and 529-A, workmen become secured creditors (or unsecured preferential creditors, absent a contractual secured creditor) and their dues rank pari passu with secured creditors, overriding s.530 and all other claims; a mandamus (or Article 142 power) cannot ignore substantive statutory provisions, so a supplier's dues must still be worked out under ss.529/529-A.

PROPOSITION 2 · USED IN 1 CASE

Interim order (9-2-2007) that no money be disbursed during the pendency of the special leave petition arising out of these liquidation proceedings.

PROPOSITION 3 · USED IN 1 CASE

Section 529-A overrides all other claims of creditors even where a decree has been passed by a court.

PROPOSITION 4 · USED IN 1 CASE

Cited on the rights of an auction-purchaser of a company's assets sold in liquidation.

SCJ-152

SCJ-2860

71 V.C., Banaras Hindu University v. Shrikant 2 cases

(2006) 11 SCC 42 · Supreme Court

Distinguished 2

PROPOSITION 1 · USED IN 1 CASE

A statutory authority's action, though otherwise bona fide, must be fair and reasonable; an order made in ignorance of the prescribed procedure or on extraneous considerations is vitiated in law and subject to judicial review.

PROPOSITION 2 · USED IN 1 CASE

(Cited among the mala fide-doctrine authorities; held inapplicable on facts.)

SCJ-051

SCJ-061

Cited in a single case (265 authorities — included for completeness)

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
72	A.I. Champdany Industries Ltd. (municipal dues case) Supreme Court	Municipal dues, being unsecured and not within the purview of Crown debt, do not have priority/charge over a company's assets on liquidation sale.	SCJ-098
73	A.I.S.B. Officers Federation & Others v. Union of India & Others JT 1996 (8) SC 550 Supreme Court	A petitioner cannot raise mala fide allegations against persons who have not been impleaded as respondents.	SCJ-051
74	A.K. Kraipak & Ors. v. Union of India and others AIR 1970 SC 150 Supreme Court of India	Principles of natural justice supplement the statute; an opportunity of hearing is required even where the statute is silent.	SCJ-644

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
75	A.R. Antulay v. R.S. Nayak and 38 further authorities on statutory interpretation, precedent (sub silentio/per incuriam), vires of delegated legislation, and harmonious construction (incl. Kunj Behari Lal Butail v. State of H.P.; Global Energy Ltd. v. CERC; State of T.N. v. P. Krishnamurthy; J.K. Cotton Spinning & Weaving Mills v. State of U.P.; PTC India v. CERC) (1988) 2 SCC 602 and others (omnibus list, paras 36 & 42) Supreme Court (mostly)	General canons of statutory interpretation and administrative law (reading a statute as a whole vs. section-by-section; ultra vires/consistency of subordinate legislation with the parent Act; precedential weight of a decision not engaging a specific provision) cited in support of the rival vires arguments.	SCJ-043
76	A.V. Venkateswaran, Collector of Customs v. Ramchand Sobhraj Wadhvani AIR 1961 SC 1506 Supreme Court (Constitution Bench)	The exceptions to the alternative-remedy rule are not exhaustive; a discretion vests in the High Court to entertain a petition and grant relief notwithstanding an adequate alternative remedy.	SCJ-153
77	A.V. Venkateswaran, Collector of Customs v. Ramchand Sobhraj Wadhvani Supreme Court	The exceptions to the alternative-remedy rule are not exhaustive; a discretion vests in the High Court to entertain a petition notwithstanding an adequate alternative remedy.	SCJ-706
78	Additional District Magistrate (Rev.), Delhi Admn. v. Siri Ram (2000) 5 SCC 451 Supreme Court	Conferment of rule-making power does not enable the delegate to make rules travelling beyond, inconsistent with, or repugnant to the enabling Act.	SCJ-147
79	Ahmedabad Electricity Co. Ltd. v. Gujarat Inns (P) Ltd. (2004) SCC 587 (as cited) Supreme Court	Past electricity dues are not a charge over the property; the auction-purchaser may seek supply of energy without being saddled with the previous owner's dues.	SCJ-225
80	Aleque Padamsee & Others v. Union of India & Others (2007) 6 SCC 171 Supreme Court	Where the police fail to act on information about a cognizable offence, the remedy is to file a complaint before the Magistrate under s.190/200 Cr.P.C., not a writ petition seeking a direction to register an FIR.	SCJ-118
81	Aligarh Muslim University v. Mansoor Ali Khan AIR 2000 SC 2783 Supreme Court	Following S.L. Kapoor v. Jagmohan, where on admitted/indisputable facts only one conclusion is possible, breach of natural justice need not vitiate the order (a narrow exception).	SCJ-032

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
82	Andhra Steel Corporation Ltd. v. A.P. State Electricity Board (1991) 3 SCC 263 Supreme Court	On minimum-guarantee charge (under the 1910 Act).	SCJ-035
83	Arnesh Kumar v. State of Bihar (2014) 8 SCC 273 Supreme Court	Police officers are not to arrest accused unnecessarily, nor Magistrates to authorise detention casually, for offences punishable with imprisonment of seven years or less (with or without fine); notice of appearance under Section 41-A Cr.P.C. is to be served, and arrest requires satisfaction of the Section 41 parameters with recorded reasons.	SCJ-340
84	Atam Prakash v. State of Haryana 1986 (2) SCC 249 Supreme Court	Applied prospective overruling to a statute declared ultra vires.	SCJ-128
85	Authorised Officer (Land Reforms) v. M.M. Krishnamurthy Chetty (1998) 9 SCC 138 Supreme Court	Even orders which may not be strictly legal become final and binding between the parties if they are not challenged before the superior courts; a dispute that has attained finality cannot be reopened.	SCJ-552
86	B.M. Agarwal v. Chancellor, University of Allahabad and others (2003) 6 SCC 500 Supreme Court	Quoted at para 10 (the extract also recites para 9): locus is not denied where the impugned observations adversely bear on the appellant, giving justification to appeal. Applied analogically so that Amna Khatoon, though not a party to the Forum complaint, was a party aggrieved by the recovery direction and disconnection and could appeal under Clause 7.10(iv).	SCJ-3262
87	Bachhaj Nahar v. Nilima Mandal (2008) 17 SCC 491 Supreme Court	Cited by the petitioner; no ratio extracted.	SCJ-552
88	Badri Kedar Paper (P) Ltd. v. U.P. Electricity Regulatory Commission (2009) 3 SCC 754 Supreme Court	On appeal, the Supreme Court took a different view of the licensee/tariff and surcharge questions decided by the High Court in this and connected matters.	SCJ-155
89	Balram Prasad v. Kunal Saha & Ors. Supreme Court	The court is sceptical of a strait-jacket multiplier method and may deviate from it to avoid over- or under-compensation, determining just, fair and reasonable compensation on the facts.	SCJ-025
90	Barkat Ali v. Badri Narain AIR 2008 SC 1272 Supreme Court of India	Cited with two other Supreme Court decisions for the proposition that if the basic order is not under challenge, a consequential order cannot be subjected to challenge.	SCJ-3177

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
91	Bharathidasan University & Anr. v. All-India Council for Technical Education & Ors. (2001) 8 SCC 676 Supreme Court	(Same proposition as Chandra Kumar Shah — regulation-making power is not a source of independent legislative authority.)	SCJ-053
92	Bhavnagar University v. Palitana Sugar Mills (P) Ltd. (2003) 2 SCC 111 : AIR 2003 SC 511 Supreme Court	A little difference in facts or additional facts may make a lot of difference in the precedential value of a decision.	SCJ-247
93	Bihar State Electricity Board v. Parmeshwar Kumar Agarwala (1996) 4 SCC 686 Supreme Court	The Supply Code / conditions of supply have statutory flavour and are to be strictly followed by the parties.	SCJ-032
94	Binani Zinc Ltd. v. Kerala State Electricity Board & Ors. 2009 (11) SCC 244 Supreme Court	The regulatory commission has not been empowered to frame tariff with retrospective effect covering a period before its own constitution/determination; the rule of law postulates that all laws are prospective, absent an express provision or necessary intendment to the contrary.	SCJ-066
95	Board of Trustees, Port of Mumbai v. Indian Oil Corporation 1998 (2) SCR 774 Supreme Court	Port dues under the Major Port Trust Act, 1963 override all other claims, including secured creditors, in liquidation.	SCJ-100
96	Bombay Electricity Supply and Transport Undertaking v. Laffans (India) (P) Ltd. (2005) 4 SCC 327 Supreme Court	Section 26(6) is attracted only when the meter is not correct; it does not apply to fraud/trick/tampering, and a licensee who removes the meter without a reference loses the material evidence and cannot revise the demand.	SCJ-262
97	Brahm Dutt v. Union of India Supreme Court	Where a body performs both advisory/regulatory and adjudicatory functions, it may be appropriate (though a matter for legislative wisdom) to create two separate bodies.	SCJ-130
98	BSES Ltd. v. Tata Power Co. Ltd. (2004) 1 SCC 195 Supreme Court	An interim arrangement, based on a prima facie view without full examination, would be subject to final adjustment with interest where a matter (there, standby charges) was pending Commission determination and remained unpaid.	SCJ-073
99	Calcutta Discount Co. Ltd v. ITO, Companies Distt. Supreme Court	Where an executive authority acts without jurisdiction and thereby subjects a person to lengthy proceedings and harassment, the High Court may issue prohibition or certiorari.	SCJ-706

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
100	Calcutta Discount Co. Ltd. v. Income Tax Officer, Companies Distt. I AIR 1961 SC 372 Supreme Court (Constitution Bench)	Where an executive authority acts without jurisdiction and thereby subjects a person to lengthy proceedings and harassment, the High Court may issue prohibition/certiorari notwithstanding the executive character of the act.	SCJ-153
101	Canara Bank v. P.R.N. Upadhyaya & Others (1998) 6 SCC 526 Supreme Court	A Banking Ombudsman (analogous statutory scheme) is bound by governing circulars/directions and cannot issue directions in ignorance of them.	SCJ-123
102	Carborundum Universal Ltd. v. CBDT 1989 Supp (2) SCC 462 Supreme Court	Where a statutory provision does not exclude natural justice, an opportunity of being heard is to be assumed, especially in quasi-judicial proceedings.	SCJ-032
103	Cauvery Water Disputes Tribunal, In re 1993 Supp (1) SCC 96(2) : AIR 1992 SC 22 Supreme Court	A legislature may remove the basis of a court's decision but cannot direct the instrumentalities of the State to disobey or disregard a court's decision.	SCJ-255
104	Central GST Delhi-III v. Delhi International Airport Ltd. Supreme Court	User Development Fee (UDF) is in the nature of a tax or cess collected to fund future projects, not consideration for a service, and is therefore not exigible to service tax.	SCJ-002
105	Chairman, SBI v. M.J. James Supreme Court	The court must consciously examine whether a party has sat over a matter and woken up to gain advantage; delay and laches are balanced accordingly.	SCJ-001
106	Chandavarkar Sita Ratna Rao v. Ashalata S. Guram (1986) 4 SCC 447 Supreme Court	A non obstante clause gives the enacting part overriding effect over the provisions mentioned in it.	SCJ-009
107	Chandigarh Administration v. Jagjit Singh 1995 (1) SCC 745; AIR 1995 SC 705 Supreme Court	The mere fact an authority passed a particular (possibly illegal) order for another similarly-situated person cannot found a discrimination-based claim to have that illegality repeated; Article 14 does not envisage negative equality.	SCJ-123
108	Chandra Kishore Jha v. Mahabir Prasad JT 1999 (7) SC 256 Supreme Court	Where a statute provides for a thing to be done in a particular manner, it must be done in that manner and no other.	SCJ-170
109	Chandroji Rao v. CIT 1970 (2) SCC 23 Supreme Court	A marginal heading cannot control the interpretation of a statutory provision.	SCJ-059

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
110	CIT v. Dhadi Sahu 1994 Supp (1) SCC 257 Supreme Court	A law changing the forum does not affect pending actions unless a contrary intention is clearly shown; the forum of appeal is a vested right, not pure procedure.	SCJ-008
111	CIT v. Monnet Ispat and Energy Ltd. (2018) 18 SCC 786 Supreme Court	Follows Innoventive Industries on the overriding effect of IBC s.238.	SCJ-054
112	CIT, Bangalore v. R. Sharadamma (1996) 8 SCC 388 Supreme Court	Where an authority is validly seized of a matter on a reference, it does not lose jurisdiction on a later amendment; change of forum is not mere procedure but a vested right.	SCJ-008
113	City Corporation Limited v. Maharashtra Electricity Regulatory Commission and Anr. 2024 SCC OnLine APTEL 103 Appellate Tribunal for Electricity	A distribution franchisee is the agent of the distribution licensee (its principal); the licensee alone is accountable to consumers and to the ERC's regulatory jurisdiction; an ERC lacks jurisdiction to adjudicate a petition filed by a franchisee, or to apply a licensee's tariff order to the franchisee directly.	SCJ-136
114	CoC of Essar Steel India Ltd. v. Satish Kumar Gupta Supreme Court	The successful resolution applicant takes over the corporate debtor on a clean slate, free from past liabilities except those specifically incorporated in the resolution plan.	SCJ-157
115	Collector, Distt. Gwalior & Anr. v. Cine Exhibitors P. Ltd. & Anr. AIR 2012 SC 1239 Supreme Court	(Follows and applies S. Sethuraman on jurisdiction not being conferrable by consent.)	SCJ-049
116	Commissioner of Central Excise, Bhavnagar v. Saurashtra Chemicals Ltd. (2007) 10 SCC 352 Supreme Court	The expression 'subject to' denotes a limitation — 'governed or affected by', 'provided that' — citing Ashok Leyland Ltd. v. State of T.N. and Black's Law Dictionary.	SCJ-053
117	Committee of Creditors of Essar Steel India Ltd. v. Satish Kumar Gupta & Ors. 2019 (16) SCR 275 Supreme Court	NCLT possesses no discretionary jurisdiction over initiation of liquidation proceedings once the statutory conditions under ss.30, 31(2), 60(5)(c) IBC are met.	SCJ-100
118	Customs Collector, Bombay v. Shantilal & Co. (M.G. Abrol, Addl. Collector of Customs, Bombay) AIR 1966 SC 197 Supreme Court of India	A remedy by way of appeal against an order of confiscation and imposition of a large penalty under the Sea Customs Act is not an effective remedy where no appeal can be filed unless the large penalty imposed has first been deposited.	SCJ-1562

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
119	D.P. Kesari v. Board of Directors of Allahabad Agricultural Institute (2009) 12 SCC 272 Supreme Court	Cited by the petitioner; no ratio extracted.	SCJ-552
120	Dakshin Haryana Bijli Vitran Nigam Ltd. v. Excel Buildcon Pvt. Ltd. (2008) 10 SCC 720 Supreme Court	Followed Paramount Polymers on recovery of arrears from a transferee where the conditions of supply so provide.	SCJ-031
121	Dehri Rohtas Light Railway Co. v. District Board, Bhojpur Supreme Court	Delay/laches: whether a party has chosen to sit over the matter to gain advantage.	SCJ-001
122	Dilip (dead) & Ors. v. Satish & Ors. Criminal Appeal No. 810 of 2022 (arising out of SLP (Crl.) No. 8917 of 2019), decided 13 May 2022 Supreme Court	Cited by the petitioner in support of a tenant/occupier's entitlement to essential services.	SCJ-272
123	Doburg Lager Breweries Pvt. Ltd. v. Dhariwal Bottle Trading Co. (1986) 2 SCC 382 Supreme Court	A Relief Undertaking Act sub-serves the public interest and prevention of unemployment, so its provisions are liberally interpreted.	SCJ-038
124	Doypack Systems Pvt. Ltd. v. Union of India (1988) 2 SCC 299 Supreme Court	Principles of statutory interpretation, including reading provisions in their context to give effect to legislative intent.	SCJ-158
125	Dr. Arun Kumar v. Nagar Nigam, Bareilly 2017 (2) ADJ 638 Supreme Court	Where a statute requires a thing to be done in a particular manner, doing it otherwise is void and illegal.	SCJ-278
126	Dr. Bal Krishna Agarwal v. State of U.P. & Ors. (1995) 1 SCC 614 Supreme Court of India	Where the writ raised a pure question of law and had been admitted and remained pending for more than five years, the High Court should not non-suit the petitioner on the ground of an available alternative remedy.	SCJ-1562
127	Dr. D.M. Surti v. State of Gujarat AIR 1969 SC 63 Supreme Court	A professional activity, carried on by an individual through personal skill and intelligence, is fundamentally distinct from a commercial activity; associated words in a statutory list take their colour from one another (noscitur a sociis).	SCJ-133

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
128	Dr. Mahachandra Prasad Singh v. Chairman, Bihar Legislative Council & Ors. (2004) 8 SCC 747 Supreme Court	A delegate's power under delegated legislation is strictly ancillary; it does not enable extension of the enactment's scope, and cannot be used to widen the Act's purposes or depart from its ends.	SCJ-147
129	Dr. U.N. Bora, Ex. Chief Executive Officer v. Assam Roller Flour Mills Association 2022 (1) SCC 101 Supreme Court of India	Under contempt jurisdiction the court is not expected to conduct a roving inquiry or go beyond the judgment allegedly violated; willful disobedience is the touchstone; disputed questions of fact can only be adjudicated before the appropriate forum, and where a distinct mechanism is provided a party must exhaust it before invoking contempt.	SCJ-2222
130	Durga Enterprises (P) Ltd. v. Principal Secretary, Govt. of U.P. (2004) 13 SCC 665 Supreme Court	Where the High Court has entertained a writ petition in which pleadings are complete, it ought to decide the case on merits rather than relegate the parties to the alternative remedy.	SCJ-164
131	Duro Felguera, S.A. v. Gangavaram Port Ltd. (2017) 9 SCC 729 Supreme Court	Section 11(6A) examination of the existence of an arbitration agreement is to be understood in a narrow sense (paras 48 and 59).	SCJ-274
132	East Coast Railway & Anr. v. Mahadev Appa Rao & Ors. 2010 (7) SCC 678 Supreme Court	Whether an enquiry/verification was necessary before an adverse order depends on the facts; the authority must be alive to the material on which it purports to decide, not act mechanically or under impulse.	SCJ-061
133	Electronics Corporation of India Ltd. v. Secretary, Revenue Department, Govt of A.P. (1999) 4 SCC 458 : AIR 1999 SC 1734 Supreme Court (Constitution Bench)	On the tests for treating a Government company/corporation as an instrumentality or 'State'.	SCJ-158
134	Energy Watchdog v. Central Electricity Regulatory Commission (2017) 14 SCC 80 Supreme Court	Whenever generation or supply of electricity is inter-State, the Central Commission is the appropriate regulator; whenever intra-State, the State Commission is — jurisdiction turns on whether generation and sale occurs within one State or more than one State.	SCJ-110
135	Executive Engineer, Electricity Distribution Division-II v. Chairman, Permanent Lok Adalat (2015) 113 ALR 603 Supreme Court	On the jurisdiction of a Permanent Lok Adalat in electricity disputes.	SCJ-159

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
136	F.N. Roy v. Collector of Customs, Calcutta AIR 1957 SC 648 Supreme Court (Constitution Bench)	There is no rule of natural justice that at every stage a person is entitled to a personal hearing.	SCJ-032
137	Federation of Railway Officers Association v. Union of India AIR 2003 SC 1344 Supreme Court	Allegations of mala fide cannot be vaguely made and must be specific; the official said to be involved must be made a party to meet the allegations.	SCJ-051
138	Garikapati Veeraya v. N. Subbiah Choudhry AIR 1957 SC 540 Supreme Court	Leading five-principle statement: the right of appeal is a vested substantive right governed by the law at the institution of the suit/proceeding, preserved through all appellate stages, and can be taken away only by express enactment or necessary intendment.	SCJ-008
139	General Officer Commanding-in-Chief & Anr. v. Dr. Subhash Chandra Yadav & Anr. (1988) 2 SCC 351 Supreme Court	For a rule to have statutory effect, it must (1) conform to the provisions of the statute under which it is framed, and (2) come within the scope of the rule-making power; failing either, the rule is void.	SCJ-147
140	GKN Driveshafts (India) Ltd. v. Income Tax Officer & Ors. (2002) 125 Taxman 963 (SC) Supreme Court of India	A challenge to a notice for (provisional) assessment is premature; the assessee should file its reply / objection rather than rush to the writ court.	SCJ-1060
141	Global Energy Limited & Anr. v. Central Electricity Regulatory Commission (2009) 15 SCC 570 Supreme Court	A general 'for carrying out the purpose of the Act' rule-making delegation cannot be exercised to bring into existence substantive rights, obligations or disabilities not contemplated by the parent Act.	SCJ-147
142	Gopaldas Udhavdas Ahuja and another v. Union of India and others (2004) 7 SCC 33 Supreme Court of India	Cited for the effect of an acquittal on the licensee's demand/assessment and the consumer's entitlement to restoration.	SCJ-2227
143	GOQII Technologies Pvt. Ltd. v. Sokrati Technologies Pvt. Ltd. (2025) 2 SCC 192 Supreme Court	Reiterates the Mayavati Trading / Duro Felguera position on the confined scope of s.11.	SCJ-274
144	Grasim Industries Ltd. v. Collector of Customs 2002 (4) SCC 297 Supreme Court	Statutory provisions must be interpreted in context, not in isolation; a construction leaving part of the statute without effect is normally rejected.	SCJ-113

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
145	Gujarat Urja Vikas Nigam Ltd. v. Tarini Infrastructure Ltd. (2016) 8 SCC 743 Supreme Court	Tariff incorporated in a power purchase agreement is not a pure act of volition alterable only by mutual consent.	SCJ-010
146	Guntaiah & Others v. Hambamma & Others (2005) 6 SCC 228 Supreme Court	Titles/marginal notes have the effect of only marginal notes and are not a legitimate aid to construction of a section or rule.	SCJ-059
147	Gunwant Kaur v. Municipal Committee, Bhatinda (1969) 3 SCC 769 Supreme Court	In a petition under Article 226 the High Court has jurisdiction to try issues both of fact and law.	SCJ-040
148	Haridwar Singh v. Bagun Sumbrui & Ors. (1973) 3 SCC 889 Supreme Court	Even a revenue-enhancing decision requires mandatory Finance Department consultation under Rules of Business if taken without the Chief Minister's involvement.	SCJ-134
149	Haryana State Electricity Board v. Hanuman Rice Mills 2010 (4) PLJR (SC) 61 Supreme Court	Electricity arrears do not constitute a charge over the property, so a transferee of premises cannot in general law be made liable for the dues of the previous owner/occupier; but where statutory rules or statutory conditions of supply authorise the supplier to demand the previous owner/occupier's arrears from a purchaser seeking re-connection or a fresh connection, the supplier can recover the arrears from the purchaser.	SCJ-268
150	Haryana State Electricity Board Vs. Hanuman Rice Mills and others 2011 (1) AWC 298 (SC)	Proposition not recorded.	SCJ-821
151	Himalayan Coop. Group Housing Society v. Balwan Singh (2015) 7 SCC 373 Supreme Court	A counsel's admission binds only if unequivocal and authorised; the client is not bound by an unauthorised concession, nor by statements on matters of law or legal conclusions; the court should ascertain authority before accepting a concession that surrenders substantial rights.	SCJ-635
152	Hindustan Zinc Ltd. v. RERC (2015) 12 SCC 611 Supreme Court	Subordinate legislation, including regulations framed under statutory authority, carries a presumption of constitutionality; the burden lies on the challenger to establish invalidity.	SCJ-110
153	HMT Ltd. v. Mudappa JT 2007 (3) SC 112 Supreme Court	Malice in law doctrine applied to administrative/service action.	SCJ-126

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
154	HMT Watches Ltd. v. M.A. Habida (2015) 11 SCC 776 Supreme Court	Whether a cheque was given as security or towards an outstanding liability is a factual question determinable only at trial, not in s.482 Cr.P.C. proceedings.	SCJ-132
155	Hoosein Kasam Dada (India) Ltd. v. State of M.P. AIR 1953 SC 221 Supreme Court	Unless the new Act expressly or by necessary implication is retrospective, the right of appeal crystallises on institution and a new deposit condition cannot be imposed.	SCJ-008
156	Hyderabad Vanaspathi Ltd. v. A.P. State Electricity Board (1998) 4 SCC 470 Supreme Court	Electricity dues under the terms and conditions of supply partake of the character of statutory dues; the agreements with individual consumers only bring the statutory terms to their notice and do not render the terms purely contractual.	SCJ-271
157	Hyderabad Vanaspathi Ltd. v. A.P. State Electricity Board (1998) 2 SCR 620 Supreme Court	Terms and conditions of supply notified by an Electricity Board under Section 49 of the Electricity (Supply) Act are statutory, not contractual; a condition for recovery of dues from a transferee is not ex facie unauthorised or unreasonable.	SCJ-031
158	I.C. Golak Nath and others v. State of Punjab 1967 AIR 1643 Supreme Court (Constitution Bench)	Introduced the doctrine of prospective overruling into Indian constitutional jurisprudence, distinguishing the Blackstonian (purely retrospective) theory from Cardozo's prospective-overruling approach.	SCJ-128
159	In Re: Expeditious Trial of Cases under Section 138 of the N.I. Act 1881 Suo Motu Writ Petition (Crl) No. 2 of 2020, decided 16.4.2021 Supreme Court (Constitution Bench)	s.145 NI Act dispenses with mandatory oral examination of witnesses on oath for the s.202 Cr.P.C. inquiry in s.138 complaints; complainant's evidence may be by affidavit.	SCJ-132
160	In re: Natural Resources Allocation, Special Reference No. 1 of 2012 (2012) 10 SCC 1 Supreme Court (Constitution Bench)	Clarifies that the binding 'law declared' under Article 141 is the ratio decidendi culled from the judgment as a whole, not every observation.	SCJ-130
161	Indian Aluminium Co. v. Kerala State Electricity Board (1975) 2 SCC 414 Supreme Court	A stipulation entered into by a public authority in exercise of a statutory power, even if it fetters future exercise of the same or another statutory power, is valid and binding on the principle of harmonious construction — but this applies only to express stipulations in exercise of statutory power, not silence in a private-contract-style term.	SCJ-134
162	Indian Aluminium Co. v. State of Kerala (1996) 7 SCC 637 : AIR 1996 SC 1431 Supreme Court	The legislature cannot by mere declaration overrule a judicial decision, but may render it ineffective by validly altering the law fundamentally and retrospectively.	SCJ-255

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
163	Indian Overseas Bank v. RCM Infrastructure Ltd. AIR Online 2022 SC 736 Supreme Court	Once CIRP is initiated and a moratorium is ordered, SARFAESI Act proceedings against the Corporate Debtor cannot continue; IBC, being a later Parliamentary code, overrides inconsistent provisions of other laws under s.238.	SCJ-090
164	Indira Sohanlal v. Custodian of Evacuee Property, Delhi AIR 1956 SC 77 Supreme Court	Observed that the right of appeal in a pending action may be a substantive vesting right, but left the question open.	SCJ-008
165	Indus Airways Private Ltd. v. Magnum Aviation Private Ltd. (2014) 12 SCC 539 Supreme Court	A cheque issued as advance payment for a purchase order later cancelled (with no goods ever supplied) does not secure a legally enforceable debt or liability; s.138 requires a subsisting debt/liability on the date of drawing.	SCJ-132
166	J.N. Banavalikar v. Municipal Corporation of Delhi AIR 1996 SC 326 Supreme Court	In the absence of impleadment of the person who allegedly passed a mala fide order, a contention of malice in fact should not be countenanced.	SCJ-051
167	Jharkhand State Electricity Board v. Laxmi Business and Cement Company Pvt. Ltd. (2014) 5 SCC 236 Supreme Court	On minimum-guarantee charge.	SCJ-035
168	K. Kishan v. Vijay Nirman Company Private Limited (2018) 17 SCC 662 Supreme Court	Upholds the primacy of IBC s.238 over the Arbitration and Conciliation Act, 1996.	SCJ-054
169	K. Shashidhar v. Indian Overseas Bank 2019 (3) SCR 845 Supreme Court	Once the conditions of s.33 IBC are met, the Adjudicating Authority must initiate liquidation as a matter of course, with no discretion to evaluate the CoC's commercial decision.	SCJ-100
170	K.K. Bhalla v. State of U.P. Supreme Court	Cited in the string of malice-in-law authorities at para 42.	SCJ-126
171	K.S. Rashid & Son v. Income Tax Investigation Commission Supreme Court	Where an alternative remedy exists it is ordinarily a sound exercise of discretion to refuse a writ, unless there are good grounds to the contrary.	SCJ-706

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
172	K.V. Rajalakshmiah Setty v. State of Mysore AIR 1961 SC 993 Supreme Court	A mere representation is not an adequate explanation for delay in approaching the court.	SCJ-068
173	Kanpur Electricity Supply Co. Ltd. v. LML Ltd. (2010) 6 SCC 165 Supreme Court	Affirmed this judgment: under Clause 4.41 read with the unamended Clause 4.49 the load reduction stood approved on the licensee's decision of 19.4.2006, and the consumer was entitled to have its load treated as reduced.	SCJ-246
174	Karnal Improvement Trust v. Prakashwanti (1995) 5 SCC 159 Supreme Court	Acquiescence does not confer jurisdiction, and an erroneous interpretation should not be perpetuated defeating legislative intent.	SCJ-049
175	Kavita Trehan & Anr. v. Balsara Hygiene Products Ltd. (1994) 5 SCC 380 Supreme Court	The power to make restitution is inherent in every court, applying even outside Section 144 CPC.	SCJ-073
176	Kerala State Electricity Board v. Thomas Joseph @ Thomas M.J. 2022 LiveLaw (SC) 1034	Proposition not recorded.	SCJ-369
177	Kihoto Hollohan v. Zachillhu 1992 Supp (2) SCC 651 Supreme Court (Constitution Bench)	A body discharging judicial functions of far-reaching effect must have the essential 'trappings of the Court', including presence of judicial members.	SCJ-130
178	Kiran Singh v. Chaman Paswan AIR 1954 SC 340 Supreme Court	A defect of jurisdiction strikes at the very authority of the Court to pass any decree and cannot be cured even by consent of parties.	SCJ-049
179	Kunj Behari Lal Butail & Ors. v. State of H.P. & Ors. (2000) 3 SCC 40 Supreme Court	Where a general rule-making power is conferred, the object of the enactment must be found and the rules tested against whether they fall within its scope; where the delegation is not general, the rules must be protected by the limits prescribed by the parent Act.	SCJ-147
180	Kusheshwar Prasad Singh v. State of Bihar Supreme Court	An authority cannot take undue advantage of its own default in discharging a statutory duty; a wrongdoer ought not to profit from his own wrong.	SCJ-001

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
181	Kusumam Hotels (P) Ltd. v. Kerala State Electricity Board & Others Civil Appeal No. 101 of 2007, decided 16.5.2008 Supreme Court	Section 56(2) of the Electricity Act, 2003 applies only after the Act came into force; the bar of limitation does not apply to liabilities of a consumer incurred prior to the Act's commencement, given s.6 of the General Clauses Act preserving accrued liabilities on repeal.	SCJ-122
182	Lalit Chaturvedi v. State of U.P. 2024 SCC OnLine SC 171 Supreme Court	There is a growing tendency to drag civil disputes into criminal litigation, which the Court must curb.	SCJ-342
183	Lalit Kumar Jain v. Union of India & Ors. (2021) 9 SCC 321 Supreme Court	Approval of a resolution plan under s.31 IBC does not ipso facto discharge a personal guarantor of a Corporate Debtor of liability under the contract of guarantee; release of the principal borrower by an involuntary process (insolvency/liquidation) does not absolve the guarantor, whose liability arises from an independent contract.	SCJ-090
184	Laxmi Pat Surana v. Union of India & Anr. (2021) 8 SCC 481 Supreme Court	IBC is a complete, beneficiary code intended to rehabilitate the Corporate Debtor, not merely a money-recovery statute; a Corporate Debtor's guarantor liability is coextensive and coterminous with the principal borrower's obligation under s.128 of the Contract Act.	SCJ-090
185	LIC of India v. Suresh Kumar (2011) 7 SCC 491	Proposition not recorded.	SCJ-1046
186	M. Rathinaswami & Ors. v. State of Tamil Nadu & Ors. (2009) 5 SCC 625 Supreme Court	To save a statutory provision from unconstitutionality, a restricted or extended interpretation may sometimes be required.	SCJ-094
187	M.A.A. Annamalai v. State of Karnataka (2010) 8 SCC 524 Supreme Court	A person who had ceased to be a director before the alleged offences, and against whom the FIR contained no allegation, could not be compelled to face trial (para 37 as extracted).	SCJ-665
188	M.K. Shah Engineers & Contractors v. State of M.P. Supreme Court	No one may take advantage of one's own wrong; a party whose conduct disables a preceding procedural step is deemed to have waived it.	SCJ-001
189	M.P. Electricity Board and Others v. Shiv Narayan and Another (2005) 7 SCC 283 Supreme Court	An advocate's office cannot be charged additional (commercial) tariff, as the legal profession is not a commercial activity; 'non-domestic' and 'commercial' are not interchangeable terms.	SCJ-133
190	M/s Indian Maize and Chemical Ltd. v. State of Uttar Pradesh 1997 (9) SCC 462 Supreme Court of India	Relied on by the Corporation for the contention that the demand-charge relief was not in consonance with the Electricity Act / with the directions of the Apex Court and that a licensee cannot be compelled to grant concessions contrary to law.	SCJ-1061

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
191	M/S Lipton India Ltd. & Others v. Union of India & Others JT 1994 (6) SC 71 Supreme Court	Though no limitation period is prescribed for Article 226 petitions, they should ordinarily be filed within a reasonable time.	SCJ-068
192	M/S Mayavati Trading Pvt. Ltd. v. Pradyuat Deb Burman Civil Appeal No. 7023 of 2019, decided 5 September 2019 Supreme Court (3-Judge)	After the 2015 Amendment, s.11(6A) confines the referral court to a narrow examination of the existence of an arbitration agreement (Duro Felguera paras 48 and 59); the pre-2015 enquiry into accord and satisfaction stands legislatively overruled.	SCJ-274
193	M/s Womb Laboratories Pvt. Ltd. v. Vijay Ahuja Criminal Appeal Nos. 1382-1383 of 2019, decided 11.9.2019 Supreme Court	That cheques were given by way of security, and whether they secured any debt or liability, are matters of defence to be proved at trial, not grounds to quash at the threshold.	SCJ-132
194	Madhya Pradesh Electricity Board v. Union of India & Ors. 2006 (9) SCALE 194 Supreme Court	The Electricity (Supply) Act, 1948 provides for the constitution and composition of State Electricity Boards, each State being enjoined to constitute one.	SCJ-091
195	Madhya Pradesh State Cooperative Dairy Federation Ltd. v. Rajnesh Kumar Jamindar (2009) 15 SCC 221 Supreme Court	(Cited among the mala fide-doctrine authorities; held inapplicable on facts.)	SCJ-051
196	Madras Bar Association v. Union of India & Anr. (2014) 10 SCC 1 Supreme Court (Constitution Bench)	Held the National Tax Tribunal Act unconstitutional on grounds including inadequate provision for judicial members; separation of powers/judicial review are part of the basic structure.	SCJ-130
197	Mahabir Kishore v. State of M.P. (1989) 4 SCC 1 Supreme Court	Under s.17(1)(c) of the Limitation Act, 1963, in a case of relief on the ground of mistake, limitation does not begin until the plaintiff has discovered, or could with reasonable diligence have discovered, the mistake.	SCJ-009
198	Mahanta Moti Das v. S.P. Sahid Supreme Court	Where a question involves investigation of complicated facts and recording of evidence, the High Court may refuse to decide it in a writ proceeding.	SCJ-040
199	Maharashtra State Electricity Distribution Co. Ltd. v. Datar Switchgear Ltd. (2010) 10 SCC 479 Supreme Court	One cannot presume that a chairman of a company is responsible for all acts committed by or on behalf of the company.	SCJ-665

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
200	Manager, Government Branch Press v. D.B. Belliappa Supreme Court	Cited in the string of malice-in-law authorities at para 42.	SCJ-126
201	Managing Director (MIG), Hindustan Aeronautics Ltd. v. Ajit Prasad Tarway AIR 1973 SC 76 Supreme Court	The High Court's supervisory jurisdiction under Article 227 is not to be exercised to interfere with concurrent findings/orders of the courts below as if in appeal.	SCJ-018
202	Managing Director, ECIL v. B. Karunakar (1993) 4 SCC 727 Supreme Court (Constitution Bench)	Explains and limits the prospective application of Mohd. Ramzan Khan; law was 'unsettled' only until the date of that decision.	SCJ-128
203	Manik B. v. Kadapala Sreyes Reddy 2023 Live Law (SC) 642 Supreme Court	Cited in the same catena on the limited scope of inherent-power quashing at the pre-trial stage (this Court does not restate a separate holding).	SCJ-343
204	Manujendra Dutt v. Purnedu Prosad Roy Chowdhury AIR 1967 SC 1419 Supreme Court	Deletion of a provision (there, s.29 of the Calcutta Thika Tenancy Act) does not divest the forum of jurisdiction over proceedings validly transferred and pending before it, absent a contrary provision.	SCJ-008
205	Maria Cristina De Souza Sodder v. Amria Zurana Pereira Pinto (1979) 1 SCC 92 Supreme Court	The right of appeal is a substantive right that vests when the lis commences and is not affected by a repeal unless the repealing enactment expressly or by necessary implication takes it away.	SCJ-008
206	Md. Asfak Alam v. State of Jharkhand Criminal Appeal No. (S) 2207 of 2023, decided 31.07.2023 Supreme Court	Reiterates the Arnesh Kumar guidelines on arrest for offences punishable with seven years or less.	SCJ-340
207	Member, Board of Revenue v. Anthony Paul Benthall (1955) 2 SCR 842 Supreme Court	When a statute uses two different expressions in consecutive provisions, they cannot be construed as having the same meaning.	SCJ-100
208	Midnapore People's Co-op. Bank v. Chunilal Nanda (2006) 5 SCC 399 Supreme Court	Where a contempt court issues a direction in the nature of the exercise of writ-court powers, even beyond the scope of the writ court's order, a special appeal against that direction is maintainable.	SCJ-222

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
209	Mineral Area Development Authority v. Steel Authority of India Ltd. (2024) 10 SCC 1 Supreme Court (Nine-Judge Bench)	The State acts as trustee for minerals held for public benefit and retains its constitutional regulatory and taxation powers over mineral rights notwithstanding inability to alter mining-lease clauses directly.	SCJ-134
210	Mool Chand Yadav v. Roza Buland Sugar Mills 1980 (3) SCC 484 Supreme Court of India	Cited for the proposition that if a statutory appeal is decided in the appellant's favour after the impugned order has been given effect, the appeal becomes infructuous. Distinguished: in that case a stay application in the statutory appeal had been rejected; that was not the case here.	SCJ-3258
211	MRF Limited v. Manohar Parrikar (2010) 11 SCC 374 Supreme Court	Rules of Business framed under Article 166(3) are mandatory; a decision by an individual minister without the Chief Minister's knowledge, on a matter affecting State finances, is a nullity.	SCJ-134
212	Mrutunjay Pani v. Narmada Bala Sasmal AIR 1961 SC 1353 Supreme Court	Commodum ex injuria sua nemo habere debet — no one can be allowed to benefit from his own wrongful act.	SCJ-001
213	MSEDCL v. JSW Steel Ltd. Supreme Court	Captive consumers bear no additional surcharge under s.42(4) even when not drawing from the licensee; such a levy would be discriminatory.	SCJ-001
214	Mukesh Kumar Agrawal v. State of U.P. JT 2009 (13) SC 643 Supreme Court	Elaborates the malice-in-law doctrine as applicable to administrative/statutory action taken without just cause.	SCJ-126
215	Municipal Commissioner of Dum Dum Municipality v. Indian Tourism Development Corporation 1995 (5) SCC 251 Supreme Court	Statutory corporations (including Electricity Boards under the Electricity Supply Act, 1948) are distinct juristic entities with their own funds/properties, capable of contracting and being creditors/debtors independent of the Government even where government-owned.	SCJ-100
216	N. Raghvender v. State of Andhra Pradesh (2021) 18 SCC 70 Supreme Court	Section 420 IPC requires dishonest intention at the inception of the transaction. Mere breach of contract does not give rise to a Section 420 prosecution unless fraudulent or dishonest intention is shown right at the beginning; mens rea must be established (para 52 as quoted).	SCJ-342
217	Neeraj Dutt v. State (Govt. of N.C.T. Delhi) 2022 SCC Online SC 1724 Supreme Court (Constitution Bench)	Counsel relied on paragraph 68 for the demand-and-acceptance test under Section 7 of the Prevention of Corruption Act, and submitted that the test was not satisfied at this stage. The Court did not name the decision. It held, without comment on the merits, that prima facie no Section 7 offence was made out in view of the U.P. Power Corporation Ltd. order dated 19.3.2023.	SCJ-3281

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
218	New Bihar Biri Leaves Co. v. State of Bihar (1981) 1 SCC 537 Supreme Court	On the construction of commercial agreements and the ascertainment of price where the contract leaves it to be fixed.	SCJ-156
219	New Delhi Municipal Council v. Pan Singh & Others JT 2007 (4) SC 253 Supreme Court	A writ petition filed after a long time should not be entertained even if petitioners are similarly situated to those who obtained relief; delay and laches are relevant to exercise of equitable jurisdiction.	SCJ-068
220	New Okhla Industrial Development Authority v. Kendriya Karmachari Sahkari Grih Nirman Samiti 2006 (II) RJ 1365 Supreme Court	The High Court has jurisdiction under Article 226 to try issues of fact and law, but where the petition raises complex questions of fact requiring evidence, it should ordinarily decline and relegate the party to the normal remedy.	SCJ-040
221	Ningamma & Anr. v. United India Insurance Co. Ltd. Supreme Court	A claimant is entitled to determination of just and reasonable compensation under different heads.	SCJ-025
222	Nirmala Anand v. Advent Corporation (Pvt.) Ltd. Supreme Court	A party cannot take advantage of its own wrong; to permit it would confer an unfair advantage.	SCJ-001
223	Nizam's Institute of Medical Sciences v. Prasanth S. Dhananka & Ors. Supreme Court	In assessing compensation for grievous personal injury, the court strikes a balance and awards just compensation under different heads, taking guidance from Motor Vehicles Act principles.	SCJ-025
224	Orissa State Electricity Board v. Orissa Tiles Limited (1993) Supp 3 SCC 481 Supreme Court	On minimum-guarantee charge (under the 1910 Act).	SCJ-035
225	P. Chitharanja Menon v. A. Balakrishnan AIR 1977 SC 1720 Supreme Court of India	Cited with two other Supreme Court decisions for the proposition that if the basic order is not under challenge, a consequential order cannot be subjected to challenge. The order spells the name 'P.Chithranja Menon vs. A.Balakrishnan'.	SCJ-3177
226	P. Mohanan Pillai v. State of Kerala Supreme Court	Cited in the string of malice-in-law authorities at para 42.	SCJ-126
227	Padmaraje R. Kadambande v. CIT 1992 (3) SCC 432 Supreme Court	A marginal heading (e.g. 'compensation') does not control the operation or interpretation of the section.	SCJ-059

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
228	Pareena Swarup v. Union of India (2008) 14 SCC 107 Supreme Court	Discussed in the context of tribunals created to exercise functions earlier performed by regular judicial forums (PMLA Adjudicating Authority).	SCJ-130
229	Pashchimanchal Vidyut Vitran Nigam Ltd. v. DUS Steels & Alloys Pvt. Ltd. JT 2008 (12) SC 672 (decided 7.11.2008) Supreme Court	Supply of electricity is a sale of goods; a transferee/subsequent occupant with no privity cannot be asked to pay a predecessor's dues as the amount is not a charge on the premises, but when the purchaser seeks a fresh connection or enhanced load to the same premises the distributor may stipulate clearing of the past dues as a condition of supply, and such a stipulation is neither unreasonable nor arbitrary.	SCJ-225
230	Pratap Chandra Mehta v. State Bar Council of Madhya Pradesh & Ors. (2011) 9 SCC 573 Supreme Court	Courts should give delegated-legislation provisions purposive construction to perpetuate the parent Act's object, while ensuring the rules remain within the field circumscribed by that Act.	SCJ-147
231	Punjab Electricity Board v. Zora Singh Supreme Court	Cited in the string of malice-in-law authorities at para 42.	SCJ-126
232	Punjab State Electricity Board Ltd. v. Zora Singh & Others JT 2005 (7) SC 258 Supreme Court	The Board must supply electrical energy to consumers within a reasonable period, in order of seniority of application, per its own circulars/regulations, and must notify applicants of reasons for any delay.	SCJ-067
233	R.C. Cooper v. Union of India (1970) 1 SCC 248 : AIR 1970 SC 564 Supreme Court	A company registered under the Companies Act has a separate legal personality distinct from its shareholders.	SCJ-158
234	Raghunath Rai Bareja & Anr. v. Punjab National Bank & Ors. Supreme Court	The first and foremost rule of construction is the literal rule; where the provision is unambiguous, the court reads the statute as it is without adding words (approving Hiralal Ratanlal, Harshad S. Mehta and Patangrao Kadam).	SCJ-025
235	Rajiv Thapar v. Madan Lal Kapoor (2013) 3 SCC 330 Supreme Court	Paragraph 30 sets four steps for quashment under Section 482 Cr.P.C.: sterling material of the accused; that material ruling out the accusations; it being unrefuted or not justifiably refutable; and trial being an abuse of process. If all are affirmative, the High Court should quash.	SCJ-342
236	Ramakrishna Poultry (P) Ltd. v. R. Chellappan (2009) 16 SCC 743 Supreme Court	Where a landowner purchased land after a transmission-line survey/routing process was already underway, the appropriate remedy is a practical accommodation (e.g. raising line height/clearance) rather than re-routing an established transmission line, especially given the larger public interest.	SCJ-097

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
237	Ramchandra Dagdu Sonavane v. Vithu Hira Mahar (2009) 10 SCC 273 Supreme Court	The doctrine of res judicata (including constructive res judicata under Explanation IV, s.11 CPC) applies broadly, barring re-litigation of matters that were or ought to have been raised in an earlier proceeding.	SCJ-097
238	Ramesh Balkrishna Kulkarni v. State of Maharashtra (1985) 3 SCC 606 Supreme Court	Quoted in the reproduced Khyali Singh order: a 'public servant' is an authority appointed by Government or a semi-governmental body, in the pay of the same, discharging duties under government rules.	SCJ-543
239	Ramesh Singh v. Cinta Devi (1996) 3 SCC 142 Supreme Court	A vested right of appeal under the old Motor Vehicles Act is not dislodged by the new Act; the appellant may appeal without the pre-deposit required by the proviso to s.173 of the new Act.	SCJ-008
240	Rana Girders Ltd. (excise dues case) Supreme Court	A purchaser's statutory-liability undertaking limited to liabilities 'arising out of the land/building/machinery' does not extend to excise dues, which arise from manufacturing activity, not the property itself.	SCJ-098
241	Rashid Ahmed v. Municipal Board, Kairana Supreme Court	Existence of an adequate legal remedy is a factor in the grant of writs, not an absolute bar.	SCJ-706
242	Raymond Ltd. & Anr. v. M.P. Electricity Board & Ors. (2001) 1 SCC 534 Supreme Court	Where the consumer has not committed to a fixed minimum-guarantee sum, the licensee can enforce minimum-guarantee charges only by ensuring the minimum guaranteed supply; if the licensee fails to supply, the consumer is exonerated from paying minimum-guarantee charges.	SCJ-030
243	Raymond Ltd. v. State of Chhattisgarh & Ors. (2007) 3 SCALE 341 Supreme Court	Interpretation of a term in one statute cannot be done with reference to its definition contained in another statute.	SCJ-091
244	Raymonds Ltd. v. M.P. State Electricity Board (2001) 1 SCC Supreme Court	On tariff/charges payable to an electricity board and the interpretation of the governing arrangement.	SCJ-156
245	Reliance Infrastructure v. State of Maharashtra (2019) 3 SCC 352 Supreme Court	Regulatory decisions of expert bodies should be accorded deference unless shown to be wholly irrational, ultra vires the parent statute, or violative of fundamental rights.	SCJ-110

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
246	S. Sethuraman v. R. Venkataraman & Ors. AIR 2007 SC 2499 Supreme Court	If jurisdiction cannot be conferred by consent, consent equally cannot clothe an authority to exercise jurisdiction in an illegal manner.	SCJ-049
247	S.J.S. Business Enterprises (P) Ltd. v. State of Bihar (2004) 7 SCC 166 Supreme Court	A writ petition is not automatically barred merely because a parallel civil suit was filed and later withdrawn; the court may call upon the party to elect between remedies rather than dismissing outright.	SCJ-097
248	S.N. Mukherji v. Union of India AIR 1990 SC 1984	Proposition not recorded.	SCJ-641
249	S.N. Pandey v. Union of India (2012) 8 SCC 261 Supreme Court	Upholds the validity of the Permanent Lok Adalat mechanism for deciding disputes involving public utility services as an alternative dispute-resolution forum.	SCJ-019
250	S.R. Venkatraman v. Union of India AIR 1979 SC 49 Supreme Court	Malice in law means an act done wrongfully and without reasonable/probable cause, though not necessarily with ill-will; an order founded on non-existent or misrepresented facts is vitiated by malice in law.	SCJ-126
251	S.S. Balu & Another v. State of Kerala & Others 2009 (2) SCC 479 Supreme Court	Delay defeats equity.	SCJ-068
252	S.S. Bola v. B.D. Sardana (1997) 8 SCC 522 : AIR 1997 SC 3127 Supreme Court	A legislature cannot directly override a judicial decision but, under its plenary powers, may enact a law fundamentally altering the provisions that were the basis of the decision; judicial review is a basic feature.	SCJ-255
253	Sampelly Satyanarayana Rao v. Indian Renewable Energy Development Agency Ltd. (2016) 10 SCC 458 Supreme Court	A post-dated cheque given as security for loan-installment repayment matures into an instrument for a legally enforceable debt once the installment falls due and remains unpaid; the true test is whether an enforceable debt exists or has matured, not the 'security' label.	SCJ-132
254	Sanjana M. Wig v. Hindustan Petroleum Corpn. Ltd. (2005) 8 SCC 242 Supreme Court of India	A writ petition may be maintainable where the action of the party is dehors the terms of the agreement and beyond the scope and ambit of the domestic forum created thereunder.	SCJ-1562

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
255	Sanjay Kumar Rai v. State of Uttar Pradesh (2022) 15 SCC 720 Supreme Court	An order refusing discharge is not an interlocutory order barred by Section 397(2) Cr.P.C. The trial court is not a post office on a discharge application; it must sift the material for sufficient ground to try. The High Court may examine the merits of a revision against refusal of discharge.	SCJ-342
256	Satender Kumar Antil v. Central Bureau of Investigation & Another (2022) 10 SCC 51 Supreme Court	Bail applications are to be considered in accordance with the principles laid down in this decision (guidelines on arrest, appearance, and expedition of bail).	SCJ-279
257	Seth Banarsi Dass (dead) by LRs v. District Magistrate and Collector, Meerut (1996) 2 SCC 689 Supreme Court	Recovery proceedings are equivalent to execution proceedings under the CPC; an auction sale without deciding objections is a material irregularity vitiating the sale.	SCJ-170
258	Shankar Ramchandra Abhyankar v. Krishnaji Dattatraya Bapat (1970) 1 SCR 322 Supreme Court	The expression 'appeal', used in the context of revisional jurisdiction, is one mode of exercising a statutorily conferred power.	SCJ-138
259	Sharad Kumar Sanghi v. Sangita Rane (2015) 12 SCC 781 Supreme Court	Cited by the petitioner with the other director-liability authorities; the Court did not extract or discuss it.	SCJ-665
260	Sharma Transport v. Government of A.P. (2002) 2 SCC 188 : AIR 2002 SC 322 Supreme Court	There can be no promissory estoppel against a statute; a concession, even for a fixed period, can be withdrawn in public interest, and the doctrine requires a clear, positive foundation laid in the pleadings.	SCJ-155
261	Shiba Shankar Mohapatra v. State of Orissa (2010) 12 SCC 471 Supreme Court	Cited by the petitioner; no ratio extracted.	SCJ-552
262	Shiv Dass v. Union of India & Others AIR 2007 SC 1330 Supreme Court	Reiterates the same delay/laches principle.	SCJ-068
263	Shreyas Papers (P) Ltd. (Karnataka Sales Tax Act charge/notice case) Supreme Court	A statutory charge is unenforceable against a transferee without actual or constructive notice of the charge; here the purchaser had no notice of sales-tax arrears at the time of sale.	SCJ-098

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
264	Shri Sitaram Sugar Company Ltd. & Anr. v. Union of India & Ors. (1990) 3 SCC 223 Supreme Court	Any act of the repository of power is open to challenge if in conflict with the Constitution, the governing Act, or general principles of law, or so arbitrary/unreasonable that no fair-minded authority could have made it.	SCJ-061
265	Sir Chunilal V. Mehta & Sons Ltd. v. Century Spg. & Mfg. Co. Ltd. AIR 1962 SC 1314 Supreme Court (Constitution Bench)	Test for a 'substantial question of law': one of general public importance or directly and substantially affecting the parties' rights, not finally settled or free from difficulty.	SCJ-010
266	Smt. Shakuntala Devi v. Delhi Electric Supply Undertaking & Ors. (1995) 2 SCC 369 Supreme Court	A statutory electricity authority has a duty to maintain its electric installations and lines in proper condition so as to avoid any threat to the lives of people.	SCJ-019
267	Somesh Tiwari v. Union of India (2009) 2 SCC 592 Supreme Court	Malice in law/fact distinction and its application to vitiate administrative action taken on an improper or misrepresented basis.	SCJ-126
268	South Eastern Coalfields Ltd. v. State of M.P. & Ors. (2003) 8 SCC 648 Supreme Court	A party finally entitled to a monetary relief is entitled to be compensated by interest, payable even in equity/restitution (Section 144 CPC principle).	SCJ-073
269	Southern Power Distribution Company of Telengana Ltd v. Gopal Agarwal and others Civil Appeal No. 1918 of 2016 (decided 27.07.2017) Supreme Court of India	A connection cannot be denied to an auction-purchaser for the erstwhile owner's electricity dues.	SCJ-2860
270	Sripati Singh v. State of Jharkhand 2021 SCC OnLine SC 1002 Supreme Court	A cheque issued as loan-repayment security matures for presentation once the loan is not repaid by the due date; a security cheque is not a 'worthless piece of paper' in all circumstances.	SCJ-132
271	St. John's Teachers Training Institute v. Regional Director, National Council for Teacher Education & Anr. (2003) 3 SCC 321 Supreme Court	Delegated legislation may supplement, but not supplant, the parent enabling Act; what is permitted is delegation of ancillary/subordinate legislative functions or filling up of details.	SCJ-147
272	State Bank of India v. V. Ramakrishnan & Anr. (2018) 17 SCC 394 Supreme Court	The s.14 IBC moratorium applies only to the Corporate Debtor and its own assets/proceedings, not to a personal guarantor of the Corporate Debtor; a plain reading of s.14 conspicuously omits any mention of the personal guarantor.	SCJ-090

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
273	State Load Despatch Centre v. GERC 2015 SCC OnLine APTEL 50 Appellate Tribunal for Electricity	'Truing up' means the adjustment of actual amounts incurred against the estimated/projected amounts determined under the ARR.	SCJ-010
274	State of A.P. v. National Thermal Power Corporation Ltd. (2002) 5 SCC 203 Supreme Court (Constitution Bench)	Electricity is 'goods'; a purchaser is liable to pay for it, the quantum and time of payment being ascertained post facto by agreement or statute.	SCJ-009
275	State of Bihar & Others v. Subhash Singh 1997 (4) SCC 430 Supreme Court	State action must be carried out in accordance with the Constitution and within legal limits; judicial review can examine constitutionality and procedural legality of administrative action.	SCJ-061
276	State of Bihar v. P.P. Sharma 1992 SCC (Cr.) 192 Supreme Court	Limited scope of inherent-power quashing; disputed factual defences are for trial.	SCJ-343
277	State of Bihar v. P.P. Sharma 1992 SCC (Cr.) 192 Supreme Court	Only those cases in which no prima facie case is made out can be considered on an application under section 482 Cr.P.C.	SCJ-539
278	State of Bombay v. Supreme General Films Exchange Ltd. AIR 1960 SC 980 Supreme Court	To the same effect on the vested right of appeal.	SCJ-008
279	State of H.P. & Ors. v. Gujarat Ambuja Cement Ltd. & Anr. (2005) 6 SCC 499 Supreme Court of India	There are two well-recognised exceptions to the doctrine of exhaustion of statutory remedies: where proceedings are taken before a forum under a provision of law which is ultra vires, and where the impugned order is made in violation of the principles of natural justice or the proceedings themselves are an abuse of process.	SCJ-1562
280	State of Haryana v. Bhajan Lal 1992 SCC (Cr.) 426 Supreme Court	Illustrative categories for quashing; interference is not warranted where the FIR/charge-sheet discloses a cognizable offence.	SCJ-343
281	State of Haryana v. Bhajan Lal 1992 Supp (1) SCC 335 Supreme Court	Illustrative categories in which inherent power under s.482 Cr.P.C. may be exercised to quash (quoted in full).	SCJ-539
282	State of Karnataka & Anr. v. H. Ganesh Kamath & Ors. (1983) 2 SCC 402 Supreme Court	It is a well-settled principle that conferment of rule-making power does not enable the rule-making authority to make a rule travelling beyond, or inconsistent with, the enabling Act.	SCJ-147

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
283	State of Kerala v. V.R. Kalliyankutty (1999) 3 SCC 657 Supreme Court	On the meaning and scope of 'dues' / amounts recoverable.	SCJ-252
284	State of Maharashtra v. Laljit Rajashi Shah & Ors. AIR 2000 SC 937 Supreme Court	A person deemed a public servant under an analogous 'deemed to be public servant' provision for Maharashtra Cooperative Societies employees was not a public servant for purposes of the (former) Prevention of Corruption Act, 1947.	SCJ-091
285	State of Orissa v. Bimal Kumar Mohanty AIR 1994 SC 2296 Supreme Court	Suspension should not be passed as an administrative routine or mechanically; it requires consideration of the gravity of alleged misconduct and the evidence, applying the disciplinary authority's mind.	SCJ-116
286	State of Orissa v. Madan Gopal Rungta 1952 SCR 28 Supreme Court of India (Constitution Bench)	Cited for the proposition that when the writ petition is not maintainable, no interim relief can be granted while dismissing it.	SCJ-3258
287	State of Orissa v. Mamata Mohanty (2011) 3 SCC 436 Supreme Court	Article 14 is not meant to perpetuate illegality and does not envisage negative equality; an inadvertent benefit granted to others does not confer a right to the same relief.	SCJ-123
288	State of Orissa v. Pyari Mohan Samantaray & Others AIR 1976 SC 2617 Supreme Court	Reiterates that unexplained delay disentitles a petitioner to discretionary relief under Article 226.	SCJ-068
289	State of Rajasthan v. J.K. Synthetics Ltd. 2011 (12) SCC 518 Supreme Court	Where a mining rule prescribing interest on delayed royalty is amended, any lease-deed term prescribing a lower rate must yield to the amended rule from the date of amendment, since the rule prevails over contractual stipulations.	SCJ-134
290	State of T.N. & Anr. v. P. Krishnamurthy & Ors. (2006) 4 SCC 517 Supreme Court	Courts must consider the nature, object and scheme of the enabling Act when assessing subordinate legislation's validity; where inconsistency is not with a specific provision but with the object/scheme of the parent Act, the court should proceed with caution before declaring invalidity.	SCJ-147
291	State of U.P. v. Mohd. Nooh Supreme Court	The rule requiring exhaustion of statutory remedies before a writ is one of policy, convenience and discretion, not of law; certiorari has issued despite other adequate legal remedies.	SCJ-706
292	State of W.B. v. Rupa Ice Factory (P) Ltd. (2004) 10 SCC 635 Supreme Court	Where the finding is that a consumer tapped electric energy directly bypassing the meter circuit, s.26(6)'s reference-to-Electrical-Inspector procedure has no application; following M.P. Electricity Board v. Basantibai and JMD Alloys v. Bihar SEB, tampering/theft/pilferage cases fall outside s.26's scope entirely.	SCJ-151

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
293	State of West Bengal v. Dabasish Mukherjee (2011) 14 SCC 187 Supreme Court	Equality before law is a positive concept, not enforceable negatively; an inadvertent illegal benefit to one person does not confer a legal right on others to the same benefit.	SCJ-123
294	Sub-Divisional Officer (P), UHBVNL v. Dharam Pal (2006) 12 SCC 222 Supreme Court	In cases of meter tampering, there is no scope for reference to an Electrical Inspector under s.26(6).	SCJ-151
295	Sukhdev Singh & Ors. v. Bhagatram Sardar Singh Raghuvanshi & Anr. (1975) 1 SCC 421 Supreme Court (Constitution Bench)	Statutory bodies cannot use rule/regulation-making power to enlarge their powers beyond the scope intended by the legislature; delegated rules/regulations establish patterns of conduct subordinate to the statute.	SCJ-147
296	Supreme Court Bar Association v. Union of India (1998) 4 SCC 409 Supreme Court	The Supreme Court's power under Article 142 cannot be used to ignore substantive statutory provisions; it is a residuary power, supplementary and complementary to powers conferred by statute, to do complete justice.	SCJ-152
297	Surya Dev Rai v. Ram Chander Rai and Others 2003 (6) SCC 675 Supreme Court of India	Supervisory jurisdiction under Article 227 is not to be used ordinarily for every wrong order or error of law unless manifest injustice is shown; it is to be used sparingly.	SCJ-3170
298	Sushila Aggarwal v. State (NCT of Delhi) Supreme Court	Governing law on the grant and duration of anticipatory bail under s.438 Cr.P.C.	SCJ-131
299	Swarn Singh Chand v. Punjab State Electricity Board Supreme Court	Cited in the string of malice-in-law authorities at para 42, in an electricity-board context.	SCJ-126
300	Tamil Nadu Generation and Distribution Corporation Ltd. v. PPN Power Generating Company Pvt. Ltd. (2014) 11 SCC 53 Supreme Court	Adjudicatory functions ought not to be conducted by a State Commission in the absence of a judicial Member, at least for disputes not fairly relative to tariff fixation or advisory functions.	SCJ-130
301	Telangana State Southern Power Distribution Co. Ltd. Supreme Court	Relied on by the respondents for the proposition that electricity dues cannot be extinguished.	SCJ-157

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
302	Telangana State Southern Power Distribution Company Ltd. v. ... Supreme Court	Electricity dues, where statutory in character under the Electricity Act and the terms/conditions of supply, cannot be waived (s.56, Electricity Act 2003 / pari materia s.24, 1910 Act); where an e-auction notice specifically flags existing electricity dues as a purchaser liability on an 'AS IS WHERE IS, WITHOUT RECOURSE' basis, the purchaser is liable to pay them.	SCJ-098
303	The Management of Hotel Imperial, New Delhi v. Hotel Workers' Union AIR 1959 SC 1342 Supreme Court	The power to suspend is a creature of statute or contract, to be exercised keeping in view the letter and spirit of the statute.	SCJ-116
304	The State of Orissa v. Madan Gopal Rungta Supreme Court (Constitution Bench)	Article 226 cannot be used to grant interim relief as the only and final relief; interim relief is available only as ancillary to a final relief obtainable in a proceeding actually pending and to be decided on merits before that court.	SCJ-095
305	Tinsukhia Electricity Supply Co. Ltd. v. State of Assam & Ors. (1989) 3 SCC 709 Supreme Court (Constitution Bench)	A statute must be construed so as to make it effective and operative ('ut res magis valeat quam pereat'); courts should avoid interpretations reducing a provision to futility.	SCJ-111
306	Tirupati Balaji Developers (P) Ltd. v. State of Bihar (2004) 5 SCC 1 Supreme Court	Appeal implies removal of a cause to a superior forum having jurisdiction to reverse, confirm, annul or modify the lower forum's decree/order, with corrective directions binding on the forum below.	SCJ-138
307	U.P. Power Corporation Ltd. and another v. Lohia Brass (P) Ltd. and others (2006) 7 SCC 220 Supreme Court	Each Meter Reading Inspection Report violation of peak-hour consumption restrictions attracts separate penalty; the Allahabad High Court's contrary interpretation (one penalty per report) was incorrect.	SCJ-128
308	U.P. Power Corporation Ltd. and others v. Bonds and Beyonds (India) (P) Ltd. (2007) 7 SCC 779 Supreme Court	Reaffirms Lohia Brass: each peak-hour-restriction violation attracts separate penalty.	SCJ-128
309	U.P. Power Corporation Ltd. v. M/s Lohia Brass Pvt. Ltd. & Others Decided 25.7.2006 Supreme Court	Peak-hour-restriction violation penalty is to be imposed per inspection report (first violation and subsequently for every violation), settling the correct computation formula.	SCJ-122

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
310	U.P. Power Corporation Ltd. vs. Anis Ahmad LAWS(SC)-2013-7-145 Supreme Court	Proceedings before a District Consumer Forum are not maintainable in view of this decision (as invoked by the petitioners).	SCJ-406
311	U.P. Rajkiya Nirman Nigam Ltd. v. Indure Pvt. Ltd. AIR 1996 SC 1373 Supreme Court	(Same principle as Karnal Improvement Trust — acquiescence does not confer jurisdiction.)	SCJ-049
312	Uma Nath Pandey & Ors. v. State of U.P. & Anr. (2009) 12 SCC 40 Supreme Court	Natural justice is another name for common-sense justice; adherence to its principles is of supreme importance whenever a quasi-judicial body or an administrative action involving civil consequences is in issue.	SCJ-092
313	Union of India v. Jai Prakash Singh (2007) 10 SCC 712 Supreme Court	Cited by the petitioner; no ratio extracted.	SCJ-552
314	Union of India v. Jyoti Prakash Mitter AIR 1971 SC 1093 Supreme Court (Constitution Bench)	Article 217(3) does not guarantee a right of personal hearing; a mere denial of an oral representation does not, without more, vitiate proceedings.	SCJ-032
315	Union of India v. Madras Bar Association (2010) 11 SCC 1 Supreme Court (Constitution Bench)	Tribunals substituting for court jurisdiction should possess the same independence/security/capacity as the courts they replace; members discharging judicial functions must be drawn from sources possessing legal expertise.	SCJ-130
316	Union of India v. Mohd. Ramzan Khan 1991 (1) SCC 588 Supreme Court	A ruling requiring furnishing of an inquiry report to a delinquent employee was expressly made prospective; illustrates that prospective overruling requires an express direction by the Supreme Court.	SCJ-128
317	Union of India v. Prakash P. Hinduja & Another AIR 2003 SC 2612 Supreme Court	Section 482 Cr.P.C. power to quash criminal proceedings may be exercised (sparingly, with circumspection) where the FIR/complaint even taken at face value discloses no offence, or the uncontroverted allegations/evidence do not disclose commission of any offence, or there is an express legal bar to continuance of proceedings.	SCJ-114
318	Union of India v. Rallia Ram AIR 1963 SC 1685 Supreme Court	Interest is payable in equity only where circumstances attract equitable jurisdiction, or under the Interest Act, or where an agreement/statute/trade usage so provides.	SCJ-073
319	Union of India v. S.C. Parashar (2006) 3 SCC 167 Supreme Court	Cited by the petitioner on 01.11.2023: an amalgam of minor and major penalties is contrary to the principle in Parashar. The reserved judgment did not apply or decide that point.	SCJ-548

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
320	Union of India v. Watkins Mayor and Co. AIR 1966 SC 275 Supreme Court	Interest is claimable only where there is an agreement, trade usage having force of law, or a substantive statutory provision; equity alone cannot justify an interest claim.	SCJ-073
321	United Commercial Bank Ltd. v. Their Workmen AIR 1951 SC 230 Supreme Court	No acquiescence or consent can give a jurisdiction to a court of limited jurisdiction which it does not possess.	SCJ-049
322	United India Insurance Co. Ltd. v. Ajay Sinha Supreme Court	A Permanent Lok Adalat does not act merely as an arbitrator whose award may be challenged; Parliament has given it an adjudicatory role to decide the matter.	SCJ-025
323	United India Insurance Co. Ltd. v. Lehru & Ors. (2003) 3 SCC 338 Supreme Court	(Cited alongside Saurashtra Chemicals in support of the petitioners' 'subject to' argument.)	SCJ-053
324	Uttar Pradesh Power Corporation Ltd. v. Anis Ahmad 2013 (8) SCC 419	Proposition not recorded.	SCJ-1886
325	Uttar Pradesh Power Corporation Ltd. v. National Thermal Power Corporation Ltd. & Ors. (2011) 12 SCC 400 Supreme Court	The Central Electricity Regulatory Commission is an expert body for tariff determination; courts should ordinarily not interfere with tariff determinations.	SCJ-130
326	V. Sasidharan v. M/s Peter and Karunakar AIR 1984 SC 1700 / (1984) 4 SCC 230 Supreme Court	The office of a lawyer or firm of lawyers is not a 'commercial establishment' since lawyers traditionally do not carry on trade or business or render services to 'customers'.	SCJ-133
327	V.K. Majotra v. Union of India (2003) 8 SCC 40 Supreme Court	Cited by the petitioner; no ratio extracted.	SCJ-552
328	V.S. Achuthanandan v. R. Balakrishna Pillai & Ors. (1994) 4 SCC 299 Supreme Court	Earlier round of the same litigation: set aside a High Court order permitting withdrawal of prosecution against a co-accused (A5), restoring the Special Judge's order declining consent for withdrawal.	SCJ-141

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
329	Virender Chaudhary v. Bharat Petroleum Corporation & Ors. 2009 (1) SCC 297 Supreme Court	Follows the same delay/laches principle.	SCJ-068
330	Vishal Agrawal v. Chhattisgarh State Electricity Board (2014) 3 SCC 696 Supreme Court	Section 151's complaint route does not exclude FIR and police investigation; offences under the Electricity Act are tried by the Cr.P.C., so a charge-sheet for section 135 is competent (paras 20, 21 and 23 as extracted).	SCJ-665
331	Vitthalbhai Narangbhai Patel v. CST AIR 1967 SC 344 Supreme Court	To the same effect on the vested right of appeal.	SCJ-008
332	Waman Rao v. Union of India 1981 (2) SCC 362 Supreme Court	Applied prospective overruling to statutes declared ultra vires.	SCJ-128
333	Western Electricity Supply Co. of Orissa Ltd. v. Baba Baijanath Roller and Flour Mill (P) Ltd. (2014) 105 ALR 762 (SC) Supreme Court	Section 26 is relevant only to a dispute about the correctness of a meter; a question of fraud/tampering falls outside it.	SCJ-262
334	Yunus v. State of Maharashtra & Others 2009 (3) SCC 281 Supreme Court	Explains the doctrine of laches (per Lindsay Petroleum Co. v. Hurd): where it would be practically unjust to give a remedy because of conduct amounting to waiver, or where delay has changed the other party's position, lapse of time is material.	SCJ-068
335	Zameer Ahmed Latifur Rehman Sheikh v. State of Maharashtra (2010) 5 SCC 246 Supreme Court	Same interpretive principle — statutory provisions read as a whole, not piecemeal.	SCJ-113
336	Zandu Pharmaceutical Works Ltd. v. Mohd. Sharaful Haq 2005 SCC (Cri) 283 Supreme Court	At the quashing stage, only a prima facie case is to be examined; disputed factual questions must go to trial.	SCJ-142

Table 3 — Other courts 79 authorities · 89 citations · 0 used in 5+ cases · 8 used in 2+ cases

High Courts other than Allahabad, appellate tribunals, the Privy Council and other non-Allahabad forums recorded in the summaries. Most cited: *M/s Citi Hotel v. Commissioner, Lucknow Division and Others* (3), *Ram Autar v. U.P. Power Corporation Ltd.* (3) and *Abhimanyu Mazumdar v. Superintending Engineer* (2).

1 M/s Citi Hotel v. Commissioner, Lucknow Division and Others 3 cases

(2001) 9 SCC 275 · Privy Council

Distinguished 2 · Referred 1

PROPOSITION 1 · USED IN 1 CASE

Where recourse to an alternative remedy was onerous, involving deposit of a huge amount, and the demand itself was barred by limitation, interference by the High Court on merits was necessary despite the alternative remedy being available.

PROPOSITION 2 · USED IN 1 CASE

Only a statute dealing with procedure may have retrospective effect; a statute conferring substantive rights, including the right of appeal, does not.

PROPOSITION 3 · USED IN 1 CASE

Cited by the petitioner for the proposition that an acquittal ends the licensee's demand and requires restoration.

SCJ-008

SCJ-1562

SCJ-2227

2 Ram Autar v. U.P. Power Corporation Ltd. 3 cases

Writ-C No. 11961 of 2012, order dated 23.10.2019

Not recorded 3

PROPOSITION NOT RECORDED.

SCJ-911

SCJ-912

SCJ-1373

3 Abhimanyu Mazumdar v. Superintending Engineer 2 cases

AIR 2011 Cal 64 · Calcutta High Court

Distinguished 1 · Referred 1

PROPOSITION 1 · USED IN 1 CASE

Relied on by the petitioner for the contention that an occupier is entitled to be considered for a connection under Clause 4.4. This judgment does not recite the Full Bench's holding.

PROPOSITION 2 · USED IN 1 CASE

A person in settled possession is entitled to electricity.

SCJ-293

SCJ-3291

4 Gopal Swarup Chaturvedi v. State of U.P. 2 cases

1999 AWC (4) 3349

Not recorded 2

PROPOSITION NOT RECORDED.

SCJ-1785

SCJ-1787

5 M/s JMD Alloys Limited v. Bihar State Electricity Board 2 cases

AIR 2009 (Patna) 26 · Patna High Court

Followed 2

PROPOSITION 1 · USED IN 1 CASE

Sending a disputed Secure Meter for testing to its manufacturer's own accredited laboratory is likely to create a strong bias in favour of the supplier/manufacturer, even if the laboratory is accredited.

PROPOSITION 2 · USED IN 1 CASE

Testing of a Secure Meter by its own manufacturer is likely to create a strong bias in favour of the supplier/manufacturer.

SCJ-059

SCJ-071

6 Meenu Gupta v. State of U.P. 2 cases

Writ-C No. 3872 of 2018, decided 31.1.2018

Not recorded 2

PROPOSITION NOT RECORDED.

SCJ-2014

SCJ-2015

7 Modern Syntax (I) Ltd. v. Debts Recovery Tribunal, Jaipur 2 cases

AIR 2001 Raj 170 · Rajasthan High Court

Relied on 2

PROPOSITION 1 · USED IN 1 CASE

The effect of a relief-undertaking notification is that any right, privilege, obligation or liability accrued before the undertaking was declared a relief undertaking, and any remedy for its enforcement, stands suspended, and all proceedings related thereto pending before any court/tribunal/officer/authority are stayed during the currency of the notification.

PROPOSITION 2 · USED IN 1 CASE

The provisions of a Relief Undertaking Act, being meant to sub-serve public interest and prevent unemployment, are to be given a liberal interpretation.

SCJ-038

SCJ-246

8 Writ-C No. 3243 of 2020 2 cases

Writ-C No. 3243 of 2020

Not recorded 2

PROPOSITION NOT RECORDED.

SCJ-2429

SCJ-2431

Cited in a single case (71 authorities — included for completeness)

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
9	Amar Singh v. State of U.P. Writ-C No. 32425 of 2019	Proposition not recorded.	SCJ-2428

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
10	Archana Devi v. Chairman, Bihar State Electricity Board 2012 (4) PLJR 701 High Court of Patna	Under the Supply Code, no obligation is cast on a purchaser to enquire into or clear pending electricity dues unless she is a relative of the defaulting consumer; the third proviso to Clause 4.1 requires clearance only from such a relative-purchaser.	SCJ-268
11	Arup Sarkar v. C.E.S.C. Limited and Others 2020 STPL 4200 Calcutta (Writ Petition No. 18367 of 2019, decided 11.2.2020) Calcutta High Court	A litigation lawyer's chambers, used for livelihood based on personal professional skill, is not commercial activity; directed billing under 'Domestic (Urban)' category.	SCJ-133
12	Authorised Officer, State Bank of Travancore v. Mathew K.C. Civil Appeal No. 1282 of 2018 dated 30.01.2018	Proposition not recorded.	SCJ-1763
13	Awadesh S. Pandey v. Tata Power Corporation Ltd. AIR 2007 Bom 52 Bombay High Court	Section 56(2)'s two-year bar limits only the special coercive remedy of disconnection under s.56(1); it does not extinguish the underlying debt or bar recovery of a sum falling within two years of the demand, and does not preclude independent recovery by suit.	SCJ-122
14	B.N. Magon v. South Delhi Municipal Corporation 217 (2015) DLT 55 Delhi High Court	Cited by petitioner in support of the profession/commercial-activity distinction.	SCJ-133
15	Baluwa @ Ballu v. U.P. Power Corporation Limited Writ C No. 27978, order dated 26.08.2019 (Allahabad High Court)	Proposition not recorded.	SCJ-2562
16	Bharat Barrel & Drum Manufacturing Co. Pvt. Ltd. v. Municipal Corporation of Greater Bombay AIR 1978 Bom 369 Bombay High Court	There is no limitation for making a demand by way of supplementary bill; constructive res judicata does not apply to bar a supplementary demand for previously unclaimed misuse charges.	SCJ-122
17	Bimal Kumar Gupta v. Special Police Establishment Lokayukt 2001 (1) MPHT 330; (2001) 3 JLJ 2 Madhya Pradesh High Court (Single Judge)	Employees of the Madhya Pradesh State Electricity Board are not 'public servants' for purposes of prosecution under the Prevention of Corruption Act, since s.81 of the 1948 Act only deems them public servants under IPC s.21, and a 'deemed provision' cannot extend to another statute (relying on State of Maharashtra v. Laljit Rajashi Shah).	SCJ-091
18	Black's Law Dictionary (5th Edn.) Dictionary	'Temporary' is that which is to last for a limited time only, as distinguished from that which is perpetual or indefinite in its duration.	SCJ-166

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
19	Broom's Legal Maxims (10th Edn.), p. 191 Treatise	No man shall take advantage of his own wrong — recognised in courts of law and of equity.	SCJ-001
20	Chandler v. D.P.P. [1964] A.C. 763 House of Lords	Side notes/marginal headings cannot be used as an aid to statutory construction; they are mere catchwords, not enacted as part of the Act.	SCJ-059
21	Chandra Prakash Gupta v. State of U.P. Writ-C No. 4606 of 2014	Proposition not recorded.	SCJ-1317
22	Circular/letter dated 18.01.2018 of the Managing Director, U.P. Power Corporation Ltd U.P. Power Corporation Ltd	Where a property is purchased pursuant to liquidation, the previous owner's dues are to be recovered from the earlier owner and a new connection can be released in favour of the subsequent purchaser.	SCJ-2860
23	Citizen Forum Maharashtra v. State of Maharashtra W.P. No. 3701 of 2007, Bombay High Court (Nagpur Bench), decided 12.2.2008 Bombay High Court	Upheld the power of a distribution licensee to appoint a distribution franchisee for consumer benefit.	SCJ-136
24	Col. R.K. Nayar (Retd.) v. BSES Rajdhani Power Ltd. & Ors. ILR (2007) II Delhi 769 Delhi High Court	Cited by the petitioner with the other decisions in paragraph 9 for the submissions that dishonest intention to abstract electricity must be proved conclusively, that a quasi-judicial authority must record reasons, and that the inspection and seizure procedure in Clauses 8.1 and 8.2 was not followed. The Court held those decisions distinguishable on facts, while accepting that such intention must be proved conclusively.	SCJ-3309
25	Colonial Sugar Refining Co. Ltd. v. Irving (1905) AC 369 Privy Council	The right of appeal is a substantive right that vests on the initiation of proceedings; only procedural statutes may be retrospective, not those affecting the right of appeal.	SCJ-008
26	Dakshin Haryana Bijli Vitran Nigam Ltd. & Ors. v. Megh Raj Revision Petition No. 3144 of 2007, decided 11.9.2008 National Consumer Disputes Redressal Commission	The power to compound under Section 152 presupposes a pending prosecution, acceptance of the sum amounting to an acquittal.	SCJ-003
27	Damodar Valley Corporation v. Dimension Steel and Alloys and others Company Appeal (AT)(Insolvency) No. 62/2022 (NCLAT), dated 23.05.2022, Para 20 National Company Law Appellate Tribunal, Principal Bench, New Delhi	An approved resolution plan extinguishes claims not forming part of it, binding statutory authorities including for electricity dues.	SCJ-2225

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
28	Divisional Engineer, Electricity Distribution Division-I v. Raman Singh 2018(6) All WC 5693	Proposition not recorded.	SCJ-2072
29	Divya Sahni v. State of U.P. Writ-C No. 2008 of 2021, decided 17.3.2021	Supply of electricity constitutes one of the essential services without which the survival of a person would be mere animal existence.	SCJ-2570
30	E. Venkatesan & Ors. v. Chairman, Tamil Nadu Electricity Board, Madras & Ors. AIR 1977 Madras 64 Madras High Court	A similar view that the electricity authority has the power to install towers/lines over privately-owned land.	SCJ-2193
31	Eastern Power Distribution Co. of Andhra Pradesh Ltd. v. Maithan Alloys Ltd. (NCLAT) Company Appeal (AT) (Insolvency) No. 961 of 2021 National Company Law Appellate Tribunal	A successful auction purchaser in the liquidation of a corporate debtor is not liable to pay the electricity dues (pre-CIRP and during CIRP) of the corporate debtor; the licensee's pre-CIRP dues are operational debt to be paid under Section 53 and the licensee cannot realise them from the auction purchaser, that being in conflict with the statutory scheme of the Code.	SCJ-270
32	Electricity Supply Code (notification dated 10.08.2018 amending Clause 4.9) U.P. Electricity Regulatory Commission	Amended Clause 4.9 to provide that all new connections for domestic/non-domestic multistoried buildings, multiplexes, marriage halls, cooperative group housing societies and colonies shall be released only on a multiple-point basis for supply of power to individual owners/occupants.	SCJ-2856
33	Global Feeds Feedback Energy Distribution Company Private Ltd. v. Government of Odisha 2019 SCC OnLine Ori 205 Orissa High Court	The contractual terms between a distribution licensee and its franchisee are privy to those parties, absent a specific statutory provision regulating that relationship.	SCJ-136
34	Guddi Kesarwani v. State of U.P. Writ-C No. 226 of 2025	Proposition not recorded.	SCJ-409
35	Harvinder Motors v. B.S.E.S. Rajdhani Power Ltd. 2006 SCC OnLine Del 1404 Delhi High Court	Cited by the petitioner with the other decisions in paragraph 9 for the submissions that dishonest intention to abstract electricity must be proved conclusively, that a quasi-judicial authority must record reasons, and that the inspection and seizure procedure in Clauses 8.1 and 8.2 was not followed. The Court held those decisions distinguishable on facts, while accepting that such intention must be proved conclusively.	SCJ-3309
36	Hotel Adityaz Ltd. v. M.P. Kshetra Vidyut Vitran Co. Ltd. AIR 2016 (NOC) 39 (M.P.) Madhya Pradesh High Court	Theft cases fall only under Section 135, and Section 126 has no application to them.	SCJ-042

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
37	Jagdish Narayan v. North Delhi Power Limited & Anr. ILR (2007) II Delhi 957 Delhi High Court	Cited by the petitioner with the other decisions in paragraph 9 for the submissions that dishonest intention to abstract electricity must be proved conclusively, that a quasi-judicial authority must record reasons, and that the inspection and seizure procedure in Clauses 8.1 and 8.2 was not followed. The Court held those decisions distinguishable on facts, while accepting that such intention must be proved conclusively.	SCJ-3309
38	JMD Alloys Ltd. Patna High Court	Sending a meter for testing to the accredited laboratory of its manufacturer/supplier (Secure Meters Ltd.) is likely to create a strong bias on the part of the supplier/manufacturer.	SCJ-161
39	K. Sambasivaraju v. M.V.S.R. Chandrayya Chetty AIR 1967 Andhra Pradesh 87 Andhra Pradesh High Court (Division Bench)	The word 'instrument' (as defined in s.2(14) of the Stamp Act, 1899) must receive an extensive meaning including an affidavit.	SCJ-246
40	Kirpa Singh v. Ajaypal Singh 1928 ILR 10 Lahore 165 (FB) Lahore High Court	Right of appeal governed by law at the date of institution of the suit, not at the date of decision or of filing the appeal.	SCJ-008
41	Krishna Chandra Mishra v. State of U.P. and another Section 482 Petition No. 807/2021, order dated 19.02.2021	Proposition not recorded.	SCJ-2557
42	M/s. Classic Color Lab v. Assistant Engineer and Others (Kerala HC) 2014 (3) KLT 57 Kerala High Court (Division Bench)	Following Seetaram Rice Mill, an assessment under s.126(6) for unauthorised use (there, industrial-tariff electricity misused for commercial purposes) must be at the rate applicable to the higher-tariff category actually used, not the consumer's nominal category; a purposive (not textual) interpretation of s.126 is required.	SCJ-147
43	Madhur Garg v. North Delhi Power Ltd. 129 (2006) DLT 2013 High Court of Delhi	Cited by the petitioner-franchisee in support of denying a fresh connection until previous electricity dues on the premises are cleared.	SCJ-2201
44	Maharashtra State Electricity Distribution Company Ltd v. The Electricity Ombudsman and other (Writ Petition No. 10764 of 2011) High Court of Judicature at Bombay	Cited for the proposition that recovery of electricity dues beyond two years is stale and cannot be made.	SCJ-2862
45	MCD v. H.D. Shourie 53 (1994) DLT 1 Delhi High Court	Electricity charges become due, and limitation for their recovery commences, only when the bill is raised — not from the date of underlying consumption/default.	SCJ-122

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
46	McEldowney v. Forde (1971) AC 632 House of Lords	In reviewing subordinate legislation's validity, a court's task is threefold: determine the meaning of the enabling words, determine the meaning of the subordinate legislation, and decide whether the latter complies with the former.	SCJ-147
47	Misc. Petition No. 31705 of 2009 (Allahabad High Court)	Proposition not recorded.	SCJ-766
48	Modern Terry Towels Ltd. v. Gujarat Electricity Board AIR 2003 Guj 63 Gujarat High Court	A broken seal, without more, does not establish theft of electricity.	SCJ-273
49	Nana bin Aba v. Skeku bin Andu (1908) ILR 32 Bom 337 Bombay High Court	Followed Colonial Sugar Refining on the vested, substantive nature of the right of appeal.	SCJ-008
50	NDMC v. Karam Chandra Thapar & Brothers Pvt. Ltd. 162 (2009) DLT (decided 16.7.2009) Delhi High Court	Liability to pay electricity charges is a statutory liability preserved by s.6 of the General Clauses Act; a bill can be issued even years after consumption.	SCJ-122
51	North Delhi Power Ltd. (NDPL) v. DERC 2007 ELR (APTEL) 193 Appellate Tribunal for Electricity	Restricting a utility's claim by disallowing reasonably anticipated expenditure and deferring it to the truing-up exercise is not prudence; truing up only fills the gap between actual and anticipated expenses.	SCJ-010
52	Order dated 16.06.2010 of respondent no. 4 rejecting the petitioner's application for a new connection Distribution licensee (respondent no. 4)	Rejected the petitioner's application for a new connection for premises no. 117/M/290 on the ground that Rs.84,000 and Rs.1,08,000, being dues on two earlier connections at the premises, were outstanding.	SCJ-2857
53	Order dated 25.05.2023 of the Consumer Grievance Redressal Forum, Lucknow (Complaint Case No. 86 of 2022 - Atal Infratech Pvt. Ltd. v. Executive Engineer) Consumer Grievance Redressal Forum, Lucknow	Directed the licensee to release a 5KVA electricity connection in favour of the complainant after completing all formalities.	SCJ-2856
54	Order in Writ - C No. 15680 of 2013	Proposition not recorded.	SCJ-993
55	P. Ramanatha Aiyar's Advanced Law Lexicon (4th Edn.) Dictionary	'Temporary' means lasting for a time only; existing or continuing for a limited time; not of long duration; not permanent; transitory.	SCJ-166

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
56	Pashchimanchal Vidyut Vitran Nigam Ltd. v. Raman Ispat Pvt. Ltd. & Ors. (NCLT Allahabad / NCLAT New Delhi) Order dated 15.5.2019 NCLT/NCLAT	Once a liquidation order is passed against a Corporate Debtor, the District Collector cannot separately recover/auction the Corporate Debtor's property for electricity dues under ss.173/174 of the Electricity Act, 2003, since IBC (a later Parliamentary Act) overrides; the electricity authority's remedy is to file a claim before the liquidator.	SCJ-090
57	Pawanesh Sarswat vs. State of U.P. and 3 others Writ-C No. 5105 of 2019 (judgment dated 13.2.2019)	Proposition not recorded.	SCJ-2657
58	Prakash Khare vs. The Collector Kanpur Nagar Writ-C No. 13779 of 2019 (Allahabad High Court, 22.4.2019)	Proposition not recorded.	SCJ-2383
59	Punjab State Electricity Board v. Guru Nanak Agriculture Engineering Works AIR 2007 P&H 57 Punjab and Haryana High Court	Relied on by the plaintiff for the proposition that the civil court's jurisdiction is not barred in such an electricity dispute.	SCJ-207
60	Ramanathan v. State of Kerala 1991 (1) KLJ 410 Kerala High Court	The profession of a lawyer does not involve commercial or industrial activity, in the context of the Kerala Shops and Commercial Establishments Act.	SCJ-133
61	Sakharam Narayan Kherdekar v. City of Nagpur Corporation AIR 1964 Bombay 200 Bombay High Court (Division Bench)	A lawyer's office is not a commercial establishment under the Bombay Shops and Establishments Act, given the personal-skill, intelligence, and individual-characteristics nature of the activity.	SCJ-133
62	Sanjay Kumar Singh v. Bihar State Electricity Board CWJC No. 16101 of 2010, decided 2 December 2010 High Court of Patna	In view of Clause 4.15(vi), no fault can be found with the Board's stand that until dues are cleared it need not provide a connection.	SCJ-268
63	Sarwottam Ispat Ltd. v. Southern Power Distribution Company of Telangana Ltd. & Ors. 2016 (6) ALD 162 High Court of Judicature at Hyderabad (DB)	Where pre-paid meters are not installed, it is mandatory for consumers to pay the security deposit demanded; a request for a prepaid meter when none is available does not entitle the consumer to a waiver, and Section 47 does not envisage waiver or an alternative mode of security (e.g. bank guarantee) enforceable by writ.	SCJ-053
64	Shishir Jain	Proposition not recorded.	SCJ-2607

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
65	Shri Bholu v. State of U.P. Writ-C No. 21927 of 2016, order dated 15.7.2016	Proposition not recorded.	SCJ-1507
66	Sk. Jafar Ali v. West Bengal State Electricity Distribution Company Limited AIR 2010 Cal 84 Calcutta High Court	The phrase 'applicable for the relevant category of services' in s.126(6) should be construed as the rate applicable to the category the consumer belongs to, not the higher category of the unauthorised use.	SCJ-147
67	Smt. Kudusia Begum v. State of U.P. Writ-C No. 27451 of 2021, decided on 23.10.2021	Proposition not recorded.	SCJ-2802
68	Smt. Minakshi Patra v. Secretary Irrigation and Power, Govt. of Orissa & others AIR 1999 Orissa 137 Orissa High Court	Cited for the contention that, on an application under section 80(2) CPC, the court below was required to look into urgency and could not have entered into the merits of the relief.	SCJ-3170
69	Smt. Rekha Gupta v. Bihar State Electricity Board 1999 (3) PLJR 222 High Court of Patna	The liability to pay electricity dues is a personal contractual liability between the Board and the consumer and cannot be enforced against a third party such as a landlord or bona fide purchaser unconnected with the erstwhile consumer, as it is not a charge over the property; the Board cannot take advantage of its own wrong in allowing arrears to accumulate to refuse a new connection.	SCJ-268
70	Smt. Saroj Devi v. State of U.P. Writ Petition No. 30908 of 2018, order dated 12.09.2018	Questions of fact on the Kutir Jyoti connection and bills are for the Executive Engineer under paragraph 6.5 of the U.P. Electricity Supply Code, 2005; coercive action on the recovery citation stayed for one month.	SCJ-1944
71	Tirumala Modern Rice Mill v. Transmission Corporation of A.P. Ltd. (AP Transco) AIR 2007 AP 265 Andhra Pradesh High Court	Parts XIV/XV of the Electricity Act do not contemplate provisional assessment of energy pilfered in theft cases; where a consumer accepts and deposits a provisional assessment without demur, no further liability/action may be taken.	SCJ-111
72	U.P. Electricity Regulatory Commission Order dated 08.05.2020 U.P. Electricity Regulatory Commission	Prescribes that the consent of the residents (51 per cent) be obtained before a single-point connection is migrated to a multi-point connection (or vice versa).	SCJ-2854
73	Wonder Jupiterchit, In re 1992 (74) CC 215 (Kerala) Kerala High Court	Cited by a secured creditor on the scope of expenses recoverable from the liquidation estate.	SCJ-152
74	Writ Petition No. 18855 of 2008	Proposition not recorded.	SCJ-1341

#	AUTHORITY	PROPOSITION TAKEN FROM THE AUTHORITY	CITED IN
75	Writ-C No. 22449 of 2008 order dated 14.11.2018	Proposition not recorded.	SCJ-741
76	Writ-C No. 39082 of 2018 (Allahabad High Court, order dated 20.12.2018)	Proposition not recorded.	SCJ-554
77	Writ-C No. 67768 of 2009 Writ-C No. 67768 of 2009 (Allahabad High Court, 05.01.2026)	Proposition not recorded.	SCJ-322
78	Writ-C No. 6793 of 2015 Writ-C No. 6793 of 2015 (order dated 05.02.2015)	Proposition not recorded.	SCJ-1373
79	Writ-C No. 7651 of 2014 Writ C No 7651 of 2014	Proposition not recorded.	SCJ-1373